

**IN THE HIGH COURT OF KARNATAKA AT BENGALURU
PRESENTATION FORM**

writ
APPEAL / PETITION **1146** of 20 **25**

F.R. 1074/25

advt
Advocate-General / Government Advocate *in wp 2090/2024*

District
D.O.F. 7/7/25

PRESENTED WITH COURT FEE LABELS AS FOLLOWS-

Sl. No.	Particulars	Court fee affixed on the papers	
		Rs.	P.
<i>1.</i>	On Memorandum of Appeal / Petition Application ...		
<i>2.</i>	On the certified copies of judgement and decree ...		
<i>3.</i>	Memo of appearance ...	Nil	
4.	Process fees ...		
<i>5.</i>	<i>IA for CD a/w affidavit</i>		
<i>6.</i>	<i>IA for stay a/w affidavit</i>		
7.			
8.			
	Total...		

Number of copies furnished *2 sets.*

[Signature]
Advocate-General &
Advocate for Petitioner / Respondent Appellant

Clerk
Office of the Advocate-General
for Karnataka, Bengaluru

Received Court fee and Stamp
Labels as above

Bengaluru

Receiving Clerk

Dated

37	Whether index is signed and dated in both sets ? (Rule 2 of Chapter XII of H.C. Rules)		
38	Whether the IA's filed in WA are paginated in contrn. of WA papers, with separate index as usual? (Rule 2 of Chapter XII of H.C. Rules)		
39	Other Information	1 APPELLANT Nos TO BE STATED AT MOA 2 DELAY DAYS TO BE STATED AT IA FOR CD 3 IMPUGNED ORDER DATE TO BE STATED CORRECTLY IN AGGRIEVED PARA 4 INDEX TO BE SIGNED BY COUNSEL FOR APPELLANT 5 COLOR PHOTOGRAPHS TO BE FURNISHED TO ANNEXURE-G SERIES, FOR BOTH SETS 6 IMPUGNED ORDER DATE TO BE STATED AT PRAYER PARA IN IA FOR STAY 7 RESPONDENT Nos TO BE STATED CORRECTLY AT MEMO REGARDING NON FILING OF STATEMENT OF OBJECTIONS	
 Examiner 17.07.2025  Section Officer Asst. Registrar			

Need full done

Submission Reg 010: 39 (5): The petitioner counsel in writ petition has furnished Black & white photo copies of Annexure-G series in wp. furnished the same in presentedⁱⁿ writ Appeal hence same may kindly accepted & office objections may over ruled in the interest of Justice and equity.

Vemula HC
20/1/2026.

IN THE HIGH COURT OF KARNATAKA, AT BENGALURUWRIT APPEAL NO. 1146 / 2025INWRIT PETITION NO. 2090/2024(KLR-LG)**BETWEEN:**The State of Karnataka
and others

.... APPELLANTS

AND

Smt. Shanthamma

....RESPONDENTS

INDEX

Sl. No.	Particulars	Page No.
1	Synopsis and List of dates.	1-6
2	Memorandum of Writ Appeal. a/w Verifying Affidavit	7-21
3	Certified copy of the order dated 01.04.2024 in W.P. No 2090/2024(KLR-RES))	22-29
4	Memorandum of Writ Petition 2090/2024(KLR-RES) a/w Verifying Affidavit	30-42
5	ANNEXURE A:- The Copy of the Certified copy of the impugned order dated 02.06.2023 a/w Translation copy	43-59
6	ANNEXURE B: The Copy of the award passed by R3 a/w typed copy	60-64
7	ANNEXURE B1: The Copy of the notification dated 03.02.1971 with typed copy.	65-70
8	ANNEXURE C: The Copy of the GO dated 24.06.1971 with typed copy.	71-73
9	ANNEXURE D: The Copy of the Land grant order dated 29.10.2010 and sketch a/w typed copy & Translation copy.	74-80
10	ANNEXURE D1: The Copy of the report dated 24.05.2011 submitted by the subordinate officers of R7 to the R5 reporting that there are no trees in the schedule Land a/w typed copy & Translation copy.	81-83
11	ANNEXURE D2: The Copy of the sport inspection report dated 04.06.2011 made by the R5 for issue of saguvali chit to the schedule Land in favour of the petitioner. a/w Translation copy	84-85



12	ANNEXURE E: The Copy of the Saguvali Chit dated 29.06.2011 a/w typed copy a/w typed copy & Translation copy.	86-94
13	ANNEXURE F: The Copy of the Mutation register. a/w Translation copy	95-96
14	ANNEXURE F1: The Copy of the RTC. a/w Translation copy.	97-98
15	ANNEXURE G: The Copy of the photo copy of the Schedule property	99
16	ANNEXURE G1: The Copy of the photo copy of the Schedule property	100
17	ANNEXURE H: The Copy of the Aadhar Card of the petitioner	101
18	Memo Regarding Non-Filing of Statement of Objections.	102
19	Memo of Appearance.	103
20	Copy of the Proceedings of Government order dated 29.03.2025	104-104/A
21	IA for Condonation of delay a/w affidavit.	105-112
22	IA for stay a/w affidavit	114-118

BANGALORE
DATE : 07.07.2025

GOVT. ADVOCATE &
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WRIT APPEAL NO. 11416 OF 2025

IN

W.P. No. 2090 of 2024

BETWEEN:

State of Karnataka & others. ... APPELLANTS

AND:

Smt. Shanthamma ... RESPONDENT

LIST OF DATES AND SYNOPSIS

19.10.1968	According to the Respondent the father of the Respondent herein one Puttegowda was cultivating the land in dispute due to submergence in Hemavathi Reservoir Project and award was passed and granted compensation for the acquired land.
03.02.1971	The Government has decided to grant the land who are the land losers in Hemavathi Reservoir Project.
24.06.1971	The rehabilitation scheme was introduced for the land losers and had fixed 4 acres of dry land for displaced persons.
29.10.2010	The Spl. Land Acquisition Officer had granted the dispute land to the Respondent in the rehabilitation scheme.
24.05.2011	The Spl. Land Acquisition Officer has requested the Zonal Forest Officer who is

	subordinate officer of the Deputy Conservator of Forest, Hassan District and submitted a report.
29.06.2011	The Tahsildar, Arakalgud Taluk, Hassan District has issued Saguvali chit to the Respondent.
03.10.2019 & 20.12.2019	The Deputy Commissioner, Hassan District gave a report to the Government that upon making investigation, it is found that out of 979 cases of grant made till 2019, only 569 are granted by the Spl. Land Acquisition Officer and 414 grants are made by forging the signature of the Spl. Land Acquisition officer and containing bogus documents and even the relevant documents are also not maintained properly, this was made upon the complaints received by the public at large and also Member of Legislative Assembly of 5 taluks.
17.03.2021 & 22.03.2021	The Spl. Land Acquisition officer has issued notice to the Respondents calling upon them to produce the relevant documents regarding submerged land and granting the land for which the Respondent has not come forward to file reply to the notice.
21.06.2021	The Spl. Land Acquisition Officer has issued final public notice by publishing the same in newspapers to file their reply or objections, if any, by giving 7 days' time till 28.06.2021, that the Respondent has placed certain documents which are not relevant for such land and for grant of land.
02.06.2023	The Spl. Land Acquisition Officer has passed an order for cancellation of grant in favour of

	the Respondent verifying all the documents produced by the Respondent and report submitted by the Enquiry officer and documents avail in the office of the Spl. Land Acquisition Officer itself, that, the grant made in favour of the Respondent is not entitled under the scheme introduced by the Government.
01.04.2024	The Respondent has approached this Hon'ble Court in W.P. No. 2090 of 2024 aggrieved by the order passed by the Spl. Land Acquisition Officer dated 02.06.2023, the learned Single Judge allowed the Writ Petition in part and set aside the reasoned order passed by the Spl. Land Acquisition Officer and thus remanded back to the Spl. Land Acquisition Officer and directed the authorities to calculate the amount in respect of trees are concerned whether it is paid or not consequently restore the grant in favour of the Respondent and the revenue entries shall also restored in the RTC, positively direction has been issued though the Respondent are not entitled for the grant itself the question of calculating the amount under the Land Grant Rules does not arise.
05.07.2025	Aggrieved by the same the Appellant-State is filing the said Writ Appeal against the order passed by the learned Single Judge in Writ Petition No. 2090 of 2024.

SYNOPSIS

According to the Respondent the father of the Respondent herein one Puttegowda was cultivating the land

in dispute due to submergence in Hemavathi Reservoir Project and award was passed and granted compensation for the acquired land.

The Government has decided to grant the land who are the land losers in Hemavathi Reservoir Project. The rehabilitation scheme was introduced for the land losers and had fixed 4 acres of dry land for displaced persons.

The Spl. Land Acquisition Officer had granted the dispute land to the Respondent in the rehabilitation scheme. The Spl. Land Acquisition Officer has requested the Zonal Forest Officer who is subordinate officer of the Deputy Conservator of Forest, Hassan District and submitted a report. The Tahsildar, Arakalgud Taluk, Hassan District has issued Saguvali chit to the Respondent.

The Deputy Commissioner, Hassan District gave a report to the Government that upon making investigation, it is found that out of 979 cases of grant made till 2019, only 569 are granted by the Spl. Land Acquisition Officer and 414 grants are made by forging the signature of the Spl. Land Acquisition officer and containing bogus documents and even the relevant documents are also not maintained properly, this was made upon the complaints received by the public at large and also Member of Legislative Assembly of 5 taluks.

The Spl. Land Acquisition officer has issued notice to the Respondents calling upon them to produce the relevant documents regarding submerged land and granting the land

for which the Respondent has not come forward to file reply to the notice.

The Spl. Land Acquisition Officer has issued final public notice by publishing the same in newspapers to file their reply or objections, if any, by giving 7 days' time till 28.06.2021, that the Respondent has placed certain documents which are not relevant for such land and for grant of land.

The Spl. Land Acquisition Officer has passed an order for cancellation of grant in favour of the Respondent verifying all the documents produced by the Respondent and report submitted by the Enquiry officer and documents avail in the office of the Spl. Land Acquisition Officer itself, that, the grant made in favour of the Respondent is not entitled in under the scheme introduced by the Government.

The Respondent has approached this Hon'ble Court in W.P. No. 2090 of 2024 aggrieved by the order passed by the Spl. Land Acquisition Officer dated 02.06.2023, the learned Single Judge allowed the Writ Petition in part and set aside the reasoned order passed by the Spl. Land Acquisition Officer and thus remanded back to the Spl. Land Acquisition Officer and directed the authorities to calculate the amount in respect of trees are concerned whether it is paid or not consequently restore the grant in favour of the Respondent and the revenue entries shall also restored in the RTC, positively direction has been issued though the

Respondent are not entitled for the grant itself the question of calculating the amount under the Land Grant Rules does not arise.

Being aggrieved by the Order dated 01.04.2024 passed by the learned Single Judge of this Hon'ble Court in W.P.No. 2090 of 2024 (KLR-LG), the Appellants/State have preferred this Writ Appeal.

PLACE: BENGALURU,
DATED: 05.07.2025.


(VSHIVAREDDY)
ADDL.GOV.T.ADVOCATE
AND
ADVOCATE FOR APPELLANTS-STATE

VSR:140525:MM:150525:Draft
D-DRIVE:VSR:(F):DRAFTING(F):W.P. No. 2090 of 2024

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(CIVIL APPELLATE JURISDICTION)

WRIT APPEAL No. 1146 OF 2025

IN

WRIT PETITION No. 2090 OF 2024 (KLR)

RANK IN THE PARTIES

PETITION BETWEEN:	APPEAL	WRIT	WRIT
1. State of Karnataka, Represented by its Prl. Secretary, Department of Revenue, M.S. Building, Bengaluru-560 001.		..RESPONDENT No.1	..APPELLANT No.1
2. The Deputy Commissioner, Hassan District, Hassan- 573 201.		..RESPONDENT No.2	..APPELLANT No.2
3. The Special Land Acquisition Officer, Hemavathi Reservoir Project, D.C. Office Building, Hassan - 573 201.		..RESPONDENT No.3	..APPELLANT No.3
4. The Asst. Commissioner, Sakaleshpura Sub-Division, Sakaleshpura- 573 134		..RESPONDENT No.4	..APPELLANT No.4

- | | | |
|---|-----------------------|---------------------|
| 5. The Tahsildar,
Arkalagud Taluk,
Hassan District- 573 102. | ..RESPONDENT
No.5 | ..APPELLANT
No.5 |
| 6. The Asst. Director of Land Records,
Arkalagud Taluk,
Hassan District- 573 102 | ...RESPONDENT
No.6 | ..APPELLANT
No.6 |
| 7. The Deputy Conservator of Forest,
Hassan Division,
Hassan - 573201. | ..RESPONDENT
No.7 | ..APPELLANT
No.7 |
| 8. The Inspector of Police,
CEN Crime Police,
DCRB Division,
Hassan District- 573 201. | ..RESPONDENT
No.8 | ..APPELLANT
No.8 |

AND:

Smt. Shanthamma,
W/o late Krishne Gowda,
D/o Late Putte Gowda,
Aged about 70 years,
Resident of Bettagalale Village,
Konanooru Hobli,
Arkalgud Taluk,
Hassan District- 573 130...PETITIONER .. RESPONDENT

**MEMORANDUM OF WRIT APPEAL UNDER SECTION 4 OF
THE KARNATAKA HIGH COURT ACT, 1961**

I. The addresses of the Appellants for the purpose of service of Notices, Process, summons etc., from this Hon'ble Court are as stated above in the cause title and also that of

their Counsel – Government Advocate, Office of the Advocate General, High Court Building, Bengaluru 560 001.

II. The addresses of the Respondents for the aforesaid purposes are as stated in the cause title above.

III. The Appellants, being aggrieved by an Order dated 01.04.2024 passed in Writ Petition No. 2090 of 2024 (KLR-LG) by the Learned Single Judge of this Hon'ble Court, on the following amongst other grounds :-

IV. BRIEF FACTS OF THE CASE

1. According to the Respondent the father Putte Gowda set to have been cultivating the land in Sy. No. 18/4, 18/7, 23/6 of Kanapura Village, Hassan Taluk, Hassan District due to the submergence in Hemavathi Reservoir Project. In the rehabilitation scheme the Government of Karnataka had reserved lands for allotment of displaced persons on 03.02.1971 in terms of Section 71 of the Karnataka Land Revenue Act to an extent of 6838 acres of Government vast land fit for cultivation and available for disposal in the villages of Arakalagudu Taluk and the award has been made in favour of father of the Respondent on 27.01.1969. on rehabilitation scheme the Government had fixed 4 acres of dry land as land to be granted to the displaced persons on 24.06.1971.

2. Accordingly, the Respondent has made an Application, the Application was considered by the Revenue authorities along with the Spl. Land Acquisition Officer, Hemavati Reservoir Project on 27.05.2010 and granted the land measuring 2 acre 3 guntas in Sy. No. 53, Block No. 24 of Bettagalale Village, Konanuru Hobli, Arkalagud Taluk, Hassan District. On 29.10.2010 in the furtherance of the said grant in favour of the Respondent before issuing of saguvali chit the Thasildar had issued a letter to the Deputy Conservator of Forest on 26.03.2011 for fixed the value of the grown trees in the schedule land for that the subordinate officers for the Deputy Conservator of Forest who is the Zonal Forest Officer of Arakalagudu Taluk were made spot inspection and submitted a report to the Thasildar on 24.05.2011 stated that there is no trees are existed in the land in dispute. Thereafter, the Thasildar had issued a saguvali chit in Form No. 1 and put the Respondent in possession on 29.06.2011. Accordingly, the mutation entry and RTC were got transferred in the name of the Respondent. Thereafter, the Respondent without obtaining any permission from the authorities constructed a residential house in the land in question.

3. It is submitted that large number of representation submitted by the General Public of Hassan District and the local Member of Legislative Assembly of Sakaleshpura, Holenarasipura, Arakalagudu, Arsikere, Shravanabelagola and Belur constituencies to the Revenue Minister, the Hon'ble Home Minister and Chief Secretary to the Government alleging that several officers/ employees of the Revenue Dept., having

committed dereliction of duty and misconduct by illegally creating bogus documents for granting thousands of acres of land meant for the Project Displaced persons, on account of the construction of Hemavathi/Yagachi/Watehole Reservoir by misusing the officers and position and in some cases more than two persons have taken the advantage of acquisition of one award and one payment voucher etc., and requesting the Government to take suitable disciplinary action according to law. Thus, the lands reserved for rehabilitation of the true landlosers/ displaced persons of the said project were illegally granted to those who were not true landlosers.

4. Thereupon, the Deputy Commissioner, Hassan District, through his letters dated 03.10.2019 & 20.12.2019 gave a report to the Government that upon making investigation, it is found that out of 979 cases of grants made since 2015-16 till 2019, only 569 are granted by the then Spl. Land Acquisition Officer and 414 grants are made by forging the signature of the then Officer and containing bogus documents and even the relevant documents are also not maintained properly and thus represented the Government that it is just and proper to investigate into the aforesaid misdeeds at the Government level.

5. It is submitted that, on the basis of the said letters of the Deputy Commissioner, the Government has appointed an Investigating Officer to investigate the aforesaid misdeeds/scam and submit the report. Thereupon, the Spl. Land Acquisition Officer gave complaint to the concerned Police authorities accordingly the Inspector of Police, CEN Crime

Police, DCRB Division, Hassan conducted a detailed investigation & Submitted his report to the Deputy Commissioner and requested to cancel unauthorized grants and he has also listed out 10 points on which such grants are liable to be cancelled which are as under:-

1. Lands have been granted by directly receiving the official memorandum in taluk offices, and 414 cases of such grants are to be cancelled.
2. Two persons have been granted lands by using one Award copy and one payment voucher and 41 cases of such grants are to be cancelled.
3. By using the documents pertaining to the displaced persons from 1970 to 2015, lands have been again granted for the second time and 62 cases of such grants are to be cancelled.
4. In 14 cases lands have been granted, Saguvali Chits have been issued and phodi has also been made without getting the tree-malki determined and such 14 grants are to be cancelled.
5. Totally 837 Saguvali chits issued under official memorandum issued without getting the tree-malki determined shall be cancelled (Sakaleshpura-526, Belu-211, Alur-52, Hassan-23, Arkalgud-25) and Saguvali chits shall be issued after determining the tree-malki.
6. The OMs issued by Sri Cap. Srinivasagowda, Spl. Land Acquisition Officer from 01.02.2018 to 24.10.2019 in respect of 591 and 57 totally 648 cases, on the basis of bogus documents and created Gazette notification shall be cancelled.

7. OMs issued by Sri B.A. Jagadish, Spl. Land Acquisition Officer in totally 40 cases, granting lands to 40 persons as the displaced persons and the Saguvali chits issued by the Tahsildar, Sakaleshpura shall be cancelled.

8. Granting lands of 32 persons who were not the true project displaced persons by considering them as the Project Displaced Persons on the basis of bogus Submergence Certificate shall be cancelled.

9. 226 cases of granting land even possession of the Forest Department and Government Gomala land even though in the Pahani it is noted as the government gomola land, to Hemavathi Reservoir Project Displaced persons shall be cancelled.

10. Granting lands only on the basis of the OMs without obtaining all the required documents in 56 cases shall be cancelled.

6. It is submitted that, further on the direction of the Government and the committee for Protection of Government lands, Vidhana Soudha, Bengaluru, the Investigation Officer has investigated into the complaints and submitted his report. In his investigation report the I.O has recorded adverse remarks stating that on verification of the records pertaining to the grant of land, available in the office of Appellant-State, stating that since the Respondent has not produced the necessary documents to establish the genuineness of the grant, it is prima facie found that she has joined hands in illegal grant of land.

7. It is submitted that on the basis of the report, the Spl. Land Acquisition Officer verified the records and the present case also comes under the points on which such grants are liable to be cancelled by the Investigation Officer report. Therefore, under the principles of natural justice, peremptory notices issued on 17.03.2021 and 22.03.2021 to the grantees who are said to be land losers of the aforesaid Projects/relatives of the land losers/ some others in the name of the land losers, calling upon them to produce the relevant documents to establish that they are the true land losers/grantees, and later a public notice was also published. However, the Respondent herein did not come forward to file any reply or objections.

8. It is submitted that, thereafter the authorities issued a final public notice on 21.06.2021 by publishing the same in newspapers calling upon the concerned grantees to file their reply or objections, if any, by giving 7 days' time till 28.06.2011. in pursuance thereof, the Respondent herein filed his objections along with certain documents. On scrutiny, it was found that the Respondent has not produced the submergence certificate and the declaration certificate obtained from the Judicial Magistrate which are crucial documents for grant of alternative land. Upon verifying the records available in the office of the Appellant-State, it is found that the Respondent has not filed any application for grant of alternative land, or none of the family members of the Respondent has transferred the right to take the grant in writing to any other person and no declaration is filed, and the

declaration as regards the details of all the properties survey number-wise of the land losers in the family is not filed.

9. In case of praying for grant of alternative land, the applicants shall, either at the time of obtaining grant or in advance, compulsorily submit the Submergence Certificate obtained from the Special Land Acquisition Officer (Rehabilitation), Hemavathi Reservoir Project, in respect of their lands submerged in backwaters of the Hemavathi Reservoir Project, so that only the eligible and true land losers shall get the alternative land.

10. The Genealogical Tree certificate by the Tahsildar containing the details of the family to show the relationship of the Applicants with the land loser is not found in the land grant file and the Respondent has also not produced any document to show the submission of such documents.

11. It is submitted that, since the Respondent did not produce any document to establish the genuineness of the grant made in his favour, prima facie there appeared to some illegality in the grant made in favour of the Respondent. Further, on verifying the documents in the land grant file, the documents available are also not tallying and there are number of discrepancies and the Respondent has not furnished the documents required such as (1) Panchayat Katha records, and in case of site/house/building, Demand Register statement, (2) Genealogical Tree of minimum three generations, (3) Submergence Certificate obtained from the Special Land Acquisition Officer (Rehabilitation) for grant of alternative land,

(4) Aadhar Card, (5) Ration Card, (6) Voter ID, (7) Notices issued under Section 4(1) & 6(1) issued to him at the time of acquisition of land, (8) Award statement as regards the acquisition of his land, (9) Receipt for payment of award amount, (10) NOC obtained from the Forest Department and receipt in case any tree-malki is paid, (11) Declaration obtained from the Judicial Magistrate, it prima facie appeared that the grant of land in this case is not regular and the points raised in the report of the 8 Respondent are fortified by these irregularities. The Respondent name and to the details are not properly shown in 4(1) notifications. In any manner the Respondent is not eligible to regrant the lands:- In pursuance to the notice issued by the Inspector of Police, the Respondent has approached the office of the Inspector of Police CEN Crime Police DCRB, Hassan and has also submitted his objections and some documents, he had not furnished all the documents required for considering his case. The Spl. Land Acquisition Officer considering all the aspects reasoned order has passed on 02.06.2023 the Respondent has approached this Hon'ble Court in W.P. No. 2090 of 2024, the learned Single Judge has allowed in part and directed the authorities to restore the entries and calculate the amount pertaining to trees are concerned aggrieved by the same the State preferring this Appeal.

Being aggrieved by the Order dated 01.04.2024 passed by the learned Single Judge of this Hon'ble Court in W.P.No. 2090 of 2024 (KLR-LG), the Appellants have

preferred this Writ Appeal on the following amongst other grounds:-

V. GROUND S

1. That the impugned order passed by the Learned Single Judge is contrary to law, facts and probabilities of the case. Hence, the impugned order in this Writ Appeal calls for interference of this Hon'ble Court and liable to be set aside.

2. It is submitted that, the learned Single Judge allowed in part and set aside the order dated 02.06.2023 passed by the Spl. Land Acquisition Officer, Hemavathi Reservoir Project, Hassan without considering the reasoned order passed by the Spl. Land Acquisition Officer, Hemavathi Reservoir Project, Hassan. Hence, at the hands of this Hon'ble Court needs to interfere.

3. It is submitted that, the grant order has been issued on conditions, if it is found that the grantee has taken land by providing false information, this land grant will be cancelled. This land is granted with the condition that it will be cancelled without any notice if the grantee fails to comply with the grand terms and conditions, if found ineligible for any operation. As it is proven that the Petitioner obtained the land grant by providing false information and submitting false documents, the said land grant has been cancelled. However, the Learned Single Judge has not considered these aspects. Hence, need to interfere.

4. It is submitted that, Section 25 of the Karnataka Land Grant Rules, 1969 provide the authority to cancellation of land

grant "Any grant of land made under these rules shall be liable to be cancelled and the land resumed by the authority which granted it, where the grant has been obtained by making false or fraudulent representations or is contrary to these rules: provided that no such cancellation shall be made without giving the grantee an opportunity of being heard". But the Learned Single Judge has not considered. Hence, at the hands of this Hon'ble Court needs to interfere.

5. It is submitted that, on the basis of the complaints the Government has taken policy decision to conduct enquiry to safe guard the guidelines upon a report of the Enquiry Officer the Spl. Land Acquisition Officer, has acted upon segregating the genuine land losers and who have produced fake documents with colluding with the Revenue Officers has pointed out by the enquiry officer was not at all considered by the learned Single Judge while allowing the Writ Petition. Hence, at the hands of this Hon'ble Court needs to interfere.

6. It is submitted that, the learned Single Judge remanded back to the Spl. Land Acquisition Officer, to have the value of the standing trees in the granted land assessed at the hands of the competent authority. Thereafter, information shall be provided to the Respondent herein in terms of the Rule 11 of the Rules, 1969, if the value is to be paid by the Respondent the grant of the subject land itself is not entitled to the question of quantify the payment of value of trees does not

arise at all this aspect was not considered by the learned Single Judge. Hence, at the hands of this Hon'ble Court needs to interfere.

7. It is submitted that, the constituted revenue entries shall also be restored in the RTC, the positive direction also issued by the learned Single Judge without assigning proper reasons why the Respondent are entitled for grant. since upon the fake documents produced by the Respondents are granted. By virtue of the investigation itself found that the Respondents are not entitled for the grant, this aspect was not properly consider by the learned Single Judge while allowing the Writ Petition. Hence, at the hands of this Hon'ble Court needs to interfere. Rule 25 of the Karnataka Land Grant Rules, 1969, allows for the cancellation of land grants under certain circumstances. The authority that granted the land has the power to cancel it and resume possession if there is a violation of the rules or conditions of the grant.

8. The Appellants/State have not filed any other case or proceedings against the same cause of action except the present Writ Appeal.

9. Viewed from any angle the order under challenge cannot be sustained either in law or on the facts and the same is liable to be set aside.

VI. PRAYER

WHEREFORE, the Appellants - State humbly pray that this

Hon'ble Court may be pleased to:-

- a) ALLOW the Writ Appeal;
- b) SET ASIDE the order passed by the learned Single Judge of this Hon'ble Court in Writ Petition No.2090 of 2024 (KLR-LG); dated 01.04.2024;
- c) Grant such other reliefs as this Hon'ble Court deems fit in the facts and circumstances of the case, in the interest of justice and equity.

LIST OF AUTHORITIES

-NIL-

BENGALURU,
DATED: 05.07.2025


(SHIVAREDDY V.)
ADDL. GOVT. ADVOCATE
AND
ADVOCATE FOR APPELLANT-STATE

VSR:150525:MM:170525:Draft:
D-DRIVE:VSR(F):Drafting/W.P. No. 2090 of 2024

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Petition No.2090/2024(KLR-LG)

BETWEEN:

THE STATE OF KARNATAKA & ORS

...APPELLANTS

AND:

SMT. SHANTHAMMA

...RESPONDENTS

VERIFYING AFFIDAVIT

I, Dr. Manjunatha V. S/o Late Veeranna K., aged about 58 years, working as Special Land Acquisition Officer, Hemavathi Reservoir Project, D.C. Office Building, Hassan District. Today At Bangalore do hereby solemnly affirm and state on as follows:-

1. I submit that I am working as Special Land Acquisition Officer, Hemavathi Reservoir Project, D.C. Office Building, Hassan District. and I know the facts of the case based on available records. I am the Litigation Conducting Officer vide Government Order dated 29.03.2025 authorizing me as Litigation Conducting and Swearing Officer in this case.
2. I State that the averments made in the Writ Appeal para Nos. 01 to 11 of the Brief Facts and grounds urged in Para Nos.01 to 09 Writ Appeal are true to the best of my knowledge, information and belief.
3. I State that the Annexure-A to H of Writ Petition are true copy's furnished by petitioners to Govt Advocate and the Typed and Translation copies of relevant annexures are true copies furnished by Appellants/State.

Bengaluru
Date: 04.07.2025



Identified by *MA*

Advocate/Assistant
O/o Advocate General

DEPONENT

Sworn /Solemnly affirmed and signed before
on this 4 day of 7 20125 at Bengaluru
No. of Corrections 2 H.R.No. 2917 /20 23

Veena
VEENA. K, Advocate & Notary, Bengaluru

22

25798/25

-1-

NC: 2024:KHC:13210
WP No. 2090 of 2024

ha



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THER THE 1ST DAY OF APRIL, 2024

BEFORE

THE HON'BLE MR JUSTICE R DEVDAS

WRIT PETITION NO. 2090 OF 2024 (KLR-LG)

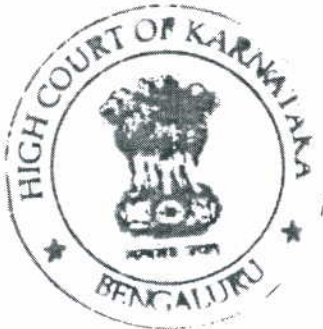
BETWEEN:

SMT. SHANTHAMMA,
W/O. LATE KRISHNE GOWDA,
D/O. LATE PUTTE GOWDA,
AGED ABOUT 70 YEARS,
RESIDENT OF BETTAGALALE VILLAGE,
BELLAME (MARIYANAGARA),
KONANOORU HOBLI,
ARKALGUD TALUK, HASSAN DISTRICT - 573 130.
...PETITIONER
(BY SRI. M.J. ALVA AND SRI. H.M. GIRISHA, ADVOCATE)

AND:

Digitally signed
by
DHARMALINGAM
Location: HIGH
COURT OF
KARNATAKA

1. STATE OF KARNATAKA,
REP. BY ITS PRINCIPAL SECRETARY,
DEPARTMENT OF REVENUE,
M.S. BUILDING,
BANGALORE - 560 001.
2. THE DEPUTY COMMISSIONER,
HASSAN DISTRICT,
HASSAN - 573 201.
3. THE SPECIAL LAND ACQUISITION OFFICER,
HEMAVATHI RESERVOIR PROJECT,
D.C. OFFICE BUILDING,
HASSAN - 573 201.



This Certified copy contains..... 8 pages
And Copying charges with of Rs. 24/-
Received



4. THE ASST. COMMISSIONER,
SAKALESHPUR SUB-DIVISION,
SAKALESHPUR - 573 134.
5. THE TAHSILDAR,
ARKALAGUD TALUK,
HASSAN DISTRICT - 573 102.
6. THE ASST DIRECTOR OF LAND RECORDS,
ARKALGUD TALUK,
HASSAN DISTRICT - 573 102.
7. THE DEPUTY CONSERVATOR OF FOREST,
HASSAN DIVISION,
HASSAN - 570 201.
8. THE INSPECTOR OF POLICE,
CEN CRIME POLICE,
DCRB DIVISION, HASSAN - 573 201.

...RESPONDENTS

(BY SRI. C.N. MAHADESHWARAN, AGA)

THIS WP IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE IMPUGNED ORDER NO.LND/HRP(1)(D).41/2008-09 DTD 02.06.2023 PASSED BY THE SPECIAL LAND ACQUISITION OFFICER, HEMAVATHI RESERVOIR PROJECT, HASSAN / R3 CANCELLING THE GRANT MADE IN FAVOUR OF THE PETITIONER IN RESPECT OF THE SCHEDULE PROPERTY WHICH IS PRODUCED AT ANNEXURE-A AND ETC.

THIS PETITION, COMING ON FOR PRELIMINARY HEARING IN B GROUP, THER DAY, THE COURT MADE THE FOLLOWING:



**ORDER****R.DEVDAS J., (ORAL):**

The petitioner is aggrieved of the impugned order dated 02.06.2023 passed by the Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan, in case No.L.N.D/HRP(1)(D):41/2008-09.

2. The petitioner claims to be the legal representative of late Sri.Putte Gowda, who lost his lands due to submergence of his lands under water on the construction of Hemavathi/Yagachi/Vatehole Reservoir. In terms of the scheme proposed by the State Government, a person who lost land on account of submergence for the project, would not only be entitled for compensation but also entitled for grant of alternative lands to ensure that the livelihood of such agriculturists are not lost. Accordingly, 2 acres 3 guntas of land in Block No.24 of Sy.No.53 of Bettagalale Village, Konanuru Hobli, Arkalagud Taluk was granted to the petitioner. However, several irregularities were found in the matter of allotment of alternative lands. Action was directed by the State Government having regard to such irregularities. The Special Land Acquisition Officer (for short 'SLAO') has passed the



25

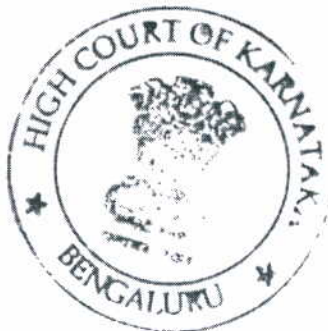
- 4 -



NC: 2024:KHC:13210
WP No. 2090 of 2024

~~impugned order cancelling the grant on the ground that the petitioner did not obtain 'No Objection Certificate' for having paid the price of the malki/standing trees.~~

3. Having regard to the ground on which the order has been passed, learned counsel for the petitioner has drawn the attention of this Court to Rule 11 of the Karnataka Land Grant Rules, 1969 (hereinafter referred to as 'the Rules, 1969', for short). Learned Counsel submits that whenever lands are granted under the provisions of the Rules, 1969, the manner in which the trees grown on the granted lands have been disposed is provided for in the said provision. Learned Counsel submits that sub-rule (1) provides that the authorities of the Forest Department have to value all the trees standing on the granted lands. Sub-rule (2) provides that wherever the value of the trees so assessed is not more than Rs.5,000/- in cases of other cultivable lands, the grantee should be given the option of paying the estimated price; the time to be stipulated by the granting authority and accordingly the trees shall be sold to the grantee. It provides that if the grantee once agrees to pay the value of the trees and defaults to pay the same, it may occasion cancellation of the grant. If the grantee is not willing



26

- 5 -

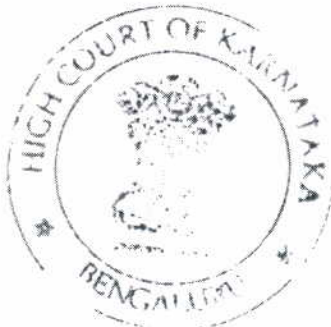
NC: 2024:KHC:13210
WP No. 2090 of 2024



to pay the value of the trees assessed by the Forest Department, the trees shall be disposed of by the authorities of the Forest Department by tender-cum-auction sale. Sub-rule (3) provides that if the value is more than Rs.5,000/- the trees shall be removed by the authorities of the Forest Department within one year from the date of the grant of land. The learned Counsel would therefore submit that when admittedly, the value of the standing trees are not assessed in terms of sub-rule (1) and no intimation is given to the petitioner calling upon her to pay the value, there was no occasion for the competent authority to cancel the grant.

4. In the present case, it has been pointed out from the impugned order itself that the SLAO has not made any statement regarding assessment on the value of the standing trees; and that the petitioner was called upon to pay the value of the standing trees. In that view of the matter, it is submitted that the impugned order cannot be sustained.

5. There is substance in the submissions of the learned Counsel for the petitioner.



27

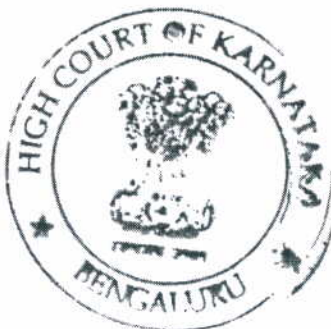
- 6 -

NC: 2024:KHC:13210
WP No. 2090 of 2024



6. Having regard to the express provision contained in Rule 11 of the Rules, 1969, since nothing is found on record to say as to whether the SLAO got fixed the value of the trees at the hands of the authorities of the Forest Department and since it is not stated that the petitioner was called upon to pay the value of the standing trees, this Court is of the opinion that the impugned order passed by the SLAO cancelling the grant cannot be sustained.

7. At ther juncture, the learned AGA appearing on behalf of the respondent-State would submit that the matter may be remanded back to the SLAO to enable the SLAO to have the valuation of the standing trees assessed at the hands of the officials of the Forest Department. Further, although the learned AGA seeks to point out from the impugned order that some observations have been made by the SLAO that relevant records have not been furnished by the petitioner to show whether he is the owner of the land, the extent of land submerged etc., ther Court is of the considered opinion that such observations are general in nature, having regard to the fact that the SLAO was called upon to enquire into all the grants and such observations are general observations and



28

- 7 -

NC: 2024:KHC:13210
WP No. 2090 of 2024



would not be applicable to the petitioner. The factual information and the ground on which the impugned order of cancellation has been passed by the SLAO is the non-payment of the value of the standing trees. Therefore, all other observations made in the impugned order are hereby set aside as not specifically applicable to the petitioner. It is also a fact that the impugned order of cancellation was passed without hearing the grantee and therefore, on the ground of denial of principles of natural justice alone, the impugned order of cancellation is required to be set aside.

8. However, accepting the submission of the learned AGA that an opportunity should be given to the SLAO to have the valuation of the standing trees made at the hands of the competent authority and inform the petitioner regarding the value of the trees and call upon him to pay the same in terms of Rule 11 of the Rules 1969, the Court proceeds to pass the following:

ORDER

- i) Writ petition is ***allowed in part.***
- ii) The impugned order dated 02.06.2023 in case No.LND/HRP(1)(D):41/2008-09 passed by the Special Land Acquisition Officer, Hemavathi



29

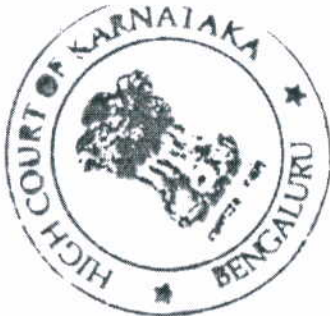
- 8 -



NC: 2024:KHC:13210
WP No. 2090 of 2024

Reservoir Project, Hassan, at Annexure 'A', is hereby quashed and set aside.

- iii) The matter stands remanded back to the SLAO to have the value of the standing trees in the granted land assessed at the hands of the competent authority. Thereafter information shall be provided to the petitioner in terms of Rule 11 of the Rules, 1969, if the value is to be paid by the petitioner.
- iv) On the other hand, if the valuation of the standing trees is more than Rs.5,000/-, as provided in sub-rule (3) of Rule 11 of the Rules, 1969, then the SLAO shall have the trees removed in terms of the provisions contained in sub-rule (3) of Rule 11 of the Rules, 1969.
- v) At any rate, the SLAO shall keep the petitioner informed of her decision having regard to the provisions contained in sub-rule (2) and sub-rule (3) of Rule 11 of the Rules, 1969.
- vi) Consequent to the restoration of the grant in favour of the petitioner, the revenue entries shall also be restored in the RTC.



Sd/-
JUDGE

AMM

List No.: 2 SI No.: 77

- a) The date on which the application was filed 11/6/24
- b) The date on which the application was accepted by the court 11/6/24
- c) The date on which the application was accepted by the court 11/6/24
- d) The date on which the application was accepted by the court 11/6/24
- e) The date on which the application was accepted by the court 11/6/24
- f) The date on which the application was accepted by the court 11/6/24
- g) The date on which the application was accepted by the court 11/6/24
- h) The date on which the application was accepted by the court 11/6/24
- i) The date on which the application was accepted by the court 11/6/24
- j) The date on which the application was accepted by the court 11/6/24
- k) The date on which the application was accepted by the court 11/6/24
- l) The date on which the application was accepted by the court 11/6/24
- m) The date on which the application was accepted by the court 11/6/24
- n) The date on which the application was accepted by the court 11/6/24
- o) The date on which the application was accepted by the court 11/6/24
- p) The date on which the application was accepted by the court 11/6/24
- q) The date on which the application was accepted by the court 11/6/24
- r) The date on which the application was accepted by the court 11/6/24
- s) The date on which the application was accepted by the court 11/6/24
- t) The date on which the application was accepted by the court 11/6/24
- u) The date on which the application was accepted by the court 11/6/24
- v) The date on which the application was accepted by the court 11/6/24
- w) The date on which the application was accepted by the court 11/6/24
- x) The date on which the application was accepted by the court 11/6/24
- y) The date on which the application was accepted by the court 11/6/24
- z) The date on which the application was accepted by the court 11/6/24

TRUE COPY

12/6/24
Section Officer
High Court of Karnataka
Bengaluru
13/6/24

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WP NO. 2090 OF 2024 (KLR - LG)

Between:

Smt. Shanthamma

Petitioner

And:

The State of Karnataka
& 7 others

Respondents

SYNOPSIS

Sl.No	Date	Event
1	19.10.1968	The cultivating land father of the petitioner deceased Putte Gowda was acquired due to submergence of the same in Hemavathi Reservoir Project and award was passed granting compensation for the acquired land.
2	03.02.1971	The Government of Karnataka had reserved lands for granting the same to the displaced person who had lost their cultivating lands due to the submergence of the same in Hemavathi Reservoir Project.
3	24.06.2071	In the rehabilitation package the Government of Karnataka had fixed 4-00 acres of dry land as the lands to be granted to the displaced persons vide GO No. RD 126 AGH 68 Bengaluru.
4	29.10.2010	R3 had granted the schedule property to the petitioner in the Rehabilitation package in lieu of their lost land.
5	24.05.2011	On the request letter of the R5 the Jonal Forest Officer who is subordinate officer of R7 had made spot inspection and submitted his report to the R5 that there is no trees are existed in the schedule property therefore, fixing the value of the grown trees doesn't arise.
6	04.06.2011	Before issuing saguvali chit to the petitioner the R5 had made spot inspection and confirmed that there are no trees are existed in the schedule granted land and the petitioner is already having possession on the same by growing Jowar crop.

7	29.06.2011	R5 had issued Saguvali chit to the petitioner and put her in possession of the schedule property and as per that revenue records are transferred to her name.
8	02.06.2023	R3 had passed the impugned order cancelling the grant made in favour of the petitioner which is challenged in this writ petition.

BRIEF GROUNDS FOR THE RELIEF

The petitioner is the successor in interest of the displaced person deceased Mr. Putte Gowda who is the father of the petitioner and who had lost his valuable cultivating lands due to the submergence of the same in Hemavathi Reservoir Project. In the rehabilitation scheme the lands were reserved by the Government in terms of Section 71 of the Karnataka Land Revenue Act. Due to the persistent demands made by the petitioner the schedule property was granted to her and she was put in possession of the same with the issue of Saguvali chit. There were similar claims made by others also and it appears that there were some allegations of false claim against others for which Respondent No.3 is said to have published General notice in Newspaper calling for objections and the same is not within the knowledge of the petitioner no individual notices were served upon the petitioner and without providing any opportunity of being heard the impugned order came to be passed against the petitioner which is challenged in this writ petition.

2. The cancellation of the granted land of the petitioner with the issue of Saguvali chit at Annexures 'D' and 'E' holding that the value of the grown trees in the schedule property was not collected before issuing the Saguvali Chit to

...3/-

the same or for not obtained NOC from the Forest Department, despite the fact that the said land doesn't belong to Forest Department and that the same is the land reserved exclusively for granting under the rehabilitation package as per the notification dated 03.02.1971 at Annexure 'B1' U/s 71 of KLR Act.

3. The schedule property was not at all transferred to any Authority at any point of time and therefore the question of growing trees by any such Authority or obtaining NOC from the Forest Department for the said land does not arise. After grant of the schedule land in favour of the petitioner by the respondent No.3 in furtherance of said grant for issuance of Saguvali Chit on the directions of the respondent No.3 the respondent No.5 had issued letter to the subordinate officers of the respondent No.7 for fix the value of the grown trees in the schedule granted for that Jonal Forest officer of Arkalgud Taluk had made spot inspection and reported on 24.5.2011 that there is no trees are existed in the schedule land therefore for fixing the value of the grown trees does not arise as per Annexure-D1 and the respondent No.5 himself had made spot inspection of the schedule property and confirmed that there is trees and the schedule property is already having possession by the petitioner and cultivated the same by growing Jowar crop which is evident from Annexure-D2. Despite completely ignored same by the respondent No.3 and passed the impugned order at Annexure-A is unsustainable and the same is error of law and error of jurisdiction.

Therefore, the impugned order is apparently bad in law and the same is against the petitioner passed without jurisdiction. Hence the writ petition with prayer for interim relief.

Bengaluru
Date: 17.01.2024

ADVOCATE FOR PETITIONER

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
(ORIGINAL JURISDICTION)

W.P. NO.

OF 2024(KI R - LG)

Between:

Smt. Shanthamma
W/o. Late Krishna Gowda
D/o. Late Putte Gowda
Aged about 70 years
Resident of Bettagalale Village,
Bellame (Mariyanagara)
Konanooru Hobli,
Arkalgud Taluk
Hassan District - 573 130,

Petitioner

And:

1. State of Karnataka
Rep. by its Principal Secretary
Department of Revenue
M.S. Building
Bengaluru - 560 001
2. The Deputy Commissioner
Hassan District
Hassan - 573 201
3. The Special Land Acquisition Officer
Hemavathi Reservoir Project
DC Office Building
Hassan - 573 201
4. The Asst. Commissioner
Sakaleshpur Sub-Division
Sakaleshpur - 573 134
5. The Tahsildar
Arkalgud Taluk
Hassan District - 573 102.
6. The Asst. Director of Land Records
Arkalgud Taluk
Hassan District - 573 102
7. The Deputy Conservator of Forest
Hassan Division
Hassan - 570 201

34
-5-
8. The Inspector of Police
CEN Crime Police, DCRB Division
Hassan - 573 201

Respondents

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 & 227 OF
THE CONSTITUTION OF INDIA

The petitioners above named submit as follows:

1. Being aggrieved by the order No LND(HRP)100/D. 47/2008-09 dated 02.06.2023 passed by the learned Special Land Acquisition Officer respondent No.3 cancelling the grant made in favour of the petitioner in respect of the land measuring 2 acres 3 guntas in Sy.No. 53, Block '24' of Bettagalale Village, Konanuru Hobli, Arkalagud Taluk, Hassan District, the petitioner files this petition for quashing the same. The certified copy of the impugned order is herewith produced as Annexure 'A'.

FACTS OF THE CASE

2. The Father of the petitioner Mr. Putte Gowda who had lost his termie agricultural cultivating land in Sy.No 18-4, 18-7, 23-6 and others of Konapura Village, Hassan Taluk, Hassan District due to the submergence of the same in Hemavathi Reservoir Project. In the rehabilitation scheme the Government of Karnataka had reserved lands for allotment of the same to the displaced persons as they had lost their livelihood vide Notification No.LND(II)PR.509.C.10522/69-70 dated 03.02.1971 in terms of Section 71 of the Karnataka Land Revenue Act in addition to the payment of compensation for the lands so acquired. The award passed by the Respondent No.3 in favour father of the petitioner deceased Putte Gowda in LAC proceedings is herewith produced as Annexure 'B'. The copy of the notification dated 03.02.1971 published by the Government of Karnataka reserving the land including the

schedule property is herewith produced as Annexure 'B1'. In the rehabilitation package the Government of Karnataka had fixed 4-00 acres of dry land as the lands to be granted to the displaced persons vide GO No. RD 126 AGH 68 Bengal dated 24.6.1971. A copy of the said notification is herewith produced as Annexure 'C'.

3. The petitioner submit that the award was passed in the name of Father of the petitioner Mr. Putte Gowda who had received the compensation and subsequently he was died. The Petitioner was pursuing the matter for grant of the lands in the rehabilitation scheme and he had made several representations for grant of land to her. The application submitted by the petitioner considered by following the due procedure of law.

4. After considering the reports of the Revenue Authorities and the respondent No 3 himself had made spot inspection on 27.05.2010 and by verifying all the revenue records, the respondent No.3 had granted the land measuring 2 acres 3 guntas in Sy.No. 53, Block 24 of Bettagalale Village, Konanuru Hobli, Arkalgud Taluk, Hassan District, which is morefully described in the schedule hereunder and hereinafter referred to as the 'schedule property' in this petition for reference and convenience. The copy of the said grant order dated 29.10.2010 is herewith produced as Annexure 'D'. In furtherance of said grant in favour of the petitioner before issue of Saguvali Chit as per the direction of respondent No.3 the respondent No.5 had issued the letter to the subordinate officers of the respondent No.7 on 26.03.2011 for fix the value of the grown trees in the schedule land for that the subordinate officers of the respondent No.7 who is the Jonal Forest officer of Arkalgud Taluk were made spot inspection and submitted detailed report to the respondent No.5 on 24.05.2011 stated that there is no trees are existed in the schedule granted land therefore, for fixing the value of the grown trees does not arise. The copy of the same is herewith produced as Annexure-D1. Before issuing saguvali chit to the granted land in favour of the petitioner the R5 had made spot inspection on

04.06.2011 and confirmed that there is no trees are existed in the schedule granted land and the petitioner is already having possession on the same by growing Jowar crop. The copy of the same is herewith produced as Annexure-D2. Thereafter the respondent No.5 had issued the Saguvali chit in Form- 1 and put the petitioner in possession of the same on 29.06.2011. The copy of the grant certificate/Saguvali chit is herewith produced as Annexure 'E'. Accordingly, the Mutation entries and RTC were got transferred into the name of the petitioner. The copies of the Mutation register extract and the RTC are herewith produced as Annexures 'F' and 'F1'. The petitioner is having penstul possession and constructed the residential house in the schedule property and residing permanently with her family by cultivating the same for showing the same the colour photos are herewith produced as Annexure 'G' & 'G1'. The petitioner is the senior citizen for showing the same copy of her Aadhar card is herewith produced as Annexure 'H'.

5. The petitioner submit that certain allegations of false claims were made in respect of the grant of lands in the rehabilitation package by the public and the same appears to have been referred to the Inspector of Police, CEN Crime Police station, Hassan/Respondent No.8 General notice appears to have been published in newspaper. But no individual notices were served upon the petitioner. The petitioner had voluntarily appeared before the Respondent No.3 and submitted all the documentary evidences pertaining to her title to the schedule property. But without holding proper enquiry in the matter despite having submitted all the documentary evidences pertaining to her title to the schedule property, the respondent No.3 had informed the petitioner that the grant made in her favour is cancelled as per the impugned order at Annexure 'A' and in furtherance of the same, the revenue records were reverted back the Government immediately.

6. Thus being highly aggrieved by the impugned order at Annexure 'A' passed by the Respondent No.3 cancelling the grant made in favour of the petitioner and also cancelling the revenue entries of the same from the name of the petitioner to the Government and left with no other alternative and efficacious remedy, the petitioner is constrained to file this writ petition for quashing the same on the following among other.

G R O U N D S

7. The order impugned dated 02.06.2023 passed by the respondent No.3 at Annexure 'A' cancelling the grant made in favour of the petitioner in respect of the schedule property is illegal, improper, perverse and the same is an error apparent on the face of the records. Hence the impugned order is liable to be quashed.

8. The respondent No.3 had failed to notice that the schedule property was not transferred to any Authority/ Forest Department and the same is the land exclusively reserved by the Government of Karnataka under Section 71 of the Karnataka Land Revenue Act, as per the notification dated 03-02-1971 at Annexure 'B1' for the specific purpose of granting the same to the displaced persons in Hemavathi Reservoir Project. Therefore, the question of Forest Department growing the trees in the schedule property or obtaining their NOC does not arise. Therefore, the impugned order suffers from error of law and error of jurisdiction.

9. The respondent No.3 had misdirected himself about the circumstances under which the enquiry was held by the respondent No.8 pertaining to false claims made for grant of land. The respondent No.8 had to confine and restrict himself only regarding the matter in issue before him. Therefore, the respondent No.3 had no jurisdiction to cancel the grant on the premise that the value of the grown trees is not paid or obtaining NOC doesn't arise. In view of the same the impugned order is apparently illegal and the same is passed without jurisdiction.

10. The respondent No.3 himself had made spot inspection on 27.5.2010 and his subordinate officials are submitted detailed report pertaining to the availability of land for grant of the same infavour of the petitioner under the scheme of Hemavathi Reservoir Project and the schedule land was exclusively reserved for grant of displaced persons from Hemavathi Reservoir Project as per Annexures 'B1'. Therefore, the cancellation of the grant under the premise of the non-payment of the malki of grown trees or obtaining NOC from Forest Department will never arise. The impugned order is bad in law and the same suffers from patent illegality and procedural irregularity. The matter has already been covered by the decision of the Division Bench of this Hon'ble Court in the case of Deputy Commissioner V/s Aravinda and another reported in 2016(2) KCCR 1576.

11. After grant of the schedule land in favour of the petitioner by the respondent No.3 in furtherance of said grant for purpose issuance of Saguvali Chit on the directions of the respondent No.3 the respondent No.5 had issued letter to the Forest Department/respondent No.7 on 23.03.2011 for submit the report about fix the value of the grown trees in the schedule granted land and as per that, the Jonal Forest officer of Arkalgud Taluk had made spot inspection of the schedule property and submitted their detailed report to the respondent No.5 on 24.05.2011 that there is no trees are existed in the schedule land therefore for fixing the value of the grown trees does not arise and respondent No.5 had made spot inspection on 04.06.2011 and he confirmed that the petitioner is already having possession by cultivating the same which is clearly discloses at Annexures 'D1&'D2' itself. Therefore, the cancellation of grant under the premise of non-payment of malki of grown trees or obtaining NOC does not arise. The impugned order passed by the respondent No.3 at Annexure-A without considering factual position of the schedule granted land there is gross violation of principles of natural justice and unheard the petitioner in violation of Articles 14 & 15 of the constitution of India.

12. Without admitting the existence of trees and the rights of the Authority, if any, the petitioner submits that the petitioner is the grantee of the land and it is for the concerned Authorities to fix the value of the grown trees or for obtaining NOC. It was the duty of the respondent No.3 himself to correspond with the concerned Departments and fulfill any of other statutory obligations if existed and to grant the land free from all and any encumbrance. The respondent No.3 himself had granted the land to the petitioner and therefore he has no Authority or jurisdiction to cancel the same for non-compliance of any statutory obligations by himself. In view of the same the impugned order is perverse and the same has resulted in gross failure of justice.

13. The respondent No.3 cannot fix the liability upon the petitioner for any lapses on its part and the respondent No.3 cannot cancel the grant under the same pretext. The grant made in favour of the petitioner under the Grant Order dated 29.10.2010 at Annexure 'D' is in respect of 2 acres 3 guntas of land as described in the schedule to this petition. Therefore, the impugned order is passed by respondent No.3 contrary to his own records and the same is liable to be nullified by this Hon'ble Court.

14. The passing of the impugned order amounts to victimization of the petitioner for the omissions and commissions of the respondent No.3 himself. The respondent No.3 has failed to notice that the land was exclusively reserved U/s 71 of K.L.R Act and it was not transferred to any other Department at any point of time. Hence the Forest Department has nothing to do with the schedule property and therefore the question of fixing of the value of the trees for the alleged trees grown therein does not arise.

15. In this petition the petitioner has not challenged the legal and constitutional validity of any Central or State enactment and no other writ petition is filed by the petitioner on the same cause of action and for the same relief.

GROUNDS FOR INTERIM RELIEF

16. The petitioner submits that the respondent No.3 has cancelled the grant and directed the respondent Nos.4 to 6 to restore the revenue entries to the original position as was found before the grant made in favour of the petitioner and already reverted back the revenue entries. In view of the cancellation of the grant, the respondents are likely to take coercive steps to dispossess the petitioner and in such an event the petitioner will be put to irreparable injury and injustice which cannot be compensated by any means and the same will amount to gross failure of justice. Hence it is just and necessary to stay the operation, effect and enforcement of the impugned order dated 02-06-2023 at Annexure 'A' in respect of the schedule property pending disposal of the above writ petition.

P R A Y E R

Wherefore, the petitioner prays for the following reliefs:

- i) Issue a writ of certiorari or any other writ, order or direction quashing the impugned order No.LND/HRP(1)(D):41/2008-09 dated 02.06.2023 passed by the Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan/respondent No.3 cancelling the grant made in favour of the petitioner in respect of the schedule property which is produced at Annexure 'A'.
- ii) Direct the Respondent No.5 to restore the revenue entries of the schedule property in to the name of the petitioner as per grant order dated 29.10.2010 in No.HRP(1)(D): 41/08-09 at Annexures 'D'.
- iii) Grant cost of this petition.
- iv) And also grant such other and further reliefs as this Hon'ble Court deems fit considering the facts and circumstances of the case, to meet the ends of justice.

2/1

-12-

9

INTERIM PRAYER

Pending disposal of the above writ petition, the petitioner most respectfully prays that this Hon'ble Court be pleased to stay the operation, effect and enforcement of the impugned order No.LND/HRP(1)(D): 41/2008-09 dated 02.06.2023 passed by the Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan respondent No.3 in respect of the schedule property which is produced at Annexure 'A'

SCHEDULE

All that piece and parcel of the dry land measuring 2-00 acres 3 guntas in Sy.No. 53, Block '24' of Bettagalale Village, Konanuru Hobli, Arkalagud Taluk, Hassan District.

Bengaluru

Date: 17.01.2024

ADVOCATE FOR PETITIONER

Address for service;

M.J.Alva & Co. H. M. KRISHNA
Advocates
No.54/T, Nanjappa Road
Shanti Nagar,
Bengaluru - 560 027.

9844023589, 9743105565

Tejannath - alva @ gmail.com

49

-13-

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WP NO.

OF 2023(KLR - LG)

Between:

Smt. Shanthamma

: Petitioner

And:

The State of Karnataka
& 7 others

: Respondents

VERIFYING AFFIDAVIT

I, Shanthamma W/o Late Krishne Gowda, aged about 70 years, Resident of Bettagalale Village, Bellame (Mariyanagara) Konanooru Hobli, Arkalgud Taluk, Hassan District - 573 130, now having come to Bengaluru City, do hereby solemnly affirm and state on oath as follows:

1. I am the petitioner in the above petition. As such I am fully acquainted with the facts of the case and accordingly I swear to this affidavit.

2. I submit that the averments made in paras 1 to 6 in the accompanying petition are true and correct to the best of my knowledge and information and the averments made in para 7 to 16 thereof are true and correct to the best of my information and belief and I believe them to be true.

3. I submit that Annexure 'A' is the certified copy and Annexure 'B' 'B1', 'C', 'D', 'D1', 'D2', 'E', 'F', 'F1', 'G', 'G1' and 'H' are the copies of the originals.

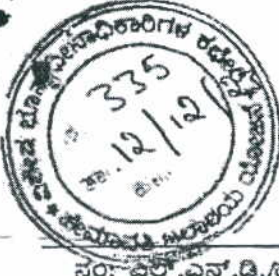
IDENTIFIED BY ME

DEPONENT

ADVOCATE

Bengaluru
Date: 17.01.2024

SWORN TO BEFORE ME



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಯವರ ಕಾರ್ಯಾಲಯ,

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಛೇರಿ ಕಟ್ಟಡ, ಹಾಸನ

ನಂ: ಜಿ.ಎನ್.ಡಿ./ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09

ದಿನಾಂಕ: 02-06-2023

ಉಪಸ್ಥಿತರು: ಡಾ. ಮಂಜುನಾಥ. ವಿ. ಕೆ.ಎ.ಸಿ.

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು,

ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ, ಹಾಸನ.

ವಾದಿಗಳು.

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿಗಳು

ಪೊಲೀಸ್ ನಿರೀಕ್ಷಕರು.

ಡಿ.ಸಿ.ಆರ್.ಬಿ ವಿಭಾಗ, ಹಾಸನ.

(ಸಿ.ಇ.ಎನ್. ಕ್ರೈಂ ಪೊಲೀಸ್, ಹಾಸನ)

ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ|| ಕೃಷ್ಣೇಗೌಡ,

ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮ, ಕೋಣನೂರು ಹೋಬಳಿ,

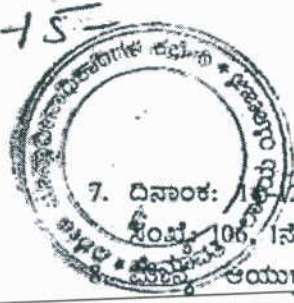
ಆರಕಲಗೂಡು ತಾಲ್ಲೂಕು, ಹಾಸನ ಜಿಲ್ಲೆ.

ಪ್ರಸ್ತಾವನೆ:-

ಹೇಮಾವತಿ/ ಯಗಚಿ/ ವಾಟಿಹೊಳೆ ಜಲಾಶಯ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಜಮೀನು ಕಳೆದುಕೊಂಡ ಸಂತ್ರಸ್ತರಿಗೆ ಜಮೀನು ಮಂಜೂರು ಮಾಡುವ ವಿಚಾರದಲ್ಲಿ ಅಧಿಕಾರಿಗಳನ್ನು ದುರ್ಬಳಕೆ ಮಾಡಿಕೊಂಡು ಭೂಸಂತ್ರಸ್ತರಿಗೆ ಮೀಸಲಿರಿಸಲಾದ ಜಮೀನನ್ನು ಕಾನೂನು ಬಾಹಿರವಾಗಿ ನಕಲಿ ದಾಖಲೆಗಳನ್ನು ಸೃಷ್ಟಿಸಿ ಕರ್ತವ್ಯ ಲೋಪ ಎಸಗಿರುವ ಅಧಿಕಾರಿ/ ನೌಕರರ ವಿರುದ್ಧ ನಿಯಮಾನುಸಾರ ಶಿಸ್ತಿನ ಕ್ರಮ ಜರುಗಿಸುವಂತೆ ಈ ಕೆಳಗಿನಂತೆ ದೂರುಗಳು ಸರ್ಕಾರಕ್ಕೆ ಸಲ್ಲಿಕೆಯಾಗಿದ್ದು,

1. ಜಿಲ್ಲಾಧಿಕಾರಿ, ಹಾಸನ ಜಿಲ್ಲೆ ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ: ಎಲ್.ಎನ್.ಡಿ. (2) 788/2016-17 ದಿನಾಂಕ: 03-10-2019 ಮತ್ತು 20-12-2019.
2. ಕರ್ನಾಟಕ ರಾಜ್ಯ ರೈತರ ಸಂಘ, ಹಾಸನ ಘಟಕ, ಪಶ್ಚಿಮಘಟ್ಟ ಉಳಿಸಿ ವೇದಿಕೆ, ಸಂಘಗಳ ಒಕ್ಕೂಟ, ಹಾಸನ ಜಿಲ್ಲಾ ಘಟಕ ಮತ್ತು ಇತರರು ಸಲ್ಲಿಸಿರುವ ದೂರು ಮನವಿ ದಿನಾಂಕ: 15-10-2019.
3. ಶ್ರೀ ಪೂರ್ಣಚಂದ್ರ ತೇಜಸ್ವಿ, ಶ್ರೀ ಲೋಕೇಶ್, ಶ್ರೀ ಭರತ್ ಜೆ. ಶ್ರೀ ಬಿ. ಜಿ. ರಂಗಸ್ವಾಮಿ, ಶ್ರೀ ಎಸ್. ದ್ಯಾವೇಗೌಡ, ವಕೀಲರು, ಹಾಸನ ಜಿಲ್ಲೆ ಇವರುಗಳು ಸರ್ಕಾರಕ್ಕೆ ಸಲ್ಲಿಸಿರುವ ಮನವಿಗಳು ದಿನಾಂಕ: 28-11-2019, (5 ಅರ್ಜಿಗಳು), 01-12-2019 (3 ಮನವಿಗಳು), 03-12-2019 ಮತ್ತು 07-12-2019.
4. ಶ್ರೀ ದ್ಯಾವೇಗೌಡ, ಅಧ್ಯಕ್ಷರು, ಜನತಾದಳ (ಜಾತ್ಯಾತೀತ) ಆರಕಲಗೂಡು ತಾಲ್ಲೂಕು, ಮಾಜಿ ಅಧ್ಯಕ್ಷರು, ಜಿಲ್ಲಾ ಪಂಚಾಯತಿ, ಹಾಸನ ಹಾಗೂ ಅಧ್ಯಕ್ಷರು, ಜಿಲ್ಲಾ ಜನತಾದಳ, ಕಾನೂನುವಿಭಾಗ, ಹಾಸನ ಇವರು ಸಲ್ಲಿಸಿರುವ ದೂರು ಮನವಿ ದಿನಾಂಕ: 06-12-2019 (4 ಮನವಿಗಳು) ಮತ್ತು 07-12-2019.
5. ಶ್ರೀ ಬಿ. ಸಿ. ಗೌಡೇಗೌಡ, ಶ್ರೀ ಮಂಜುನಾಥ್, ಶ್ರೀ ಶೇಷಗಿರಿ ಮತ್ತು ಇತರರು ಆರಕಲಗೂಡು ತಾಲ್ಲೂಕು ಸಾರ್ವಜನಿಕರು ಸರ್ಕಾರಕ್ಕೆ ಸಲ್ಲಿಸಿರುವ ದೂರು ಮನವಿಗಳು ದಿನಾಂಕ: 06-12-2019 ಮತ್ತು 07-12-2019 (2 ಮನವಿಗಳು).
6. ಮಾನ್ಯ ಶಾಸಕರು, ಸಕಲೇಶಪುರ, ಹೊಳೆನರಸೀಪುರ, ಆಲೂರು, ಅರಸೀಕೆರೆ, ಶ್ರವಣಬೆಳಗೊಳ ಮತ್ತು ಬೇಲೂರು, ವಿಧಾನಸಭಾ ಕ್ಷೇತ್ರ ಇವರುಗಳು ಮಾನ್ಯ ಕಂದಾಯ ಸಚಿವರಿಗೆ ಮತ್ತು ಮಾನ್ಯ ಗೃಹಸಚಿವರುಗಳಿಗೆ ಮತ್ತು ಸರ್ಕಾರದ ಮುಖ್ಯಕಾರ್ಯದರ್ಶಿಗಳು, ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಇವರುಗಳಿಗೆ ಸಲ್ಲಿಸಿರುವ 4 ಮನವಿಗಳು ದಿನಾಂಕ: 23-12-2019.

[Signature]
02/06



7. ದಿನಾಂಕ: 16-12-2021 ರಂದು ನಡೆದ 15ನೇ ವಿಧಾನಸಭೆ ಸಾರ್ವಜನಿಕ ಲೆಕ್ಕಪರಿಶೋಧನಾ ಸಮಿತಿ, ಕೊಡಗಿ ಸಂಖ್ಯೆ-106, 1ನೇ ಮಹಡಿ, ವಿಧಾನಸೌಧ, ಬೆಂಗಳೂರು ರವರ ಸಭಾ ನಡಾವಳಿ ಮತ್ತು ನಿರ್ದೇಶನಗಳು.

ಆಯುಕ್ತರು, ರಾಜ್ಯ ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ ಹಾಗೂ ಪದನಿಮಿತ್ತ ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕಂದಾಯ ಇಲಾಖೆ, ಬೆಂಗಳೂರು ರವರ ದಿನಾಂಕ: 03-03-2022, 18-06-2022, 29-09-2022 ಮತ್ತು 09-01-2023ರಸಭಾ ನಡಾವಳಿ ಮತ್ತು ನಿರ್ದೇಶನಗಳು.

ಮೇಲ್ಕಂಡ ಮನವಿಗಳನ್ನು ಸರ್ಕಾರ ಗಂಭೀರವಾಗಿ ಪರಿಗಣಿಸಿ, ಮೇಲಿನ ಕ್ರಮ ಸಂಖ್ಯೆ (2) ರಿಂದ (6) ರವರೆಗೆ ಸಲ್ಲಿಸಿರುವ ದೂರು ಅರ್ಜಿಗಳಲ್ಲಿ ಹೇಮಾವತಿ/ ಯಗಚಿ/ ವಾಟೇಹೋಳೆ ಜಲಾಶಯ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಜಮೀನು ಕಳೆದುಕೊಂಡ ಸಂತ್ರಸ್ತರಿಗೆ ಜಮೀನು ಮಂಜೂರು ಮಾಡುವ ವಿಚಾರದಲ್ಲಿ ಅಧಿಕಾರಿಗಳನ್ನು ದುರ್ಬಳಕೆ ಮಾಡಿಕೊಂಡು, ಭೂಸಂತ್ರಸ್ತರಿಗೆ ಮೀಸಲಿರಿಸಲಾದ ಸಾವಿರಾರು ಎಕರೆ ಜಮೀನನ್ನು ಕಾನೂನುಬಾಹಿರವಾಗಿ ನಕಲಿ ದಾಖಲೆಗಳನ್ನು ಸೃಷ್ಟಿಸಿ, ಕರ್ತವ್ಯಲೋಪ ಎಸಗಿರುವ ಅಧಿಕಾರಿ/ ನೌಕರರ ವಿರುದ್ಧ ಶಿಸ್ತಿನ ಕ್ರಮ ಜರುಗಿಸುವಂತೆ ಸರ್ಕಾರವನ್ನು ಕೋರಿರುತ್ತಾರೆ.

ಸದರಿ ದೂರು ಅರ್ಜಿಗಳಲ್ಲಿ ಪ್ರಸ್ತಾಪಿಸಿರುವ ವಿಷಯಗಳ ಬಗ್ಗೆ ಜಿಲ್ಲಾಧಿಕಾರಿ, ಹಾಸನ ಜಿಲ್ಲೆ ರವರು ಮೇಲೆ ಓದಲಾದ ಕ್ರಮ ಸಂಖ್ಯೆ (1) ರಲ್ಲಿನ ಪತ್ರ ದಿನಾಂಕ: 03-10-2019 ಮತ್ತು ದಿನಾಂಕ: 20-12-2019 ರಲ್ಲಿ ಸರ್ಕಾರಕ್ಕೆ ವರದಿ ಸಲ್ಲಿಸಿ, ಹಾಸನ ಜಿಲ್ಲೆಯ ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆಯ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಿಗೆ ಪುನರ್ವಸತಿ ಅಡಿಯಲ್ಲಿ ಬದಲಿ ಭೂಮಂಜೂರಾತಿ ಮಾಡಲು ಕಾಯ್ದಿರಿಸಿರುವ ಭೂಮಿಯನ್ನು ಅಕ್ರಮವಾಗಿ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಲ್ಲದವರಿಗೆ ಮಂಜೂರು ಮಾಡಿರುವ ಬಗ್ಗೆ 2015-16 ನೇ ಸಾಲಿನಿಂದ ಎಲ್ಲಾ ಭೂಮಂಜೂರಾತಿ ಕಡತಗಳನ್ನು ಪರಿಶೀಲನೆ ನಡೆಸಿ ಕಡತದಲ್ಲಿ ಲಭ್ಯವಿರುವ ದಾಖಲಾತಿಗಳ ನೈಜತೆಯನ್ನು ಪರಿಶೀಲಿಸಿ ವಸ್ತುನಿಷ್ಠ ವರದಿಯನ್ನು ಸಲ್ಲಿಸಲು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಹಾಸನ ಉಪವಿಭಾಗ, ಹಾಸನ ಇವರ ನೇತೃತ್ವದಲ್ಲಿ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಸಕಲೇಶಪುರ ಉಪವಿಭಾಗ, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ, ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ, ಹಾಸನ ಮತ್ತು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ, ಎತ್ತಿನಹೊಳೆ ಯೋಜನೆ, ಹಾಸನ ಇವರುಗಳನ್ನು ಒಳಗೊಂಡಂತೆ ತನಿಖಾತಂಡವನ್ನು ರಚಿಸಲಾಗಿರುತ್ತದೆಂದು ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ವರದಿಯಲ್ಲಿ ತಿಳಿಸಿದ್ದಂತೆ, ಮೇಲೆ ವಿವರಿಸಿರುವಂತೆ ಉಪವಿಭಾಗಾಧಿಕಾರಿ, ಹಾಸನ ಜಿಲ್ಲೆ, ಇವರ ನೇತೃತ್ವದಲ್ಲಿ ಸೃಜನೆಯಾದ ತನಿಖಾ ತಂಡವು 2015-16 ನೇ ಸಾಲಿನಿಂದ ಈ ತಹಶೀಲ್ದಾರಿಗೆ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಿಗೆ ಜಮೀನು ಮಂಜೂರಿಯಾಗಿರುವ ಎಲ್ಲಾ ಪ್ರಕರಣಗಳನ್ನು ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲನೆ ನಡೆಸಿರುತ್ತಾರೆ. ಪರಿಶೀಲನೆಯಂತೆ ಒಟ್ಟು 979 ಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳ ಪೈಕಿ 569 ಪ್ರಕರಣಗಳು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಜಮೀನು ಮಂಜೂರು ಮಾಡಿ ಆದೇಶಿಸಿದ ಪ್ರಕರಣಗಳು ಆಗಿರುತ್ತವೆ ಮತ್ತು ಉಳಿದ 414 ಪ್ರಕರಣಗಳು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಿಂದ ಮಂಜೂರಾಗದೆ ಅಧಿಕಾರಿಗಳ ಸಹಿಯನ್ನು ನಕಲು ಮಾಡಿದ್ದು, ಸೃಷ್ಟಿಕೃತ ದಾಖಲೆಯಿಂದ ಕೂಡಿರುತ್ತದೆ ಮತ್ತು ಮಂಜೂರಾತಿ ದಾಖ್ತು ಕೆಲವು ಪ್ರಕರಣಗಳು ಈಗಾಗಲೇ ಕ್ರಯ-ವಿಕ್ರಯಗೊಂಡಿರುತ್ತವೆ. ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳ ಕಛೇರಿಯಿಂದ ರವಾನೆಯಾದ ನೈಜ ಪ್ರಕರಣಗಳಲ್ಲಿಯೂ ಸಹ ಕಡತದಲ್ಲಿ ದಾಖಲೆ ಸಮರ್ಪಕವಾಗಿ ಇಲ್ಲದೆ ಇರುವುದು ಕಂಡುಬಂದಿರುತ್ತದೆ ಎಂದು ತನಿಖಾ ವರದಿಯಲ್ಲಿ ತಿಳಿಸಿರುತ್ತಾರೆ.

ಈ ರೀತಿ ಅನಧಿಕೃತವಾಗಿ ಮಂಜೂರಾಗಿರುವ 414 ಪ್ರಕರಣಗಳ ಮಂಜೂರಾತಿಯನ್ನು ರದ್ದುಪಡಿಸಲು ಹಾಗೂ ತದನಂತರ ಜಮೀನು ಮಂಜೂರು ಮಾಡಿಸಿಕೊಂಡಿರುವವರ ವಿರುದ್ಧ ಕ್ರಿಮಿನಲ್ ಮೊಕದ್ದಮೆ ದಾಖಲಿಸಲು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗೆ ನಿರ್ದೇಶನ ನೀಡಿರುವ ಬಗ್ಗೆ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಹಾಸನ ಇವರು ಸರ್ಕಾರಕ್ಕೆ ವರದಿ ಮಾಡಿದಂತೆ, ದಿನಾಂಕ: 30-06-2018 ರಂದು ಒಟ್ಟು 2425 ಅರ್ಜಿಗಳು ಭೂಮಂಜೂರಾತಿಗಾಗಿ ಬಾಕಿ ಯಿದ್ದು, ಸದರಿ ಅರ್ಜಿಗಳನ್ನು ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲನೆ ನಡೆಸಿ, ಅಗತ್ಯ ದಾಖಲೆಗಳೊಂದಿಗೆ ಆಯಾ ಉಪವಿಭಾಗದ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ, ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ-(ಪು) ಹಾಸನ, ತಹಸೀಲ್ದಾರ್ ಮತ್ತು ಭೂದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರನ್ನು ಒಳಗೊಂಡಂತೆ ಸಮಿತಿಯನ್ನು ರಚಿಸಲಾಗಿದ್ದು, ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆಯ ಮುಳುಗಡೆ ರೈತರಿಗೆ ಜಮೀನು ಮಂಜೂರು ಮಾಡುವ ಸಂಬಂಧ ಭೂಮಂಜೂರಾತಿ ಪರಭಾರೆ ಅವಧಿಯ ಷರತ್ತನ್ನು ಹಿಂಪಡೆದಿರುವುದು ಈ ಎಲ್ಲಾ ಗೊಂದಲಕ್ಕೆ ಹಾಗೂ ಅಕ್ರಮ

2
24/6



ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ಕಾರಣವಾಗಿರುವುದರಿಂದ, ಪರಭಾರೆ ನಿಷೇಧ ಆದೇಶವನ್ನು ಜೋರಡಿಸಲು ಸರ್ಕಾರವನ್ನು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು. ಹಾಸನ ಜಿಲ್ಲೆ ಇವರು ಕೋರಿ ಮೇಲಿನಂತೆ ವರದಿ ಮಾಡಿ ಮತ್ತು "ಅನಧಿಕೃತವಾಗಿ ಜಮೀನು ಮಂಜೂರು ಮಾಡಿರುವ ಅಧಿಕಾರಿ ಮತ್ತು ನೌಕರರುಗಳ ವಿರುದ್ಧ ಹಾಗೂ ಅದಕ್ಕೆ ಪ್ರಚೋದನೆ ನೀಡಿ ಅಕ್ರಮವಾಗಿ ಜಮೀನು ಮಂಜೂರು ಮಾಡಿಸಿಕೊಂಡಿರುವವರ ವಿರುದ್ಧ ಕಾನೂನು ಕ್ರಮ ಜರುಗಿಸುವುದು ಅವಶ್ಯಕವಾಗಿರುವುದರಿಂದ ಮತ್ತು ಭವಿಷ್ಯದಲ್ಲಿ ಇಂತಹ ಪ್ರಕರಣಗಳು ಮರುಕಳಿಸದಂತೆ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಹಾಗೂ ಸರ್ಕಾರಿ ಜಮೀನು ಸಂರಕ್ಷಿಸುವುದು ಸ್ವಯಂವೇದ್ಯವಾಗಿರುವುದರಿಂದ ಸರ್ಕಾರದ ಮಟ್ಟದಲ್ಲಿ ಉನ್ನತ ಮಟ್ಟದ ತನಿಖೆ ನಡೆಸಲು ಸೂಕ್ತವಾಗಿರುತ್ತದೆ" ಎಂದು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಹಾಸನ ರವರು ಸರ್ಕಾರಕ್ಕೆ ಶಿಫಾರಸ್ಸು ಮಾಡಿರುತ್ತಾರೆ.

ಜಿಲ್ಲಾಧಿಕಾರಿಯವರು ಸಲ್ಲಿಸಿರುವ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಘನ ಸರ್ಕಾರ ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿ, "ಘನ ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ನಡಾವಳಿಗಳು ಮತ್ತು ಆದೇಶ ಸಂಖ್ಯೆ: ಕಂಇ.59ವಿಕೋವಿ 2019 (ಒ-1)ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 06-02-2020 ರಲ್ಲಿ "ಹೇಮಾವತಿ/ ಯಗಚಿ/ ವಾಟಿಹೊಳೆ ಜಲಾಶಯ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಜಮೀನು ಕಳೆದುಕೊಂಡ ಸಂತ್ರಸ್ತರಿಗೆ ಜಮೀನು ಮಂಜೂರು ಮಾಡುವ ವಿಚಾರದಲ್ಲಿ ಅಧಿಕಾರವನ್ನು ದುರ್ಬಳಕೆ ಮಾಡಿಕೊಂಡು ಭೂಸಂತ್ರಸ್ತರಿಗೆ ಮೀಸಲಿರಿಸಲಾದ ಜಮೀನನ್ನು ಕಾನೂನು ಬಾಹಿರವಾಗಿ ನಕಲಿ ದಾಖಲೆಗಳನ್ನು ಸೃಷ್ಟಿಸಿ ಕರ್ತವ್ಯ ಲೋಪ ಎಸಗಿರುವ ಅಧಿಕಾರಿ/ ನೌಕರರ ವಿರುದ್ಧ ನಿಯಮಾನುಸಾರ ಶಿಸ್ತಿನ ಕ್ರಮ ಜರುಗಿಸಲು ಅವಶ್ಯಕವಾಗಿರುವುದರಿಂದ ಮತ್ತು ಭವಿಷ್ಯದಲ್ಲಿ ಇಂತಹ ಪ್ರಕರಣಗಳು ಮರುಕಳಿಸದಂತೆ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಹಾಗೂ ಸರ್ಕಾರಿ ಜಮೀನು ಸಂರಕ್ಷಿಸುವುದು ಸ್ವಯಂವೇದ್ಯವಾಗಿರುವುದರಿಂದ ಸರ್ಕಾರದ ಮಟ್ಟದಲ್ಲಿ ಉನ್ನತ ಮಟ್ಟದ ತನಿಖೆ ನಡೆಸಲು ಹಾಗೂ ಅದಕ್ಕೆ ಪ್ರಚೋದನೆ ನೀಡಿ ಅಕ್ರಮವಾಗಿ ಜಮೀನು ಮಂಜೂರು ಮಾಡಿಸಿಕೊಂಡಿರುವವರ ವಿರುದ್ಧ ಕಾನೂನು ಕ್ರಮ ಜರುಗಿಸುವುದು ಅವಶ್ಯಕವಾಗಿರುವುದರಿಂದ ಮತ್ತು ಸರ್ಕಾರದ ಮಟ್ಟದಲ್ಲಿ ಉನ್ನತ ಮಟ್ಟದ ತನಿಖೆ ನಡೆಸುವುದು ಸೂಕ್ತವೆಂದು ಪರಿಗಣಿಸಿರುವ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, "ಆಯುಕ್ತರು, ರಾಜ್ಯ ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ ಹಾಗೂ ಪದನಿಮಿತ್ತ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕಂದಾಯ ಇಲಾಖೆ, ಬೆಂಗಳೂರು" ಇವರನ್ನು ಸದರಿ ಪ್ರಕರಣದ ತನಿಖೆಯನ್ನು ಕೈಗೊಳ್ಳಲು ನೇಮಕ ಮಾಡಿ, ಈ ಪ್ರಕರಣದ ಸಮಗ್ರ ತನಿಖೆಯನ್ನು ಮೂರು ತಿಂಗಳ ಒಳಗಾಗಿ ಮುಕ್ತಾಯಗೊಳಿಸಿ, ಸರ್ಕಾರಕ್ಕೆ ವರದಿಯನ್ನು ಸಲ್ಲಿಸಬೇಕೆಂದು" ಆದೇಶಿಸುತ್ತಾರೆ.

ಮೇಲಿನಂತೆ ಈ ಹಿಂದೆಯೇ ಕ್ರಮ ಕೈಗೊಂಡು ಈ ಕಾರ್ಯಾಲಯದಿಂದ ದೂರು ಸಂಖ್ಯೆ: ಎಲ್.ಎನ್.ಡಿ. 34/19-20 ದಿನಾಂಕ: 24-10-2019 ರಂದು ಆರಕ್ಷಕ ಉಪನಿರೀಕ್ಷಕರು, ನಗರ ಪೊಲೀಸ್ ಠಾಣೆ, ಹಾಸನ ಇವರಿಗೆ ದೂರು ನೀಡಿ 01-01-2015 ರಿಂದ 30-12-2018 ರವರೆಗೆ ಅನಧಿಕೃತ ಮಂಜೂರಾಗಿರುವ 414 ಪ್ರಕರಣಗಳ ಕುರಿತು ಕ್ರಿಮಿನಲ್ ಮೊಕದ್ದಮೆ ದಾಖಲಿಸುವಂತೆ ಕೋರಿದ್ದರ ಮೇರೆಗೆ ಪೊಲೀಸ್ ನಿರೀಕ್ಷಕರು, ಸಿ.ಇ.ಎನ್. ಕ್ರೈಂ ಬ್ರಾಂಚ್ ಪೊಲೀಸ್ ಠಾಣೆ, ಹಾಸನ ರವರಿಗೆ, ತನಿಖೆ ಮಾಡಿ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ಪತ್ರ ಬರೆದಿದ್ದು, ಅದರಂತೆ ಎಫ್.ಐ.ಆರ್. ಸಂಖ್ಯೆ: 0157/2019 ದಿನಾಂಕ: 24-10-2019 ರಲ್ಲಿ ಕಲಂ ನಂ: 465,468, 420 ರೀತ್ಯಾ ಎಫ್.ಐ.ಆರ್. ದಾಖಲಿಸಿಕೊಂಡು, ತನಿಖೆ ಕೈಗೊಂಡು, ಪೊಲೀಸ್ ನಿರೀಕ್ಷಕರು, ಸಿ.ಇ.ಎನ್. ಕ್ರೈಂ ಬ್ರಾಂಚ್ ಠಾಣೆ, ಹಾಸನ ರವರು ಸದರಿ ಪ್ರಕರಣದ ತನಿಖೆಗಾಗಿ 2015 ರಿಂದ 2019 ರವರೆಗಿನ ಭೂಮಂಜೂರಿ ಮೂಲ ಕಡತಗಳನ್ನು ತನಿಖೆಗಾಗಿ ಪಡೆದು, ಸದರಿ ಕಡತಗಳ ಪರಿಶೀಲನೆ ನಡೆಸಿ, ಪತ್ರ ಸಂಖ್ಯೆ: ಸಿ.ಇ.ಎನ್/157/ ಹೆಚ್.ಆರ್.ಪಿ.2019/01, ಸಿ.ಇ.ಎನ್/157/ಹೆಚ್.ಆರ್.ಪಿ.2019/02, ಸಿ.ಇ.ಎನ್/157/ಹೆಚ್.ಆರ್.ಪಿ.2019/03, ಸಿ.ಇ.ಎನ್/157/ ಹೆಚ್.ಆರ್.ಪಿ.2019/04, ಸಿ.ಇ.ಎನ್/157/ಹೆಚ್.ಆರ್.ಪಿ.2019/05, ಸಿ.ಇ.ಎನ್/157/ ಹೆಚ್.ಆರ್.ಪಿ.2019/06, ಸಿ.ಇ.ಎನ್/157/ಹೆಚ್.ಆರ್.ಪಿ.2019/07, ಸಿ.ಇ.ಎನ್/157/ಹೆಚ್.ಆರ್.ಪಿ.2019/08, ಸಿ.ಇ.ಎನ್/157/ ಹೆಚ್.ಆರ್.ಪಿ.2019/09 ದಿನಾಂಕ: 05-12-2020 ರಂದು ಪೊಲೀಸ್ ಅಧೀಕ್ಷಕರು, ಹಾಸನ ರವರಿಗೆ ತನಿಖಾ ವರದಿ ಸಲ್ಲಿಸಿದ್ದರ ಮೇರೆ, ಪೊಲೀಸ್ ಅಧೀಕ್ಷಕರು, ಹಾಸನ ರವರು ಪತ್ರ ಸಂಖ್ಯೆ: ಸಿ.ಬಿ./ಹೆಚ್.ಆರ್.ಪಿ./83/2021, ದಿನಾಂಕ: 16-03-2021ರಲ್ಲಿ ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ಮನವಿ ಮತ್ತು ತನಿಖಾ ವರದಿ ಸಲ್ಲಿಸಿ ಈ ಕೆಳಕಂಡ ವರದಿಯಲ್ಲಿ ಕಾಣಿಸಿರುವ ಅನಧಿಕೃತ ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳ ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ರದ್ದುಪಡಿಸುವಂತೆ ಕೋರಿರುತ್ತಾರೆ.

[Signature]
27/06

77



1. ಅನುಬಂಧ-1(ಎ): ತಾಲ್ಲೂಕು ಕಛೇರಿಗಳಲ್ಲಿ ನೇರವಾಗಿ ಅಧಿಕೃತ ಜ್ಞಾಪನವನ್ನು ಸ್ವೀಕರಿಸಿ ಭೂಮಿ ಮಂಜೂರಾತಿ ಮಾಡಿರುವ 414 ಪ್ರಕರಣಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ.

ಅನುಬಂಧ-(1): ಒಂದೇ ನಕಲು ಆವಾರ್ಡ್ ಪ್ರತಿ ಮತ್ತು ಫೇಮಿಲಿ ಪೋಚರ್ ಬಳಸಿ ಎರಡು ಜನರಿಗೆ ಅಧಿಕೃತ ಜ್ಞಾಪನ ನೀಡಿ ಜಮೀನು ಅಕ್ರಮ ಮಂಜೂರಾತಿ ಮಾಡಿರುವ 41 ಭೂಮಂಜೂರಿ ಪ್ರಕರಣಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ.

3. ಅನುಬಂಧ-(2): 1970 ರಿಂದ 2015 ರವರೆಗೆ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ದಾಖಲೆಗಳನ್ನು ಬಳಸಿಕೊಂಡು ಜಮೀನು ಮಂಜೂರಾತಿ ಮಾಡಿಸಿಕೊಂಡಿದ್ದು ಅದೇ ಸಂತ್ರಸ್ತರ ನಕಲು ಮುಳುಗಡೆ ದಾಖಲೆಗಳನ್ನು ಪಡೆದು ಎರಡನೇ ಬಾರಿಗೆ ಜಮೀನು ಮಂಜೂರಾತಿ ಮಾಡಿಕೊಂಡಿರುವ 62 ಪ್ರಕರಣಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ.

4. ಅನುಬಂಧ-(3): ಮರ-ಮಾಲ್ಕಿ ನಿಗದಿಯಾಗದೇ 14 ಪ್ರಕರಣಗಳಲ್ಲಿ ಸಾಗುವಳಿ ಚೀಟಿ ವಿತರಿಸಿ ಪೋಡಿ ಬಾತೆ ಮಾಡಿರುವ ಮಂಜೂರಾತಿಯನ್ನು ರದ್ದುಪಡಿಸಿ, 14 ಪ್ರಕರಣಗಳ ಮರ-ಮಾಲ್ಕಿ ನಿಗದಿ ಪಡಿಸುವ ಬಗ್ಗೆ.

5. ಅನುಬಂಧ-(4): ಮರ-ಮಾಲ್ಕಿ ನಿಗದಿಯಾಗದೇ ಸಾಗುವಳಿ ಚೀಟಿ ನೀಡಿರುವ ಒಟ್ಟು 837 ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ರದ್ದುಪಡಿಸಿ, (ಸಕಲೇಶಪುರ-526, ಬೇಲೂರು-211, ಆಲೂರು-52, ಹಾಸನ-23, ಆಲೂರು-25) ಮರ-ಮಾಲ್ಕಿ ನಿಗದಿ ಪಡಿಸಿದ ನಂತರ ಸಾಗುವಳಿ ಚೀಟಿ ನೀಡುವ ಕುರಿತು.

6. ಅನುಬಂಧ-(5): ಶ್ರೀ ಕ್ಯಾ. ಶ್ರೀನಿವಾಸಗೌಡ ರವರು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ದಿನಾಂಕ: 01-12-2018 ರಿಂದ 24-10-2019 ರವರೆಗೆ ನಕಲು ದಾಖಲಾತಿ ಹಾಗೂ ಸೃಷ್ಟಿಕೃತ ಗೆಜೆಟ್ ನೋಟಿಫಿಕೇಷನ್ ಆಧಾರದ ಮೇಲೆ ಮಂಜೂರು ಮಾಡಿರುವ 591 ಮತ್ತು 57 ಒಟ್ಟು 648 ಪ್ರಕರಣಗಳ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಜಮೀನಿನ ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ.

7. ಅನುಬಂಧ-(6): ಶ್ರೀ ಬಿ.ಎ. ಜಗದೀಶ್ ರವರು ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಇವರು ಒಟ್ಟು 40 ಪ್ರಕರಣಗಳಲ್ಲಿ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರೆಂದು ಮಂಜೂರಾತಿ ಮಾಡಿರುವ 40 ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ಮತ್ತು ತಹಸೀಲ್ದಾರ್ ಸಕಲೇಶಪುರ ರವರು ವಿತರಿಸಿರುವ ಸಾಗುವಳಿ ಚೀಟಿಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಕುರಿತು.

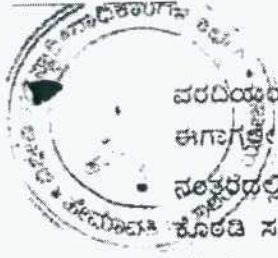
8. ಅನುಬಂಧ-(7): ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಲ್ಲಿರುವವರಿಗೆ ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರೆಂದು 32 ಜನರನ್ನು ಪರಿಗಣಿಸಿ ನಕಲಿ ಮುಳುಗಡೆ ದಾಖಲಾತಿಗಳ ಆಧಾರದ ಮೇಲೆ ಜಮೀನು ಮಂಜೂರಾತಿ ಮಾಡಿರುವ ಪ್ರಕರಣಗಳನ್ನು ರದ್ದುಮಾಡುವ ಕುರಿತು.

9. ಅನುಬಂಧ-(8): ಅರಣ್ಯ ಇಲಾಖೆ ವಶದಲ್ಲಿರುವ ಮತ್ತು ಸರ್ಕಾರಿ ಗೋಮಾಳವೆಂದು ಪಹಣಿಯಲ್ಲಿ ನಮೂದಾಗಿದ್ದರೂ ಸಹ ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಿಗೆ ಮಂಜೂರಾತಿ ಮಾಡಿರುವ 226 ಪ್ರಕರಣಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ.

10. ಅನುಬಂಧ-(9): ಪೂರ್ಣ ದಾಖಲಾತಿಗಳನ್ನು ಪಡೆಯದೇ ಭೇನಾಮಿಯಾಗಿ ಕೇವಲ ಅಧಿಕೃತ ಜ್ಞಾಪನ ವಿತರಿಸುವ ಮೂಲಕ ಜಮೀನು ಮಂಜೂರಾತಿ ಮಾಡಿ ಹೊರಡಿಸಿರುವ 56 ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ರದ್ದುಪಡಿಸುವ ಕುರಿತು.

- ಮೇಲಿನ ಅನುಬಂಧ-01 ರಿಂದ ಅನುಬಂಧ-09 ರ ವರೆಗಿನ ಅನಧಿಕೃತ ಭೂಮಂಜೂರಾತಿ ಪಟ್ಟಿಯ ಅನುಬಂಧಗಳಲ್ಲಿ ಕಂಡುಬಂದಿರುವ ಪ್ರಕರಣಗಳ ಪೈಕಿ 977 ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳಲ್ಲಿ "ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ಕಲಂ 25(1) ರಂತೆ "ಸುಳ್ಳು ಅಥವಾ ಮೋಸಕರವಾದ ಸಂಗತಿಗಳ ಹೇಳಿಕೆಯ ಮೂಲಕ ಭೂಮಿಯನ್ನು ಪಡೆದಿರುವಲ್ಲಿ ಅಥವಾ ಅದು ಈ ನಿಯಮಗಳಿಗೆ ಎರುದ್ದವಾಗಿರುವಲ್ಲಿ, ಈ ನಿಯಮಗಳ ಮೇರೆಗೆ ಮಾಡಿದ ಯಾವುದೇ ಭೂಮಿಯ ಮಂಜೂರಾತಿಯು ರದ್ದಿಯಾತಿಗೆ ಒಳಪಟ್ಟಿರತಕ್ಕದ್ದು ಮತ್ತು ಭೂಮಂಜೂರಾತಿ ಅಧಿಕಾರಿಗೆ ಅದನ್ನು ಹಿಂದಕ್ಕೆ ಪಡೆಯಲು ಅವಕಾಶವಿರತಕ್ಕದ್ದು. ಪರಂತು, ಭೂಮಂಜೂರಾತಿ ಪಡೆದವನಿಗೆ ಹೇಳಿಕೊಳ್ಳಲು ಅವಕಾಶವನ್ನು ಕೊಡದೇ ಹಾಗೇ ರದ್ದುಮಾಡತಕ್ಕದ್ದಲ್ಲ." ಎಂದು ಉಲ್ಲೇಖವಿರುವುದರಿಂದ ಅನಧಿಕೃತ ಭೂಮಂಜೂರಿದಾರರಿಗೆ ನಿಯಮಾನುಸಾರ ಸಾಕಷ್ಟು ಕಾಲಾವಕಾಶಗಳನ್ನು ಸಾರ್ವಜನಿಕ, ಆಡಳಿತಾತ್ಮಕ ಮತ್ತು ಪಾರದರ್ಶಕ ಹಿತಾಸಕ್ತಿ (Under transparency and principle of natural justice) ಅಡಿಯಲ್ಲಿ ನೀಡಿ, ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ, ವಿಚಾರಣೆ ಮಾಡಿ, ತನಿಖಾಧಿಕಾರಿಗಳ ತನಿಖಾ

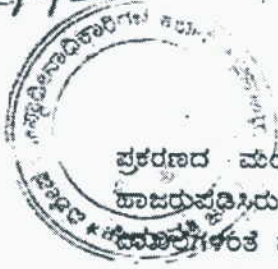
02/06



ವರದಿಯಂತೆ ಸನ್ 2015 ರಿಂದ 2019 ರ ವರೆಗಿನ ನಿಯಮಬಾಹಿರ ಭೂಮಂಜೂರಾತಿ ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ಈಗಾಗಲೇ ರದ್ದುಪಡಿಸಿ ಅದೇಕಿರುತ್ತದೆ.

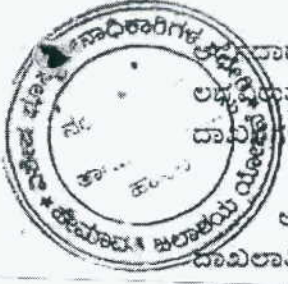
ನಂತರದಲ್ಲಿ, ದಿನಾಂಕ: 14-12-2021 ರಂದು ನಡೆದ 15ನೇ ವಿಧಾನಸಭೆ ಸಾರ್ವಜನಿಕ ಲೆಕ್ಕಪರಿಶೋಧನಾ ಸಮಿತಿ, ಕೊಠಡಿ ಸಂಖ್ಯೆ: 106, 1ನೇ ಮಹಡಿ, ವಿಧಾನಸೌಧ, ಬೆಂಗಳೂರು ರವರ ಸಭಾ ನಡಾವಳಿ ಮತ್ತು ನಿರ್ದೇಶನಗಳಂತೆ ಮಾನ್ಯ ಆಯುಕ್ತರು, ರಾಜ್ಯ ಮನವರ್ಸತಿ ಮತ್ತು ಮನರಂನಿರ್ಮಾಣ ಹಾಗೂ ಪದನಿಮಿತ್ತ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕಂದಾಯ ಇಲಾಖೆ, ಬೆಂಗಳೂರು ರವರ ದಿನಾಂಕ: 18-06-2022, 29-09-2022 ಮತ್ತು 09-01-2023 ರ ಸಭಾ ನಡಾವಳಿಗಳು ಮತ್ತು ನಿರ್ದೇಶನಗಳಂತೆ ಹೇಮಾವತಿ-ಜಲಾಶಯ ಯೋಜನೆಯಡಿ ಅಕ್ರಮ ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳು ಕಂಡುಬಂದಲ್ಲಿ, ಅವುಗಳನ್ನು ನಿಯಮಾನುಸಾರ ರದ್ದುಗೊಳಿಸುವುದು ಸಮಂಜಸವಾದ ಕ್ರಮವಾಗಿರುವುದರಿಂದ ಹಾಗೂ ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆಗೊಳಪಟ್ಟ ಹಿನ್ನಿರಿಸ ಭೂಸಂತ್ರಸ್ತರ ಅಡಿಯಲ್ಲಿ ಕಾಯ್ದಿರಿಸಿದ ಮತ್ತು ಕಾಯ್ದಿರಿಸದ ವಿವಿಧ ಸರ್ಕಾರಿ ಜಮೀನುಗಳ ಭೂಮಂಜೂರಾತಿಗಳಲ್ಲಿ ಮೇಲ್ಕಾಣಿಸಿದ ಲೋಪ-ದೋಷಗಳು ಇರುವುದು ಪೊಲೀಸ್ ತನಿಖಾ ವಿಚಾರಣಾ ವರದಿಯಂತೆ ಮೇಲ್ಕೊಟ್ಟಿಕ್ಕೆ ಈಗಾಗಲೇ ಸಾಫೀತಾಗಿರುವುದರಿಂದ ಸನ್ 2015 ರಿಂದ 2019 ರ ವರೆಗೆ ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳಲ್ಲಿ ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ ನಿಯಮಗಳ ಉಲ್ಲಂಘನೆಯಾಗಿರುವುದರಿಂದ ಅಂತಹ ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳು ಪರಿಶೀಲನೆಯಿಂದ ಬೆಳಕಿಗೆ ಬಂದಿರುವುದರಿಂದ, ಇದೇ ರೀತಿ ಸನ್ 2005 ರಿಂದ 2014 ರವರೆಗೆ ಭೂಮಂಜೂರಾತಿಯಾದ ಪ್ರಕರಣಗಳ ಸತ್ಯಾಸತ್ಯತೆಯನ್ನು ಪರಿಶೀಲಿಸಿಕೊಳ್ಳಲು ಹಾಗೂ ಭೂಮಂಜೂರಾತಿಯ ನೈಜತೆಯನ್ನು ಸ್ಪಷ್ಟವಾಗಿ ತಿಳಿಯಬೇಕಿದ್ದರಿಂದ ಅಧಿಕಾರಿಗಳ ಸಹ ನಕಲು ಮಾಡಿರುವ ಬಗ್ಗೆ ಸಂಬಂಧಪಟ್ಟ ಅಧಿಕಾರಿ - ನೌಕರರನ್ನು ವಿಚಾರಣೆ ಮಾಡಿ ಈಗಾಗಲೇ ಅಂತಹವರ ಮಾದರಿ ಸಹಿಗಳನ್ನು ಫೋರನ್ಸಿಕ್ ಲ್ಯಾಬೋರೇಟರಿಗೆ ಕಳುಹಿಸಿಕೊಡಲಾಗಿದ್ದು, ವರದಿ ನಿರೀಕ್ಷೆಯಲ್ಲಿರುತ್ತದೆ. ಅದ್ದರಿಂದ ಹೇಮಾವತಿ/ ಯಗಚಿ/ ಪಾಟಿಹೊಳೆ ಜಲಾಶಯ ಯೋಜನೆಗಳ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರುಗಳು, ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಸಂಬಂಧಿಕರು, ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಹೆಸರಿನಲ್ಲಿ ಇತರರು ಅನಧಿಕೃತವಾಗಿ ಸರ್ಕಾರಿ ಜಮೀನುಗಳನ್ನು ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ ನಿಯಮಗಳನ್ನು ಉಲ್ಲಂಘಿಸಿ ಭೂಮಂಜೂರಾತಿ ಮಾಡಿಸಿಕೊಂಡು, ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳನ್ನು ಪಡೆದು, ಸಾಗುವಳಿ ಬೀಟಿ, ಖಾತೆ, ಮ್ಯುಟೇಷನ್ ಮತ್ತು ಪಹಣಿ ದಾಖಲೆಗಳೊಂದಿಗೆ ಕೆಲವೊಂದು ಸರ್ವೆ ನಂಬರ್‌ಗಳನ್ನು ದುರುಸ್ಥಿಪಡಿಸಿಕೊಂಡು ಹೊಸ ಸರ್ವೆ ನಂಬರ್‌ಗಳನ್ನು ಮಾಡಿಸಿಕೊಂಡು ನಿಯಮಬಾಹಿರವಾಗಿ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಿಗೆ, ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಸಂಬಂಧಿಕರಿಗೆ, ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಹೆಸರಿನಲ್ಲಿ ಇತರರಿಗೆ ವಿತರಿಸಿರುವ ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳ ಬಗ್ಗೆ ಮಂಜೂರಿದಾರರಿಗೆ ನಿಯಮಾನುಸಾರ, ಕಾನೂನಿನ ಮತ್ತು ಸ್ವಾಭಾವಿಕ ನ್ಯಾಯಿಕ (Under Principles of Natural Justice) ಅಡಿಯಲ್ಲಿ ಪರಿಶೀಲನೆಗೆ ಕಾಲಾವಕಾಶವನ್ನು ನೀಡಿ, ಈ ಕಾರ್ಯಾಲಯದಿಂದ ವಿವರವಾದ ನೋಟೀಸುಗಳನ್ನು ಸಂಖ್ಯೆ: ಎಲ್.ಎನ್.ಡಿ./ ನೋಟೀಸ್/01-09/2020-21 ರಂತೆ ಭೂಮಂಜೂರಾತಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ನೈಜ ಮಂಜೂರಿದಾರರೆಂಬುದನ್ನು ಸಾಬೀತುಪಡಿಸುವ ಅಗತ್ಯ ಹಾಗೂ ಪೂರಕ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸುವಂತೆ ಅಗತ್ಯಪಡಿಸಿದ್ದು, ಈ ಪ್ರಕರಣದ ಮಂಜೂರಿದಾರರ ಗಮನಕ್ಕೆ ದಿನಾಂಕ: 12-12-2022 ರಂದು ಪ್ರಥಮ ಬಾರಿ ನೋಟೀಸುಗಳನ್ನು ನೀಡಿದ್ದು, ನೋಟೀಸುದಾರರಿಂದ ಯಾವುದೇ ಪ್ರತ್ಯುತ್ತರ ಅಥವಾ ತಕರಾರುಗಳು ಬಾರದೇ ಇದ್ದುದರಿಂದ, ಈ ಹಿಂದೆ ವಿತರಿಸಿರುವ ಭೂಮಂಜೂರಾತಿ ಅಧಿಕೃತ ಜ್ಞಾಪನಗಳ ರದ್ದತಿ ಬಗ್ಗೆ ದಿನಾಂಕ: 15-02-2023 ರಂದು ಅಂತಿಮ ತಿಳುವಳಿಕೆ ನೋಟೀಸ್‌ಗಳನ್ನು ಸಂಬಂಧಪಟ್ಟ ಗ್ರಾಮಲೆಕ್ಕಾಧಿಕಾರಿಗಳ ಮೂಲಕ ಜಾರಿ ಮಾಡಿ, ನೋಟೀಸುದಾರರ ತಕರಾರು/ ಸ್ಪಷ್ಟೀಕರಣ ವಿನಾದರೂ ಇದ್ದರೆ ಮುದ್ದಾಗಿ ವಿಚಾರಣೆಗೆ ದಿನಾಂಕ: 27-03-2023 ರಂದು ಸಲ್ಲಿಸಲು 15 ದಿನಗಳ ಅಂತಿಮ ಕಾಲಾವಕಾಶ ನೀಡಿರುತ್ತದೆ. ಹಾಗೂ ಈ ಬಗ್ಗೆ ಸಾರ್ವಜನಿಕ ಪತ್ರಿಕಾ ಪ್ರಕಟಣೆಯನ್ನೂ ಸಹ ವಿಜಯ ಕರ್ನಾಟಕ ಮತ್ತು ಜನತಾ ಮಾಧ್ಯಮ ದಿನಪತ್ರಿಕೆಗಳಲ್ಲಿ ದಿನಾಂಕ: 28-02-2023 ರಂದು ಸಾರ್ವಜನಿಕ ಪತ್ರಿಕಾ ಪ್ರಕಟಣೆಯನ್ನೂ ಹೊರಡಿಸಲಾಗಿರುತ್ತದೆ. ಆದರೂ ಸಹಪ್ರತಿವಾದಿ (ಮಂಜೂರಿದಾರರ) ಹೆಸರಿನಲ್ಲಿ ಈ ಕಾರ್ಯಾಲಯಕ್ಕೆ ಯಾವುದೇ ತಕರಾರು ಸ್ವೀಕೃತವಾಗಿರುವುದಿಲ್ಲ.

ಮುಂದುವರೆದು, ದಿನಾಂಕ: 15-03-2023 ರಂದು ನೋಟೀಸಿನಲ್ಲಿ ತಿಳಿಸಿದ್ದಂತೆ ಈ ಪ್ರಕರಣವನ್ನೂ ಒಳಗೊಂಡಂತೆ ಇತರೆ ಹಲವಾರು ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣಗಳ ವಿಚಾರಣೆಯನ್ನು ನಡೆಸಿದ್ದು, ಆದರೆ ಈ



ಪ್ರಕರಣದ ಮಂಜೂರಿದಾರರು/ ನೋಟೀಸುದಾರರು ಹಾಜರಾಗಿರುತ್ತಾರೆ. ಆದರೆ ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ. ಆದರೂ ಸಹ ಈ ಕಾರ್ಯಾಲಯದ ಭೂಮಂಜೂರಾತಿ ಕಡತಗಳಲ್ಲಿ ಲಭ್ಯವಿರುವ ದಾಖಲೆಗಳಂತೆ ಪರಿಶೀಲಿಸಿ, ವಿಚಾರಣೆಯನ್ನು ದಿನಾಂಕ: 27-03-2023 ಕ್ಕೆ ಮುಂದೂಡಿ ಅಹೇಶಿಸಿರುತ್ತದೆ. ಸದರಿ ದಿನಾಂಕ: 21-03-2023 ರಂದು ನೋಟೀಸುದಾರರು (ಮಂಜೂರಿದಾರರು) ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗಿ ಕೆಲವು ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುತ್ತಾರೆ. ಆದ್ದಾಗ್ಯೂ ಈ ಭೂಮಂಜೂರಾತಿ ಪ್ರಕರಣದಲ್ಲಿ ಈ ಕೆಳಕಂಡಂತೆ ವ್ಯತಿರಿಕ್ತ ಅಂಶಗಳು ಕಂಡುಬಂದಿರುತ್ತವೆ.

- ಬಹಳ ಮುಖ್ಯವಾಗಿ ಬದಲಿ ಭೂಮಂಜೂರಾತಿಗೆ ಅವಶ್ಯಕವಾಗಿರುವ "ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ಪ್ರಮಾಣಪತ್ರ" (Submergence certificate) ವನ್ನು ಭೂಮಂಜೂರಾತಿ ಸಂದರ್ಭದಲ್ಲಿ ಸಲ್ಲಿಸಿರುವುದು ಕಂಡುಬಂದಿರುವುದಿಲ್ಲ.
- ಮಂಜೂರಿದಾರರಾದ ಪ್ರತಿವಾದಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ|| ಕೃಷ್ಣೇಗೌಡ ರವರು ಈ ಹಿಂದೆ ಬದಲಿ ಭೂಮಂಜೂರಾತಿ ಕೋರಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಲೀ ಅಥವಾ ಇವರ ಕುಟುಂಬದ ಇತರ ಸದಸ್ಯರು ಭೂಮಂಜೂರಾತಿ ಮಾಡಿಸಿಕೊಳ್ಳುವ ಬಗ್ಗೆ ಲಿಖಿತವಾಗಿ ಯಾರಿಗೂ ಸಹ ಅಧಿಕಾರ ವರ್ಗಾಯಿರುವುದಾಗಲೀ ಲಭ್ಯ ದಾಖಲಾತಿಗಳಿಂದ ಕಂಡುಬಂದಿರುವುದಿಲ್ಲ ಹಾಗೂ ಯಾವುದೇ ರೀತಿಯ ಡಿಕ್ಲರೇಷನ್ ಸಹ ಮಾಡಿಕೊಂಡಿರುವುದಿಲ್ಲ. ಪ್ರತಿವಾದಿಯ (ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ - ಅವಾರ್ಡುದಾರರ) ಕುಟುಂಬದ ಒಟ್ಟು ಆಸ್ತಿಗಳ ಅಹವಾಲು ತಃಖ್ತೆ (ಜಮೀನು ಮುಳುಗಡೆಯಾದ ಸಂದರ್ಭದಲ್ಲಿ ಮುಳುಗಡೆ ಭೂಸಂತ್ರಸ್ತರ ಕುಟುಂಬದ ಎಲ್ಲಾ ಆಸ್ತಿಗಳ ಪೂರ್ಣ ವಿವರಗಳು, ಸರ್ವೆ ನಂಬರ್‌ವಾರು) ಡಿಕ್ಲರೇಷನ್ ದಾಖಲೆಯನ್ನೂ ಸಹ ಸಲ್ಲಿಸಿರುವುದಿಲ್ಲ.
- ಪ್ರತಿವಾದಿಯು ಭೂಮಂಜೂರಾತಿ ಪಡೆಯುವ ಸಂದರ್ಭದಲ್ಲಿ ತಮ್ಮ ಜಮೀನನ್ನು ಈ ಹಿಂದೆ ಹೇಮಾವತಿ ಜಲಾಶಯದ ಹಿನ್ನೀರಿನ ಯೋಜನೆಗೆ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಬಗ್ಗೆ ಕಲಂ, 4(1) ರ ಪ್ರಾಥಮಿಕ ಅಧಿಸೂಚನೆ, ಕಲಂ 6(1) ರ ಅಂತಿಮ ಅಧಿಸೂಚನೆ, ಅವಾರ್ಡು ನೋಟೀಸು, ಅವಾರ್ಡು ತಃಖ್ತೆ, ಪರಿಹಾರ ಪಡೆದ ಬಗ್ಗೆ ಪೇಮೆಂಟ್ ಪೋಚರ್, ನಮೂನೆ-ಎಫ್ ಮತ್ತು ಅವಾರ್ಡ್ ಆದೇಶದ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ.
- ಶ್ರೀ ಆರೋಗ್ಯಪ್ಪ ದಿನ್ ಜೋಸೆಫ್ (ಖಾತೆದಾರರು) ರವರ ಜಮೀನು ಬೌಡನಹಳ್ಳಿ ಗ್ರಾಮದ ಸ. ನಂ. 154/1 ರಲ್ಲಿ 0-11 ಗುಂಟೆ ವಿಸ್ತೀರ್ಣ ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆಗೆ ಮುಳುಗಡೆಯಾಗಿದೆಯೆಂದು ಪ್ರತಿವಾದಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ|| ಕೃಷ್ಣೇಗೌಡ ರವರಿಗೆ ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕು, ಕೊಣನೂರು ಹೋಬಳಿ, ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸ. ಸ. ಸ. ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ 4-00 ಎಕರೆ. ಭೂಮಿಯನ್ನು ನಡಾವಳಿ ಮಾಡಿ, ಭೂಮಂಜೂರಾತಿ ಮಾಡಿ, ಸಾಗುವಳಿ ಚೀಟಿಯನ್ನು ನೀಡಲಾಗಿರುತ್ತದೆ. ಆದರೆ, ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕು, ಕೊಣನೂರು ಹೋಬಳಿ, ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 6 ರ ಜಮೀನನ್ನು ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆಯ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರಿಗೆ ಭೂಕಂದಾಯ ಕಾಯ್ದೆ 1964 ಕಲಂ 71 ರಂತೆ ಕಾಯ್ದಿರಿಸಿರುವ ಬಗ್ಗೆ ಈ ಕಾರ್ಯಾಲಯದಲ್ಲಿ ಲಭ್ಯವಿರುವ ಮೈಸೂರು/ ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ (The Mysore/ Karnataka gazette) ಸಂಖ್ಯೆ: LND II PR. 509-C-10522/69-70 Date 3rd February 1971, LND II PR. 509-C-10522/69-70 Date 4th February 1972, LND II PR. 509-C-10522/69-70 Date 29th May/ 14th June 1972 And LND II PR. 509-C-10522/69-70 Date 16th September 1975 ರಲ್ಲಿ ದಾಖಲಾಗಿರುವುದು ಕಂಡುಬಂದಿರುವುದಿಲ್ಲ.
- ತಹಸೀಲ್ದಾರ್, ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕು ರವರು ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕು, ಕೊಣನೂರು ಹೋಬಳಿ, ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸ. ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ 4-00 ಎಕರೆ. ಮಿಷ್ಕಿ ಭೂಮಿಯ ಸಾಗುವಳಿ ಚೀಟಿ ನೀಡುವ ಪೂರ್ವದಲ್ಲಿ ಅರಣ್ಯ ಇಲಾಖೆಯಿಂದ ಮರ-ಮಾಲ್ಕಿ ಕಿಮ್ಮತ್ತು ಕಟ್ಟಿಸಿಕೊಂಡಿರುವ ಬಗ್ಗೆ ಅಥವಾ ಮರ-ಮಾಲ್ಕಿ ಇಲ್ಲದಿದ್ದ ಪಕ್ಷದಲ್ಲಿ ನಿರಾವೇಶತಾ ಪತ್ರ (NOC) ಪಡೆದು ಸಾಗುವಳಿ ಚೀಟಿ ನೀಡಿರುವ ಬಗ್ಗೆ ದಾಖಲೆಗಳು ಅಥವಾ ಮಾಹಿತಿಗಳು ಲಭ್ಯವಿರುವುದಿಲ್ಲ.
- ಈ ಕಾರ್ಯಾಲಯದಲ್ಲಿ ಲಭ್ಯವಿರುವ ಮೂಲ ಭೂ ಮಂಜೂರಾತಿ ಕಡತದಲ್ಲಿ ಪರಿಶೀಲಿಸಲಾಗಿ ಅಧಿಕೃತ ಜ್ಞಾಪನ, ಸ್ಥಳ ತನಿಖಾ ಟಿಪ್ಪಣಿ, ಅರ್ಜಿದಾರರ ಮುಚ್ಚಳಿಕೆ, ಅರ್ಜಿದಾರರ ಹೇಳಿಕೆ ಮತ್ತು ಸರ್ಕಾರಕ್ಕೆ ಬರೆದಿರುವ ಮಹಜರ್, ನೋಟರಿ ಪ್ರಮಾಣ ಪತ್ರ, ಸ. ನಂ 53 ರ ಸ್ಕೆಚ್, ಅವಾರ್ಡ್ ಆದೇಶ ಮತ್ತು ಪೇಮೆಂಟ್ ಓಚರ್, ನಮೂನೆ ಎಫ್, ಆದಾಯ ದೃಢೀಕರಣ ಪತ್ರ, ಆಹವಾಲ್ ತಃಖ್ತೆ ಜಮೀನು ಇಲ್ಲದಿರುವ ಬಗ್ಗೆ ಮಾಹಿತಿ ಮತ್ತು ಗ್ರಾ.ಲೆ ಮತ್ತು

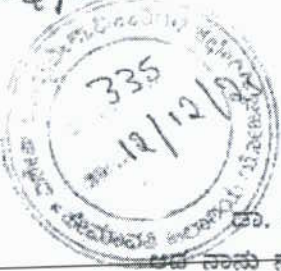


ದಾರರು ಸಹಿ ಮಾಡಿರುವ ವಂಶವೃಕ್ಷ ಇತ್ಯಾದಿ ದಾಖಲೆಗಳು ಮೂಲ ಭೂಮಂಜೂರಾತಿ ಕಡತದಲ್ಲಿ ಲಭ್ಯವಿರುತ್ತದೆ. ಆದರೆ, ಮಂಜೂರಿದಾರರು ತಮ್ಮ ಭೂಮಂಜೂರಾತಿಯ ನೈಜತೆಯ ಬಗ್ಗೆ ಸ್ಪಷ್ಟೀಕರಣ ನೀಡುವ ದಾಖಲೆಗಳನ್ನು ಮೇಲ್ಕಂಡಂತೆ ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ.

ಆದ್ದರಿಂದ, ಮೇಲಿನಂತೆ ಪ್ರತಿವಾದಿ ಮಂಜೂರಿದಾರರು ನಿಗದಿತ ಕಾಲಮಿತಿಯೊಳಗೆ, ನಿರ್ದಿಷ್ಟಪಡಿಸಿದ ದಾಖಲಾತಿಗಳನ್ನು ಸಲ್ಲಿಸಿ ತಮ್ಮ ಭೂಮಂಜೂರಾತಿಯ ನೈಜತೆಯನ್ನು ಸಾಧಿಸುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಈ ಹಿಂದೆ ದಿನಾಂಕ: 12-12-2022 ಮತ್ತು 15-02-2023 ರಂದು ಈ ಕಾರ್ಯಾಲಯದಿಂದ ಜಾರಿ ಮಾಡಿದ್ದ ನೋಟೀಸಿನಲ್ಲಿ ಪ್ರತಿವಾದಿಯವರಿಗೆ ಲಿಖಿತವಾಗಿ ಹಾಗೂ ಸ್ಪಷ್ಟವಾಗಿ ತಿಳುವಳಿಕೆ ನೀಡಿ "ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರೆಂದು ಜಮೀನು ಮಂಜೂರಿ ಪಡೆದಿರುವ ನೀವು ಈಗಲೂ ನೈಜ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರು ಎನ್ನುವುದಾದರೆ ಈ ನೋಟೀಸ್ ನೊಂದಿಗೆ ಲಗತ್ತಿಸಿರುವ ಚೆಕ್‌ಲಿಸ್ಟ್‌ನಂತೆ ಮುಳುಗಡೆ ಮೂಲದಾಖಲೆ ಹಾಗೂ ಸೂಕ್ತ ಆವಾರ್ಡ್ ದಾಖಲೆಗಳು ಇತ್ಯಾದಿಯಾಗಿ ಈ ನೋಟೀಸು ತಲುಪಿದ 15 ದಿನಗಳ ಕಾಲಾವಕಾಶದಲ್ಲಿ ಪ್ರತಿವಾದಿಯು ಭೂಮಂಜೂರಾತಿ ಪಡೆಯುವ ಸಂದರ್ಭದಲ್ಲಿ ತಮ್ಮ ಜಮೀನನ್ನು ಈ ಹಿಂದೆ ಹೇಮಾವತಿ ಜಲಾಶಯದ ಹಿನ್ನೀರಿನ ಯೋಜನೆಗೆ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಬಗ್ಗೆ ಕಲಂ 4(1) ರ ಪ್ರಾರ್ಥಮಿಕ ಅಧಿಸೂಚನೆ, ಕಲಂ 6(1) ರ ಅಂತಿಮ ಅಧಿಸೂಚನೆ, ಆವಾರ್ಡ್ ನೋಟೀಸು, ಆವಾರ್ಡ್ ತ:ಖ್ರೆ, ಪರಿಹಾರ ಪಡೆದ ಬಗ್ಗೆ ಪೇಮೆಂಟ್ ವೋಚರ್, ನಮೂನೆ-ಎಫ್ ಮತ್ತು ಆವಾರ್ಡ್ ಆದೇಶದ ದಾಖಲೆಗಳನ್ನು ತಮ್ಮಲ್ಲಿರುವ ಅಧಿಕೃತ ಮೂಲ ದಾಖಲೆಗಳೊಂದಿಗೆ ಆಧಾರ್ ಕಾರ್ಡ್, ಚುನಾವಣಾ ಗುರುತಿನ ಚೀಟಿ, ವಾಸಸ್ಥಳ ದೃಢೀಕರಣ ಪತ್ರ, ಪಡಿತರ ಚೀಟಿ ಮತ್ತು ತಹಸೀಲ್ದಾರ್‌ರವರಿಂದ ಪಡೆದಿರುವ ವಂಶವೃಕ್ಷ ದೃಢೀಕರಣ ಪ್ರಮಾಣಪತ್ರ ಇತ್ಯಾದಿಯಾಗಿ ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರ ನೈಜತೆಯ ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಲು ಆಗತ್ಯವಿರುವ ಎಲ್ಲಾ ಮೂಲ ದಾಖಲೆಗಳನ್ನು ಈ ನೋಟೀಸು ತಲುಪಿದ 15 ದಿನಗಳ ಕಾಲಮಿತಿಯೊಳಗಾಗಿಸಲ್ಲಿಸಲು ತಿಳುವಳಿಕೆ ನೀಡಿದ್ದು, ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ನೀವು (ಮಂಜೂರಿದಾರರು) ಮುಳುಗಡೆ ಸಂತ್ರಸ್ತರೆಂದು ಭೂಮಂಜೂರಾತಿ ಪಡೆದಿರುವ ಭೂಮಿಯನ್ನು ಮೇಲಿನ ಕಾರಣಗಳಿಗೆ ನಿಮ್ಮ ತರವಾರು ಅಥವಾ ಲಿಖಿತವಾದ ಪ್ರತಿವಾದ ಏನೂ ಇರುವುದಿಲ್ಲ ಎಂದು ಭಾವಿಸಿ ಮೇಲಿನ ಕಾರಣಗಳಿಗೆ ಭೂಮಂಜೂರಾತಿಯು "ಅಧಿಕೃತ ಜ್ಞಾಪನ"ವನ್ನು ರದ್ದು ಮಾಡಲಾಗಿದೆ ಎಂದು ತಿಳಿಯುವುದು" ಎಂದು ಸ್ಪಷ್ಟವಾಗಿ ತಿಳಿಸಿದ್ದಂತೆ, ಈ ಕೆಳಸಹಿದಾರರ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರವು ದಿನಾಂಕ: 15-03-2023 ರಂದು ವಿಚಾರಣೆಯನ್ನು ನಡೆಸಲಾಗಿ ನೋಟೀಸುದಾರರು ಹಾಜರಾಗಿರುತ್ತಾರೆ. ಆದರೆ ತಮ್ಮ ಭೂಮಂಜೂರಾತಿಯ ನೈಜತೆಯನ್ನು ಸ್ಪಷ್ಟಪಡಿಸಿಕೊಳ್ಳುವಂತಹ ಯಾವುದೇ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ದಿನಾಂಕ: 27-03-2023 ರಂದು ಮಂಜೂರಿದಾರರನು ಹಾಜರುಪಡಿಸುವುದಾಗಿ ತಿಳಿಸಿದ್ದರ ಮೇರೆಗೆ ದಿನಾಂಕ: 27-03-2023 ರ್ಗೆ ವಿಚಾರಣೆಯನ್ನು ಮುಂದೂಡಿ ಆದೇಶಿಸಲಾಯಿತು. ದಿನಾಂಕ: 27-03-2023 ರಂದು ಅಂತಿಮ ವಿಚಾರಣೆಯನ್ನು ಮುಕ್ತಾಯಗೊಳಿಸಿ, ಈ ಪ್ರಕರಣದಲ್ಲಿ ವಿತರಿಸಿರುವ ಭೂಮಂಜೂರಾತಿ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09 ದಿನಾಂಕ: 28-10-2010 ರನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ ಅಂತಿಮ ಆದೇಶಕ್ಕಾಗಿ ಕಾಯ್ದಿರಿಸಿ ಕಾಯ್ದಿರಿಸಲಾಗಿರುತ್ತದೆ.

ಆದ್ದರಿಂದ, ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09 ದಿನಾಂಕ: 28-10-2010 ರಂತೆ ಈಗಾಗಲೇ ತಹಸೀಲ್ದಾರ್ ರವರಿಂದ ಸಾಗುವಳಿ ಚೀಟಿ ಪಡೆದು, ಪಾತೆ-ಮ್ಯಟೀಷನ್ ಮತ್ತು ಪಹಣಿ ಆಗಿರುವುದರಿಂದ ಸದರಿ ಸಾಗುವಳಿ ಚೀಟಿ, ಪಾತೆ, ಮ್ಯಟೀಷನ್ ಮತ್ತು ಪಹಣಿಯನ್ನು ಆಯಾ ಉಪವಿಭಾಗದ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ರದ್ದುಪಡಿಸುವುದು ಸಮಂಜಸವಾದ ಕ್ರಮವಾಗಿರುತ್ತದೆ ಹಾಗೂ ದುರಸ್ತಿಯಾಗಿದ್ದರೆ, ಭೂದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು, ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕು ರವರು ಸದರಿ ಭೂಮಂಜೂರಾತಿಯ ಪೂರ್ವದಲ್ಲಿ ಮಂಜೂರಿ ಜಮೀನಿನ ಭೂದಾಖಲೆಗಳಿದ್ದಂತೆ ಸ್ಥಿರೀಕರಣ ಮಾಡಲು ಪ್ರಸ್ತಾವನೆಯನ್ನು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ತಾಂತ್ರಿಕ ಸಹಾಯಕರು, ಹಾಗೂ ಪದನಿಮಿತ್ತ ಭೂದಾಖಲೆಗಳ ಉಪ ನಿರ್ದೇಶಕರು, ಹಾಸನ ಜಿಲ್ಲೆ, ಹಾಸನರವರಿಗೆ ಸಲ್ಲಿಸಿ ಅಗತ್ಯ ಕ್ರಮ ಕೈಗೊಳ್ಳಬೇಕಾಗಿರುತ್ತದೆ. ಆದ್ದರಿಂದ, ಮೇಲಿನ ಎಲ್ಲಾ ನೈಜತೆಯ ಕಾರಣಕ್ಕಾಗಿ "ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ ನಿಯಮಗಳು, 1969 ಕಲಂ 25(1) ರಂತೆ ಈ ಕೆಳಸಹಿದಾರರ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಒಳಪಡುವ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09 ದಿನಾಂಕ: 28-10-2010 ನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶಿಸಿದೆ.

-೨/-



-:: ಆದೇಶ ::-

ಡಾ. ಮಂಜುನಾಥ. ವಿ., ಕೆ.ಆರ್. ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ, ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ, ಹಾಸನ
ಆದ ನಾನು ನನಗೆ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರವನ್ನು ಬಳಸಿಕೊಂಡು "ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ ನಿಯಮಗಳು 1969,
ಕಲಂ 25(1) ರಲ್ಲಿ ಉದ್ದೇಶಿಸಿರುವಂತೆ "ಸುಳ್ಳು ಅಥವಾ ಮೋಸಕರವಾದ ಸಂಗತಿಗಳ ಹೇಳಿಕೆಯ ಮೂಲಕ
ಭೂಮಿಯನ್ನು ಪಡೆದಿರುವಲ್ಲಿ ಅಥವಾ ಅದು ಈ ನಿಯಮಗಳಿಗೆ ವಿರುದ್ಧವಾಗಿರುವಲ್ಲಿ, ಈ ನಿಯಮಗಳ ಮೇರೆಗೆ
ಮಾಡಿದ ಯಾವುದೇ ಭೂಮಿಯ ಮಂಜೂರಾತಿಯು ರದ್ದಿಯಾಗಿ ಒಳಪಟ್ಟಿರತಕ್ಕದ್ದು ಮತ್ತು ಭೂಮಂಜೂರಾತಿ
ಅಧಿಕಾರಿಗೆ ಅದನ್ನು ಹಿಂದಕ್ಕೆ ಪಡೆಯಲು ಅವಕಾಶವಿರತಕ್ಕದ್ದು, ಪರಂತು, ಭೂಮಂಜೂರಾತಿ ಪಡೆದವನಿಗೆ
ಹೇಳಿಕೊಳ್ಳಲು ಅವಕಾಶವನ್ನು ಕೊಡದೇ ಹಾಗೇ ರದ್ದು ಮಾಡತಕ್ಕದ್ದಲ್ಲ" ಎಂದು ಉಲ್ಲೇಖಿಸಿರುವುದರಿಂದ, ಈ
ನಿಯಮಾನುಸಾರ ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ನಮೂದಿಸಿರುವಂತೆ ಪ್ರತಿವಾದಿಗೆ ಸಾಕಷ್ಟು ಸಮಯಾವಕಾಶವನ್ನು
ನಿಯಮಾನುಸಾರ, ಸಾರ್ವಜನಿಕ, ಆಡಳಿತಾತ್ಮಕ ಮತ್ತು ಪಾರದರ್ಶಕ ಹಿತಾಸಕ್ತಿಯ (Under transparency and
principle of natural justice) ಅಡಿಯಲ್ಲಿ ನೀಡಿದ್ದರೂ ಸಹ ಪ್ರತಿವಾದಿ/ ಮಂಜೂರಿದಾರರು ಯಾವುದೇ
ತಕರಾರನ್ನೊಂದಿಗೆ ಪ್ರತಿಕ್ರಿಯೆಯನ್ನೂ ಸಹ ನೀಡದೇ ಇದ್ದುದರಿಂದ, ಮೇಲಿನ ಕಾರಣಗಳಿಗಾಗಿ ಪ್ರತಿವಾದಿ
(ಮಂಜೂರಿದಾರ) ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ|| ಕೃಷ್ಣೇಗೌಡ ರವರಿಗೆ ಮಂಜೂರು ಮಾಡಿರುವ ಅರಕಲಗೂಡು
ತಾಲ್ಲೂಕು, ಕೋನೂರು ಹೋಬಳಿ, ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸ. ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ 4-00 ಎಕರೆ, ಮಿಷ್ಕಿ
ಜಮೀನಿನ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09 ದಿನಾಂಕ: 28-10-2010 ಅನ್ನು
ರದ್ದುಪಡಿಸುವುದು ಅನಿವಾರ್ಯ ಮತ್ತು ಸಮಂಜಸವಾದ ಕ್ರಮವಾದ್ದರಿಂದ, ಈ ಪ್ರಕರಣದಲ್ಲಿ ಕಾನೂನಿನ ಅಡಿಯಲ್ಲಿ
ತನಿಖೆಯನ್ನು ಮುಂದುವರಿಸಿ, ಭೂಮಂಜೂರಾತಿ ಪರತುಗಳನ್ನು ಉಲ್ಲಂಘಿಸಿ ಭೂಮಂಜೂರಾತಿ ಮಾಡಿರುವ ಬಗ್ಗೆ
ನಿಯಮಾನುಸಾರ ಪರಿಶೀಲಿಸಿಕೊಂಡು ಕ್ರಮ ಜರುಗಿಸಬಹುದಾಗಿರುತ್ತದೆ ಹಾಗೂ ಸದರಿ ಪ್ರಕರಣದ ವಿಚಾರಣೆಯನ್ನು
ಈ ಕಾರ್ಯಾಲಯದಲ್ಲಿ ಮುಕ್ತಾಯಗೊಳಿಸಿ, ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ(1)(ದ): 41/2008-09
ದಿನಾಂಕ: 28-10-2010 ಅನ್ನು ರದ್ದುಪಡಿಸಿ ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸ. ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ ಈ
ಭೂಮಂಜೂರಾತಿ ಮಾಡುವ ಪೂರ್ವದಲ್ಲಿ ಕಂದಾಯ ಮತ್ತು ಭೂದಾಖಲೆಗಳಲ್ಲಿ ಈ ಹಿಂದೆ ದಾಖಲೆಗಳಿದ್ದಂತೆ
ವಿವರಗಳನ್ನು ಯಥಾವತ್ತಾಗಿ ಪುನರ್‌ಸ್ಥಾಪಿಸಿ ಮುಂದುವರಿಸಿಕೊಂಡು ಹೋಗಲು ಆಯಾ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು,
ತಹಸೀಲ್ದಾರರು ಮತ್ತು ಭೂದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರವರುಗಳಿಗೆ ಆದೇಶಿಸಿದೆ.

ಈ ಆದೇಶವನ್ನು ತೆರೆದ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸೂಕ್ತ ಉತ್ತರೇಖನ ನೀಡಿ, ಬೆರಳಚ್ಚು ಮಾಡಿಸಿ, ಓದಿ, ಕೇಳಿ,
ಹೇಳಿ, ಸರಿಪಡಿಸಿ, ಸರಿ ಇರುತ್ತದೆಂದು ಪ್ರಾತಿಪದಿಸಿಕೊಂಡು ದಿನಾಂಕ: 02-06-2023 ರಂದು ಉದ್ದೇಶಿಸಲಾಯ್ತು.

CANO-335

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು,
ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ, ಹಾಸನ.

"ಜೆ.ಎಸ್. ಪ್ರತಿ ಪ್ರತೀಕರಿಸಿದೆ"

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಹೇಮಾವತಿ ಜಲಾಶಯ ಯೋಜನೆ, ಹಾಸನ

OFFICE OF THE SPECIAL LAND ACQUISITION OFFICER,

Deputy Commissioner's Office Building, Hassan.

No.L.N.D./H.R.P.(1)(D):41/2008-09

Date: 02-06-2023

Present: Dr.Manjunath V, K.A.S.
Spl. Land Acquisition Officer,
Hemavathi Reservoir Project, Hassan.

Petitioner:

Versus

Respondent:

Police Inspector,
D.C.R.B.Division, Hassan.
(C.E.N.Crime Police, Hassan)

Smt. Shanthamma,
W/o late Krishnegowda,
Bettagalale Village,
KonanoorHobli,
Arakalagudu Taluk,
Hassan Taluk.

Preamble: -

Below mentioned complaints are submitted to the Government to take disciplinary action in accordance with law against the officers / employees who have committed dereliction of duty by misusing the offices, by illegally creating fake documents in the matter of granting land to the victims who have lost their lands for the construction of Hemavathi / Yagachi / Watehole Reservoirs, by -

1. Letter No.L.N.D.(2) 788/2016-17 dated 03-10-2019 and 20-12-2019 of the Deputy Commissioner, Hassan District.
2. Complaint-Petition dated 15-10-2019 of the Karnataka State Farmers' Association, Hassan Unit, PashchimaGhattaUlisiVedike, Federation of Associations, Hassan District Unit and others.
3. Representations dated 28-11-2019 (5 petitions), 01-12-2019 (3 representations), 03-12-2019 and 07-12-2019 of Sri PurnachandraThejasvi, Sri Lokesh, Sri Bharath J., Sri B.G.Rangaswamy, Sri S.Dyavegowda, Advocates, Hassan District.
4. Complaint-Petitions dated 06-12-2019 (4 representations) and 07-12-2019 of Sri Dyavegowda, President, Janatha Dal (Secular), ArakalguduTaluk, Ex-President, District Panchayat, Hassan and President, District Janatha Dal, Legal Cell, Hassan.

5. Complaint-Petitions dated 06-12-2019 and 07-12-2019 (2 representations) of Sri B.C.Gowdegowda, Sri Manjunath, Sri Sheshagiri and others, public of Arakalgudu Taluk submitted to the government.
6. 4 Representations dated 23-12-2019 submitted by Hon'ble MLAs, Sakaleshpura, Holenarasipura, Alur, Arasikere, Shravanabelagola and Belur Assembly Constituencies to the Hon'ble Revenue Minister and Hon'ble Home Minister and the Chief Secretary to the Government, Government of Karnataka.
7. Meeting Proceedings and directions dated 10-12-2021 of the 15th Legislative Public Accounts Committee, Room No.106, 1st Floor, VidhanaSoudha, Bengaluru.
8. Proceedings of the meeting dated 03-03-2022, 18-06-2022, 29-09-2022 and 09-01-2023 and directions of the Hon'ble Commissioner, State Rehabilitation and Reconstruction and Ex Officio Secretary to the Government, Revenue Department, Bengaluru.

The Government having seriously considered the above representations, in the complaint-petitions at Sl.Nos.(2) to (6), the government has been prayed to take disciplinary action against the officers/employees who have committed dereliction of duty by misusing the offices, by illegally creating fake documents in the matter of granting thousands of acres of land reserved for the victims who have lost their lands for the construction of Hemavathi / Yagachi / Watehole Reservoirs.

The Deputy Commissioner, Hassan District, has submitted reports dated 03-10-2019 and 20-12-2019 read at Reference (1) above, in respect of the subject referred to in the said complaint-petitions, and reported that an investigation team headed by the Assistant Commissioner, Hassan Sub Division, Hassan, comprising of the Assistant Commissioner, Sakaleshpura Sub Division, Sakaleshpura, Special Land Acquisition Officer, Yettinahole Project, Hassan, is formed to enquire into the genuineness of the documents available in the files pertaining to the lands granted to the non-victims for illegally granting lands reserved for granting to the true submergence victims for rehabilitation, from the year 2015-16. Accordingly, the investigation team headed by the Assistant Commissioner, Hassan District, has scrupulously verified all the cases of grant of lands from the year 2015-16 till date. As observed, out of the total 979 grant cases, 569 cases pertain to the orders passed by the Special Land Acquisition Officer and the remaining 414 cases are containing forged signatures of the office of the Special Land Acquisition Officer and are containing created documents and some cases of grant are also subjected to alienations. They have also reported in the

investigation report that even in some genuine cases of grant of the office of the Special Land Acquisition Officer, files are not containing documents properly.

As reported by the Deputy Commissioner, Hassan, to the Government, directions are issued to the Special Land Acquisition Officer, to cancel 414 cases of unauthorised grants and to register criminal case against those illegal grantees, as on 30-06-2018, totally 2425 applications are pending for grant of land and a Committee comprising of the Assistant Commissioners of the respective Sub Divisions, Special Land Acquisition Officer, Hemavathi Reservoir Project (Rehabilitation), Hassan, Tahsildar and the Assistant Director of Land Records, has been formed to scrupulously verify the said applications together with the necessary documents, and since the condition as to period of non-alienation clause of land grant has been withdrawn, it has lead to all these confusions and illegal activities, and the Deputy Commissioner, Hassan District, has requested and recommended to the Government to pass an order of prohibition of alienation and has also recommended to the Government that it is suitable to conduct a higher investigation at the government level to take action against the officers and employees who have unauthorisedly granted lands and also against those who have instigated such illegal grants or those who have got such illegal grants, in order to avoid recurring of such cases in future and also it is necessary to conserve the government lands.

The Hon'ble Government, after verifying the proposal submitted by the Deputy Commissioner, has passed Order No.RD.59.ViKoVi 2019 (P-1), Bengaluru, dated 06-02-2020, appointing the Commissioner, State Rehabilitation and Reconstruction and Ex-Officio Principal Secretary to the Government, Revenue Department, Bengaluru, ordering to take up the investigation of the case and by completing the entire investigation within three months, submit a report to the government, since it is necessary to take disciplinary action in accordance with law against those officers/employees who have misused the power in regard to the grant of land reserved for the land-victims of construction of Hemavathi / Yagachi / Watehole Reservoirs and committed dereliction of duty by illegally creating fake documents, and also to take action in order to avoid recurring of such events again in future and also it is necessary to conserve the government lands.

Action has already been taken and lodged a complaint under No.L.N.D.34/19-20 dated 30-12-2019 to the Sub Inspector of Police, City Police Station, Hassan, and requested to register criminal case in respect of 414 cases of illegal grants during the period from 01-01-2015 to 30-12-2018, and accordingly, a letter was addressed to the Police Inspector, C.E.N. Crime Branch Police Station, Hassan, to investigate and take action and accordingly, F.I.R.No.0157/2019 dated

24-10-2019 under Sections 465, 468, 420 has been registered, investigation has been conducted and during the investigation of the said cases the Police Inspector, C.E.N. Crime Branch Station, Hassan, has secured the original files of land grants for the period from 2015 to 2019 and after verifying the files, submitted investigation reports to the Superintendent of Police, Hassan, dated 05-12-2020, under Letter Nos. C.E.N/157/H.R.P.2019/01, C.E.N/157/H.R.P.2019/02, C.E.N/157/H.R.P.2019/03, C.E.N/157/H.R.P.2019/04, C.E.N/157/H.R.P.2019/05, C.E.N/157/H.R.P.2019/06, C.E.N/157/H.R.P.2019/07, C.E.N/157/H.R.P.2019/08, C.E.N/157/H.R.P.2019/09, and accordingly, the Superintendent of Police, Hassan, has submitted a representation and also the investigation report on 16-03-2021 under letter No. C.B./H.R.P/83/2021 to the Hon'ble Deputy Commissioner and requested to cancel the Official Memorandums of unauthorised land grants shown in the below reports.

1. **Annexure-1(a):** As regards cancelling 414 cases of land grants made by directly receiving the Official Memorandum in the Taluk Offices.
2. **Annexure-(1):** As regards cancelling 41 cases of unauthorised land grants by issuing Official Memorandum to two persons by using one fake award copy and payment voucher.
3. **Annexure-(2):** As regards cancelling 62 cases of land grants made for the second time by using the documents of submergence victims during the period from 1970 to 2015 by securing submergence documents of the very same victims.
4. **Annexure-(3):** As regards cancelling the grant in respect of 14 cases wherein Grant Certificate has been issued and Phodikatha has been done without fixing the tree-malki, and to fix the tree-malki.
5. **Annexure-(4):** As regards cancelling totally 837 Official Memorandums under which Grant Certificates are issued without fixing the tree malki, (Sakaleshpura-526, Belur-211, Alur-52, Hassan-23, Alur-25) and issuing Grant Certificate after the tree-malki is fixed.
6. **Annexure-(5):** As regards cancelling grant of lands of submergence victims made by Sri Cap. Srinivasgowda, Special Land Acquisition Officer, in 591 cases and 57 cases of grants made on the basis of the created gazette notification and fake documents during the period from 01-12-2018 to 24-10-2019 totally 648 cases.
7. **Annexure-(6):** As regards cancelling 40 Official Memorandums made by Sri B.A.Jagadish, Special Land Acquisition Officer, granting lands in 40 cases as submergence victims and the Grant Certificates issued by the Tahsildar, Sakaleshpura.

8. **Annexure-(7):** As regards cancelling the cases of granting land on the basis of fake submergence records by considering 32 persons who are not the Hemavathi Reservoir Project victims.
 9. **Annexure-(8):** As regards cancelling 226 cases of grants of lands in the possession of the Forest Department and even though in the pahani it is mentioned as the government gomala land.
 10. **Annexure-(9):** As regards cancelling 56 cases of grant of land made only by issuing Official Memorandums without obtaining complete records and benami (misnomer).
- Out of the unauthorised land grants shown in the above Annexure-01 to Annexure-09, in 977 cases of land grant, since there is a mention that "Any grant of land made under these rules shall be liable to be cancelled and the land resumed by the Authority which granted it, where the grant has been obtained by making false or fraudulent representations or is contrary to these rules: Provided that no such cancellation shall be made without giving an opportunity of being heard to the grantee", under transparency and principles of natural justice, in accordance with rules the unauthorised grantees were given sufficient time and opportunity, verified documents, held enquiries, and the Official Memorandums of illegal land grants for the period from 2015 to 2019, have already been ordered to be cancelled as per the investigation report of the Investigating Officer.
 - Thereafter, as per the meeting proceedings and the directions of the 15th Legislative Public Accounts Committee, Room No.106, 1st Floor, Vidhana Soudha, Bengaluru, held on 14-12-2021, and the meeting proceedings and directions of the Hon'ble Commissioner, State Rehabilitation and Reconstruction and the Ex-Officio Principal Secretary to the Government, Revenue Department, Bengaluru, dated 18-06-2022, 29-09-2022 and 09-01-2023, it is just and proper action that if any illegal land grant cases are found under Hemavathi Reservoir Project, they shall be cancelled in accordance with rules and since from the police investigation report it is already prima facie proved that the above flaws and mistakes are found in granting lands from reserved and unreserved government lands to the landlosers of backwaters of Hemavathi Reservoir Project, since in the cases of land grant from 2015 to 2019 there is violation of Karnataka Land Grant Rules, and such grants have come to limelight from verification of documents, in the same way, in order to ensure and ascertain the cases of land grant for the period from 2005 to 2014 and to know the genuineness of the land grants, in regard to the forgery of the officers' signatures, the officer-employees are enquired and their admitted signatures are already sent

to the Forensic Laboratory, and the report is awaited. Therefore, in the name of the submergence victims of Hemavathi / Yagachi / Watehole Reservoir Projects, relatives of the submergence victims, others in the name of the submergence victims, unauthorisedly got the government lands in violation of the Karnataka Land Grant Rules, and got Official Memorandums, Grant Certificate, Khata, Mutation and pahani records and also got the durasthi and got new survey numbers and hence, under the principles of natural justice, the fake submergence victims, the relatives of submergence victims, and those who have got the grants in the name of the submergence victims, were given notices No.LND/Notice/01-09/2020-21 giving opportunity of hearing as regards the Official Memorandums issued to the grantees, calling upon them to produce necessary and cogent documents so as to establish that they are the genuine grantees, on 12-12-2022 for the first time and since no replies or objections were received from them, final notices were got served through the Village Accountants concerned on 15-02-2023 as regards the cancellation of the Official Memorandums, and 15 days time was given to appear in person for enquiry on 27-03-2023 as regards the cancellation of the Official Memorandums of land grants issued previously. And in this regard, paper publication was also published in Vijaya Karnataka and Janatha Madhyama Daily newspapers on 28-02-2023. In spite of that, objections are not received in this office in the name of the respondent (grantee).

Further, as informed in the notice dated 15-03-2023, enquiry was conducted in several cases of land grant including this case, the grantee in this case had appeared, but had not produced any documents. In spite of that, the documents available in the land grant file of this office were verified and the enquiry has been adjourned to 27-3-2023. On 21-03-2023 the grantee appeared and produced some documents. Despite, the following anomalies are found in this land grant case.

- Submergence Certificate, which is the crucial document for grant of alternate land, is not found to have been submitted.
- From the available records, any application in writing for grant of alternate land is not found to have been submitted by the respondent Smt. Shanthamma, W/o late Krishnegowda or any of her family members transferring the right to take the grant to any other person, and no kind of declaration is also made. Declaration as regards the details of all the properties survey number-wise, of the respondent, (full details with survey number-wise of all the properties of the family of the submergence victim – awardee) is also not filed.

- At the time of getting the land grant the respondent has not produced either Preliminary notification issued under Section 4(1) or final notification issued under Section 6(1) as regards the acquisition of the land belonging to her previously for the backwaters of the Hemavathi Reservoir, or the Award Notice, Award Statement, or the Payment Voucher, Form-F and Award order, etc.
- The respondent Smt. Shanthamma, W/o late Krishnegowda has been granted 4-00 Acres of land in Sy.No.53 Block 24 of Bettagalale Village, KonanoorHobli, ArakalguduTaluk, on the ground that 0-11 Guntas of land in Sy.No.154/1 of Chowdanahalli Village of the Khatedar Sri Arogyappa, S/o Joseph has been submerged in the Hemavathi Reservoir Project, by making a proceeding, and issuing Grant Certificate. However, the factum of reserving land in Sy.No.6 of Bettagalale Village KonanoorHobli, ArakalguduTaluk, for disbursing to the submergence victims is not found in the Mysore/Karnataka Gazette No.LND II PR.509-C-10522/69-70 Date 3rd February 1971, LND II PR.509-C-10522/69-70 date 4th February 1972, LND II PR.509-C 10522/69-70 date 29th May / 14th June 1972 and LND II PR.509-C-10522/69-70 Date 16th September, 1975 available in this office.
- No documents or information is found to show that before issuing Grant Certificate in respect of 4-00 Acres of land in Block 24, Sy.No.53 of Bettagalale Village, KonanoorHobli, ArakalguduTaluk, the Tahsildar, Arakalgudu Taluk, has ensured that the Forest Department has got remitted the tree-malki price or if no tree-malki was there, NOC was obtained and then the Grant Certificate was issued.
- Upon verification of the original land grant file available in this office, Official Memorandum, spot inspection note, bond of the applicant, statement of the applicant, and the mahazar written to the government, Notary Affidavit, sketch of Sy.No.53, award order, and payment voucher, Form-F, income certificate, AhavalTakhte, information as regards holding no land and Genealogical tree signed by the Village Accountant and the applicant, etc., are available in the original land grant file. However, the grantee has not produced the above documents to ascertain the genuineness of her grant of land.

Therefore, since the respondent grantee has not established the genuineness of the grant of land made in her favour within the stipulated time, and since in the written notice issued from this office to the respondent on 12-12-2022 and 15-02-2023, it was clearly notified her that "even now if you, land grantee, assert that you are true submergence victim, you are

called upon to produce within 15 days from the date of service of this notice as per the checklist enclosed to this notice, the original records of submergence and the award records, etc., preliminary notification issued under Section 4(1) or final notification issued under Section 6(1) as regards the acquisition of the land belonging to her previously for the backwaters of the Hemavathi Reservoir, the Award Notice, Award Statement, Payment Voucher of receipt of compensation, Form-F and Award order, along with the other authentic original documents available with you, Aadhar Card, Election ID card, Residential Certificate, Ration card and the certified Genealogical Tree issued by the Tahsildar, and other necessary original documents, to verify as to the genuineness of the submergence victim, within 15 days from the date of receipt of this notice, failing which it will be deemed that you have no objection or say or written arguments and for the above reasons, the Official Memorandum granting land to you is cancelled, which please note", and accordingly, the undersigned has conducted enquiry on 15-03-2023 and the grantee (respondent) was present, but in order to ascertain the genuineness of the grant in her favour, she has not produced any documents. Since the grantee stated that she would produce the same on 27-03-2023, the enquiry was adjourned to 27-03-2023. On 27-03-2023, the final hearing was taken up and closed and this case is reserved for final order as regards to the cancellation of the grant of land under Official Memorandum No.HRP.(1)(D):41/2008-09 dated 28-10-2010.

Therefore, it is just and proper for the Assistant Commissioners of the respective Sub Divisions to cancel the grant certificate, khata mutation and pahani, got done as per the Official Memorandum No.HRP(1)(D):41/2008-09 dated 28-10-2010, and, in case durasth has been done, the Assistant Director of Land Records, Arakalgudu Taluk has to take necessary action to put up proposal before the Technical Assistant to the Deputy Commissioner, and Ex Officio Deputy Director of Land Records, Hassan District, Hassan, to restore the records of the land as they were prior to the grant of land. Therefore, for all the aforesaid reasons, the following order is passed as regards the cancellation of the Official Memorandum No.HRP(1)(D):41/2008-09 dated 28-10-2010 coming within the limits of the undersigned competent authority under Section 25(1) of the Karnataka Land Grant Rules, 1969.

::ORDER::

I, Dr. Manjunath V, K.A.S., Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan, exercising the power conferred upon me, as

enunciated under Rule 25(1) of the Karnataka Land Grant Rules, 1969, "where the grant has been obtained by making false or fraudulent representations or is contrary to these rules, such grant of land made under these rules shall be liable to be cancelled and the land resumed by the land granting authority: and since there is also a mention that no such cancellation shall be made without giving the grantee an opportunity of being heard", even though sufficient time and opportunity were given to the respondent under the transparency and principle of natural justice, since the respondent / grantee did not file objections or reply, for the aforesaid reasons, it is just and proper and necessary to take action to cancel the Official Memorandum No.HRP(1)(d):41/2008-09 dated 28-10-2010 whereunder the respondent / grantee Smt.Shanthamma, W/o late Krishnegowda was granted 4-00 Acres of land in Sy.No.53 Block No.24 of Bettagalale Village, KonanoorHobli, ArakalgudTaluk, hence the enquiry of this case is to be continued in accordance with law and action may be taken as regards the grant of land in violation of the conditions of grant of land. Hence, the enquiry in this case has been closed and the Official Memorandum No.HRP(1)(D):41/2008-09 dated 28-10-2010 has been cancelled and the respective Assistant Commissioners, Tahsildar and the Assistant Directors of Land Records, have been directed to restore and continue the entries of the revenue and land records as regards Block No.24, Sy.No.53 of Bettagalale Village.

This order has been pronounced in the open Court on 02-06-2023 after dictating, getting it typed, read over, rectified and ascertained as to its propriety.

Sd/- 02/06/2023.

Dr.Manjunath V, KAS,
Special Land Acquisition Officer,
Hemavathi Reservoir Project,
Hassan.

IN THE COURT OF THE SPECIAL LAND ACQUISITION OFFICER,
HEMAVATHI RESERVOIR PROJECT, HASSAN,

Present:- Shri G. Channappa, B.Sc.,
Special Land Acquisition Officer,
Hemavathi Reservoir Project, Hassan.

Land Acquisition Case No. 754, 755, 759, 763, 1968-69.
757, 743, 821, 828, 878

Government.

-VS-

1) *annamanna s/o Chinnappa*
2) *puttegowda s/o Annappa*

AWARD ORDER.

Government have in their order No. RD.. 93..... AQH.. 68....
Dated 13-10-1968... Sanctioned the acquisition of 63... acres. 14...
Guntas of land in S. Nos. 7, 31... of...
Village... Taluk... for the
Hemavathi Reservoir Project, and the Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan, has been appointed under clause 'c' of Section 3 of the Land Acquisition Act to perform the functions of a Deputy Commissioner in respect of all further proceedings under the said Act and to take order for the acquisition of the properties.

The preliminary Notification under Section 4(1) of the Land Acquisition Act was published on pages 1103 to 1107... Part III(1) of the Mysore Gazette, Date 25-4-1968...

The declaration issued under section 6(1A) of the Land Acquisition Act has been published on pages 119 to 127... Part III (1) of the Mysore Gazette Date 19-6-1968 and the Proclamation was published in the village on 24-10-1968...

Notice under Section 9 of the Land Acquisition Act was served on the party on 23-4-1968... appeared before the

undersigned and furnished his statement on 10-12-1968...

0-03 The extent of land to be acquired is... Dry/Wet/...
0-03 Garden out of S. Nos. 7...
0-02

At the time of building up of records preliminary enquiry on 21-7-1968 the mahazardars have valued the land at Rs. 1500/- per acre...

The party in his statement furnished on 10-12-1968...
has claimed Rs. 2000/-... per acre of Dry, Wet or Garden

land. He has/has not produced documents in support of the claim. He has not produced witnesses for examination in

No. R. pr. 152/70-71.

Office of the Special Land Acquisition Officer, Hemavathi Reservoir Project, Hassan, District

7/8/68
14/8/68
15/8/68
16/8/68
17/8/68
18/8/68
19/8/68
20/8/68
21/8/68
22/8/68
23/8/68
24/8/68
25/8/68
26/8/68
27/8/68
28/8/68
29/8/68
30/8/68
31/8/68
1/9/68
2/9/68
3/9/68
4/9/68
5/9/68
6/9/68
7/9/68
8/9/68
9/9/68
10/9/68
11/9/68
12/9/68
13/9/68
14/9/68
15/9/68
16/9/68
17/9/68
18/9/68
19/9/68
20/9/68
21/9/68
22/9/68
23/9/68
24/9/68
25/9/68
26/9/68
27/9/68
28/9/68
29/9/68
30/9/68
1/10/68
2/10/68
3/10/68
4/10/68
5/10/68
6/10/68
7/10/68
8/10/68
9/10/68
10/10/68
11/10/68
12/10/68
13/10/68
14/10/68
15/10/68
16/10/68
17/10/68
18/10/68
19/10/68
20/10/68
21/10/68
22/10/68
23/10/68
24/10/68
25/10/68
26/10/68
27/10/68
28/10/68
29/10/68
30/10/68
31/10/68
1/11/68
2/11/68
3/11/68
4/11/68
5/11/68
6/11/68
7/11/68
8/11/68
9/11/68
10/11/68
11/11/68
12/11/68
13/11/68
14/11/68
15/11/68
16/11/68
17/11/68
18/11/68
19/11/68
20/11/68
21/11/68
22/11/68
23/11/68
24/11/68
25/11/68
26/11/68
27/11/68
28/11/68
29/11/68
30/11/68
1/12/68
2/12/68
3/12/68
4/12/68
5/12/68
6/12/68
7/12/68
8/12/68
9/12/68
10/12/68
11/12/68
12/12/68
13/12/68
14/12/68
15/12/68
16/12/68
17/12/68
18/12/68
19/12/68
20/12/68
21/12/68
22/12/68
23/12/68
24/12/68
25/12/68
26/12/68
27/12/68
28/12/68
29/12/68
30/12/68
31/12/68

136

There is no dispute regarding the extent notified for acquisition.

The Executive Engineer, Harnam Singh Bhabra
Jammu, in the valuation of the house as Rs 1958-40. I
accept the same. For the site a Special Compensation at
Rs 1/- per Sq. yard is awarded.

you readers set back in - General and
L.A.C 706-91260-69

	A.C.	Dry	H. P.
1. Land Compensation for S.Nos 18/4, 18/7, 19/9, 19/4	1-24	8000/-	2560.00
2. Malki value	5-10	15000/-	1250.00
3. Crop/other compensation.			120.00
4. Statutory allowance at 15%			1956.40
			290.65

Admission
No. 1000

The Compensation amount of Rupees 35 thousand six hundred and eighty and p. ninety only be paid to the claimant in full & final to Rangoon.

The possession of the land will be handed over to the Public Works Department by the Taluk Officer, Taluk.

The assessment due on the land will be reduced from the Demand from... 1969-70.....

(G. CHA... 27/1/69
Special Land... Collection Officer
Hemavathi Rose... Project, Hassan.

The declaration issued under Section 6(1A) of the Land Acquisition Act has been published on pages C19 to C27 part III (I) of the Mysore Gazette dated 19-10-1968 and the proclamation was published in the village on 24-10-1968.

Notice under Section 9 of the Land Acquisition Act was served on the party on 23-11-1968 he appeared before the undersigned and furnished his statement on 10-12-1968.

The extent of land to be acquired is 1.24 dry 0-10 wet – country filed house kh No 14- 24 x 34, Hittal /Kh No.35 105 x 60 Garden out of S.Nos. 18/4, 0-03 wet, 18/7, 0-03 for wet, 18/9, 0-02 for wet, 19/4, 0-02 for wet, 23/6, 0-16 dry 23/12, 0-31 dry, 26/13 0-15 dry, 26/15, 0-02 dry.

At the time of building up of records/ preliminary enquiry on 31-7-1966 the mahazardars have valued the land at Rs.1500/- per acre of dry, 4000/- per acre for wet. The party in his statement furnished on 10-12-1968 has claimed Rs.2000/-, 8000/- per acre of Dry, Wet or Garden land. He has not produced documents in support of the claim. He has not produced witnesses or examination in this behalf. The Khata stands in the name of Javaramma w/o Chinnegowda as per R.R Index of Lands Register extract.

There is no dispute regarding the extent notified for acquisition.

There are two jack fruit trees are in his hittal kh No.35 and another in S.No. 23/12. The party has settled for compensation. The party wants to remove the tree and wants compensation for loss of income. As per officer of the forest Dept

...3/-

officer. Compensation of Rs.100/- for the tree in hittal and Rs.20/- for the tree in S.No. 23/12 is awarded the party could cut and remove the trees.

The executive Engineer, Hemavathi Dam Division Gorur has furnished the valuation of the houses as Rs. 1958-40. I accept the same. For the site and hittal compensation at Rs. 1/- for Sq yard is awarded.

Houses site $24 \times 34 = 90 \frac{2}{3}$ Sq yd = 90-65
Hittal $105 \times 60 = 700$ =700-00

For reason set forth in the General Award L.A.C 706-915/68-69. I fix the land valuation at Rs.5000/- per acre of wet, Rs. 1600 per acre of dry land and award compensation as noted below:-

	A.G. of Dry	Rs. P.
1. Land Compensation for S.Nos. 18/4, 18/7, 18/9 19/4, 23/6, 22/12, 26/3 26/15	1-24 at 1600/- 0-10 wet 5000/-	2560-00 1250-00
2. Malki value		120-00
	House compensation	1958-40
	House site & Hittal	790-65
3. Crop/other compensation		
4. Statutory allowance at 15%		1001-85
	Total	7680-90

The compensation amount of Rupees Seven Thousand Six hundred and eighty and ps ninety only be paid to the claimant Sri. Puttegowda S/o Rangegowda.

...4/-

-4-

The possession of the land will be handed over to the public works Department by the Tahsildar, Hassan Taluk.

The assessment due on the land will be reduced from the demand from 1969-70.

Sd/- 27/1/69
(G.CHANNAPPA)
Special Land Acquisition Officer,
Hemavathi Reservoir Project, Hassan.

This typed copy prepared as per copy furnished by the petitioner.

Advocate for petitioner

ದೃಢೀಕೃತ ಪ್ರತಿ

PART II - HGR 2

NOTIFICATIONS BY THE HEADS OF DEPARTMENTS

MISCELLANEOUS DEPARTMENT

OFFICE OF THE DEPUTY COMMISSIONER
HASSAN DISTRICT, HASSAN

Notification dated 3rd February 1971.

No. 1560 II. PR. 609-C-10522/69-70. It is hereby notified under Section 71 of the Mysore Land Revenue Act 1964 that an extent of 6,828-0 acres of Government waste lands fit for cultivation and available for disposal in the villages of Arkalgud Taluk, specified in the annexure is reserved for being granted to the Ryots expropriated as a result of execution of the Hemavathi Reservoir project, Gorur, Hassan District.

D. KRISHNA,
Deputy Commr.

1560

List of lands reserved for being granted to the displaced ryots of Hemavathi Reservoir Project in Arkalgud Taluk, Hassan District.

Name of Village.	S. No.	Extent Reserved.
1	2	3

ARKALGUD TALUK.

1 Siddapura	15	25-00
2 Tejur	83	43-04
3 Athni	65	15-32
	84	18-00
	94	15-00
4 Ganganahalli	7	19-10
	8	16-31
	13	19-10
5 Haradur	14	23-02
	86	2-10
	10	15-00
6 Hebbato	75	35-00
	76	
	81	1-35
	31	50-00
	23	15-00
7 Kenchenahalli	7	
8 Ganganahalli	8	
	9	29-30
9 Annigahalli	10	14-06
	13	19-19
	25	
	21	10-00
	27	1-27
	34	5-00
10 Aramadanahalli	66	40-00
11 Chaudanahalli	67	

12 Kurubara Abnur

13 Kouspara

14 Booranahalli Kaval

14 Booranahalli



ಹಿರಿಯ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು
ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರಾಗಾರ ಇಲಾಖೆ
ಮಾನ್ಯ ಸಾರ್ವಜನಿಕ ಸಂಪನ್ಮೂಲ-560 001
ಆರ್.ಎಸ್.ಎಸ್.

Part II

THE MYSORE CATTLE MARKET, 1934

1	2	3	4	5	6	7
50	Kamenahalli	49	46-00		16	6-35
51	Morrahgala	47	5-72		17	10-31
		81	3-08		18	4-26
		6	20-10		20	1-35
		24	10-00		21	11-20
		22	4-09		22	12-19
		33	3-31		24	2-00
		2	0-01		25	5-24
52	Albani	4/2	12-34		26	7-04
		2	3-30		27	4-30
		17	5-00		28	5-25
53	Nari Kongalale	6	40-00		29	16-5
54	Chiklarkalgod	208	129-14		30	22-26
		207			31	16-15
		104	25-29		32	9-32
55	Mallanahalli	33	45-03		34	3-24
56	Vijapura	9	68-14		35	1-31
57	Bijaghatta	105	51-14		36	5-28
58	Shandhoganahalli	27	49-37		37	2-20
59	Gundihonahalli	33	16-17		38	5-19
60	Nelaballi	Gomal	50-00		39	8-21
61	Hoganur	Gomal	20-00		40	15-04
62	Kaniyur	82	1-29		41	14-18
		83	14-09		42	12-19
63	Barsur	14	4-29		43	17-20
		24	8-09		44	12-15
		23	6-36		45	4-19
64	Magge Kaval	1	50-00		46	21-4
65	Modigere	23	55-16		47	6-6
66	Menajur	17	118-00		48	5-30
67	Akanasikababalli Kaval	85	7-21		49	5-01
68	Dasavanahalli Kaval	18	2-11		50	5-34
		19	6-19		51	6-32
		30	4-31		52	9-13
		21	4-34		53	2-19
		23	3-20		54	2-25
		24	7-14		55	119-05
		27	5-09		56	0-31
		28	5-21		57	2-01
		29	5-04		58	10-34
		30	5-19		59	6-39
		31	5-38		60	24-57
		32	5-27		61	8-13
59	Bettagalale	53	419-31		62	8-07
60	Bellamre	1	8-19		63	4-16
		3	16-26		64	0-37
		4	2-36		65	1-3
		5	16-69		66	0-29
		6	4-10		67	0-34
		7	2-25		68	14-35
		8	17-19		69	11-23
		9	9-11		70	9-12
		10	10-09		71	10-15
		12	13-05		72	0-25
		13	7-37		73	8-11
61	Bellamre Cont.	14	9-12		74	10-34
		15	1-08		75	12-00
		16	15-28		76	13-16
					77	9-23
					78	
					79	
					80	
					81	
					82	
					83	
					84	
					85	
					86	
					87	
					88	
					89	
					90	
					91	
					92	
					93	
					94	
					95	
					96	
					97	
					98	
					99	
					100	

68 -30-

TYPED COPY OF ANNEXURE -'B1'

PART III SESSION 2

**NOTIFICATIONS BY THE
DEPARTMENT**

**MISCELLANEOUS DEPARTMENT
OFFICE OF THE
DEPUTY COMMISSIONER
HASSAN DISTRICT HASSAN**

Notification dated 3rd February 1971.

No.LND II PR 509-C-10522/69-70. It is hereby notified under Section 71 of the Mysore Land Revenue Act 1964, that an extent of 6,838-0 acres of Government Waste land fit for cultivation and available for disposal in the villages of Arkalgudd Taluk specified in the annexure is reserved for being granted to the Ryots expropriated as a result execution of the Hemavathi Reservoir Project, Gorur, Hassan District.

Sd/-
(D.Krishna)
Deputy Commissioner

List of lands reserved for being granted to the displaced ryots of Hemavathi Reservoir Project in Arkalgudd Taluk, Hassan District.

Sl. No.	Name of Village	S.No.	Extent Reserved
1	2	3	4
ARKALGUD TALUK			
A. G			
1	Siddapura	15	25-00
2	Tejur	83	43-04
3	Athni	65	15-32
		84	18-00
		94	15-00

4	Ganganahalli	7 8	19-10 16-031
5	Haradur	13 14 86 10	19-00 23-02 2-16 15-00
6	Hebbale	75 76 81 31	35-00 1-36
7	Kenchanahalli	23	50-00
8	Ganganahalli	7 8	15-00
9	Anniganahalli	9 10 13 25 24 27	29-30 14-05 19-19 10-00 1-27
10	Aremadenahalli	34	5-00
11	Choudanahalli	66 67	40-00
12	Kurubara Abbur	28 33 34 35 36	19-03 9-12 17-32 21-07 18-27
13	Konapura	37 85	12-16 18-07
14	Beeranahalli Kavalu	1 2 3 4 5 6 7 8 9 10 11 12 13	6-30 5-04 5-35 5-20 4-28 5-35 5-38 6-05 3-30 7-14 6-00 5-30 6-33

...2/-

PART III -2 THE MYSORE
GAZETTE MARCH

14	Bceranahalli	14	5-10
		15	6-14
		16	5-23
		17	8-04
		18	5-35
		19	6-24
		20	5-01
		21	7-02
		22	6-16
		25	6-33
		26	6-10
		27	6-37
		29	5-22
		30	5-22
		31	5-22
		32	6-07
		33	6-08
		34	7-19
		45	6-05
		41	6-13
		42	6-16
		57	5-25
		58	6-00
		60	6-16
		61	6-00
		62	6-00
		63	7-01
		66	6-24
		69	8-21
		70	5-26
		71	5-27
		72	1-18
		79	5-32
		80	5-16
		81	7-10
		83	6-29
		84	2-09
30	Kamenahalli	49	40-00
31	Moarabgala	47	5-22
		84	3-08
		6	20-00
		24	10-00
32	Nilkunda	22	4-39
		33	3-31

		2	5-03
33	Abbur	4/2	12-34
		2	3-39
		17	5-00
34	Dari Kongalale	6	40-00
35	Chikkarkalgu d	208	129-14
		207	
		104	26-29
36	Mallanaballi	33	45-00
37	Vijapura	9	68-14
38	Bijaghatta	106	51-14
39	Shanbhogana halli	27	49-37
40	Gundihosahalli	39	16-17
41	Nelaballi	Gomala	50-00
42	Honganur	Gomala	30-00
43	Kaniyur	82	1-29
		83	14-09
44	Bargur	14	4-29
		24	8-09
		23	6-36
45	Magge kaval	1	50-00
46	Mudigere	28	53-16
47	Manajur	77	116-00
48	Ankanaikana halli Kaval	85	7-21
49	Basavanahalli Kaval	18	6-07
		19	6-19
		20	4-32
		21	4-34
		23	3-20
		24	7-04
		27	5-09
		28	5-21
		29	5-04
		30	5-19
		31	5-39
		39	5-27
50	Bettagalale	53	419-31

PART III -2 MYSORE GAZETTE
MARCH

51	Bellame	1	8-19
		3	16-26
		4	2-36
		5	16-09
		6	4-10
		7	2-25
		8	17-09
		9	9-11
		10	10-09
		12	13-05
		13	7-37
52	Bellame Cont	14	9-12
		15	1-08
		16	15-28
		18	6-35
		17	10-38
		19	4-26
		20	9-35
		21	11-30
		22	19-19
		24	3-00
		25	5-24
		26	7-04
		27	4-30
		28	5-23
		29	15-05
		30	22-26
		31	16-16
		33	9-33
		34	3-28
		35	1-31
		36	5-28
		37	2-20
		38	5-189
		39	8-24
		40	15-08
		41	14-18
		42	19-19
		43	17-20
		44	12-45
		47	4-19
		49	21-14
		50	6-06
		51	5-30
		52	6-02

		53	5-34
		54	6-32
		55	9-15
		48	2-19
		46	2-25
		45	119-05
		11	0-21
52	Hirehalli	44	2-01
		102	10-24
		103	6-39
		104	24-37
		106	8-23
		108	8-07
		111	4-16
		113	0-27
		114	1-03
		122	0-29
		166	0-38
53	Aragallu	1	14-35
		2	11-23
		3	9-12
		4	10-08
		5	0-26
		37	8-11
		39	10-36
		44	12-00
		47	18-16
		49	9-28

Sub:- Rehabilitation of displaced persons of Hemavathi Reservoir Project - grant of land
-for-

- 33 -

ORDER NO. RD. 126 LCH 68, BANGALORE, DATED THE 24TH JUNE 1971.

With reference to the correspondence resting with the D.O. letter No. LAQ.PR. 164.C. 6965/70-71, dated 27.4.71 of the Divisional Commissioner, Mysore Division Mysore and in partial revision of the Government order No. RD 126 LCH 68, dated 13-11-69 on the subject mentioned above, Government is pleased to accord approval to the regulating the land grants made to displaced persons in the ratio fixed by the Hemavathi Reservoir Project Rehabilitation Committee as noted below:

- 1) Persons in whose case, loss of land is less than four acres of dry land,) Four acres of dry land.
- 2) Persons in whose case loss of land is more than four acres of dry land,) One half of the extent lost subject to a minimum of four acres and maximum of ten acres.

This scale will be applicable to grant of land in the area reserved for Rehabilitation of displaced persons under Section 71 of the M.L.R. Act. The displaced persons will however be eligible to get additional land wherever available under ordinary land grant Rules to make up the total extent lost by them.

This is the annexure stated in the Affidavit of

By order and in the name of the President of India,
Sd: J. T. BORKER.
Under Secretary to Government, Rev. Department.

NOTARY.

No. HRP/PR. 518/70-71.

Office of the Deputy Commissioner,
Hassan District,
Hassan, dated 28th June, 1971.

1. Copy communicated to the Special Land Acquisition Officer (RH) HRP Hassan for information and necessary action.
2. Copy to other Special Land Acquisition Officers, HRP.
3. Copy to all the Tahsildars in the District for information.
4. Copy to the Assistant Commissioners of Hassan & Saklespur Divisions for Information.

Subj Copy

TRUE COPY



TO OF (H. T. KOMALA)
M.A., B.Ed., LL.B.
HASSAN, KARNATAKA

(H. T. KOMALA) Deputy Commissioner,
Hassan District,
Hassan, dated 28/6/71

TYPED COPY OF ANNEXURE - C

PROCEEDINGS OF THE GOVERNMENT OF MYSORE

Sub:- Rehabilitation of displaced persons of Hemavathi Reservoir
Project- grant of Land -for-

ORDER NO. RD126 AGH 68, BENGALORE, DATED THE 24TH JUNE 1971.

With reference to the correspondence resting with the D.O: letter No. LAQ.PR.164.C. 6965/70-71, dated 27-4-71 of the Divisional Commissioner, Mysore Division Mysore and in partial revision of the Government order No. RD 126 LGH 68, dated 13-11-69 on the subject mentioned above, Government is pleased to accord approval to the regulating the land grants made to displaced persons in the ratio fixed by the Hemavathi Reservoir Project Rehabilitation Committee as noted below;

- | | |
|---|---|
| 1) Persons in whose case, loss of the land is less than four acres of dry land. | } Four acres of dry land. |
| 2) Persons in whose case, loss of the land is more than four acres of dry land | } One half of the extent
} lost subject to a minimum of four acres and maximum of Ten acres. |

This scale will be applicable to grant of land in the area reserved for Rehabilitation of displaced persons under Section 71 of the M.L.R. Act. The displaced persons will however be eligible to get additional land wherever available under ordinary land grant Rules to make up the total extent lost by them.

By order and in the name of the President of
India

Sd: J.T. BORKER

Under Secretary to Government, Rev. Department

No.HRP/PR.518/70-71.

Officer of the Deputy Commissioner
Hassan District,
Hassan, dated 28th June 1971

1. Copy communicated to the Special Land Acquisition Officer (RH) HRP, Hassan for information and necessary action.
2. Copy to other Special Land Acquisition Officers, HRP.
3. Copy to all the Tahsildars in the District for information.

...2/-

4. Copy to the Assistant Commissioners of Hassan and Sakleshpur Sub-Division for information.
5. Copy to RHM, LND I and II.

Sd/-
For Deputy Commissioner
Hassan District, Hassan
28-6-71

ಸಂಖ್ಯೆ ಹೆ.ಜ.ಂ.ಮೀ.:(1)(ದ)41:08-09.

ವಿಶೇಷ ಭೂವ್ಯಾಧೀನಾಧಿಕಾರಿಗಳ ಕಛೇರಿ

ಹೇ.ಜ.ಯೋ(ಪ್ರವರ್ವಸತಿ) ಹಾಸನ.

ದಿನಾಂಕ: 29-10-2010.

ವಿಷಯ: ಅರಕಲಗೋಡು ತಾಲ್ಲೂಕು, ಕೊನೂರು.

ಹೋಬಳಿ. ಬೆಟ್ಟಗಾಂವಿ ಗ್ರಾಮದ

ಸ.ನಂ. 53 ರಲ್ಲಿ. 4-00 ... ಎಕರೆ ಜಮೀನನ್ನು ದರಬಾಸ್ತು

ಮಂಜೂರಿ ಮಾಡುವ ಕುರಿತು.

ಉಲ್ಲೇಖ: ಈ ಕಛೇರಿಯ ವಿಶೇಷ ರಾಜ್ಯ ನಿರೀಕ್ಷಕರು. ಅರಕಲಗೋಡು ...

ತಾಲ್ಲೂಕು ರವರ ವರದಿ ಸಂಖ್ಯೆ ದಿ.ರಾ.ನಿ.ಪ.ಆ 43:2010-11

ದಿನಾಂಕ: 01-09-2010.

ಅಧಿಕೃತ ಜ್ಞಾಪನ

ಅರಕಲಗೋಡು

..... ತಾಲ್ಲೂಕು, ಕೊನೂರು ಹೋಬಳಿ.

..... ಬೆಟ್ಟಗಾಂವಿ ಗ್ರಾಮದ ಸ.ನಂ. 53 ರಲ್ಲಿ ಹೇಮಾವತಿ/ಯಗಟಿ

ಜಲಾಶಯಕ್ಕೆ ಜಮೀನು ಕಳೆದುಕೊಂಡ ಮುಳುಗಡೆ ರೈತರಿಗೆ ಮಂಜೂರು ಮಾಡುವ ಸಲುವಾಗಿ ಹಾಸನ/ಮಂಡ್ಯ

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು. 419-31 ಎಕರೆ ವಿಸ್ತೀರ್ಣವನ್ನು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿಯಮ 71 ರ ಪ್ರಕಾರ

ಮೀಸಲಾಗಿರುವುದು.

ಕೆಳಕಂಡ ವ್ಯಕ್ತಿಗಳು ಮೇಲ್ಕಂಡ ಸರ್ವೆ ನಂಬರಿನಲ್ಲಿ ಜಮೀನು ಮಂಜೂರಾತಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದರಿಂದ ಹಾಗೂ ಅವರ

ಜಮೀನುಗಳು ಈ ಕೆಳಗೆ ನಮೂದು ಮಾಡಿರುವ ಪ್ರಕಾರ ಹೇಮಾವತಿ/ಯಗಟಿ ಜಲಾಶಯ ಯೋಜನೆಗೆ ಜಮೀನು

ಮುಳುಗಡೆಯಾಗಿರುತ್ತದೆ.

ಕ್ರಮ ಸಂಖ್ಯೆ	ಅರ್ಜಿದಾರರ / ಅರ್ಜಿದಾರರ ಹೆಸರು ವಿಳಾಸ	ಮುಳುಗಡೆ ಗ್ರಾಮ	ಸ.ನಂ.	ವಿಸ್ತೀರ್ಣ	ಖಾತೆದಾರರ ಅಥವಾ ಅನುಮತಿದಾರರ ಅಥವಾ ಹಂಚಿಕೆ ಆದಾರರ ಮೇಲೆ ಸಹಿ ಪಡೆದಿದ್ದಾರೆಯೇ
1	ಪುಟ್ಟಿಗೌಡ ಜನ ರಂಗೇಗೌಡ ಕೊನೂರು ಗ್ರಾಮ ಹಾಸನ ತಾಲ್ಲೂಕು	ಕೊನೂರು	18:4 18:7 23:6	0-03 0-03 0-16 ಇತರೆ	ಖಾತೆದಾರರು

ಈ ವಿಚಾರದಲ್ಲಿ ವಿಚಾರಣೆ ನಡೆಸಿದಾಗ ಈ ಕಛೇರಿಯ ವಿಶೇಷ ರಾಜ್ಯ ನಿರೀಕ್ಷಕರು ಮಂಜೂರಿ ಕೊರೆಯುವ

ಜಾಗವು/ಕಾಳಿ/ತರಿ/ಸಾಗಿಗೆ ಲಾಯಕ್ಕಾಗಿದೆ ಎಂದು ಬಗರ್ ಹುಕುಂ ಆದೆ ಅಥವಾ ಬಗರ್ ಹುಕುಂ ಆಲ್ಲ ಎಂದು

ಅರ್ಜಿಯೊಂದಿಗೆ ವರದಿ ಸಲ್ಲಿಸಿದ್ದು ಜಮೀನು ಮಂಜೂರು ಮಾಡಬಹುದೆಂದು ಶಿಫಾರಸ್ಸು ಮಾಡಿದ್ದಾರೆ. ಈ

ಜಾಗವನ್ನು ವಿಶೇಷ ಭೂವ್ಯಾಧೀನಾಧಿಕಾರಿಗಳು ದಿನಾಂಕ. 27-5-2010 ರಂದು ಸ್ಥಳ ತಪ್ಪಿಸಿ

ನಡೆಸಿದ್ದಾರೆ.

ಮೇಲ್ಕಂಡ ಧಾರಣೆಗಳಿಂದ ಕೆಳಕಂಡಂತೆ ಅರ್ಜಿದಾರರುಗಳ ಹೆಸರಿನ ಮುಂದೆ ಕೊರೆಯುವ ವಿಸ್ತೀರ್ಣವನ್ನು

ಅನುರೂಪಗಳಿಗೆ ಒಂದು ಎಕರೆಗೆ ಕಂದಾಯದ ಕೆಎಸ್/ಗಿರಾಜ್ ಪಟ್ಟು ಅಥವಾ ಎಕರೆಗೆ ರೂ. 250-00 ಎರಡುನೂರ ಇವತ್ತು

ಕಿತ್ತು ಎರಡು ಋಷಿ/ತರಿ/ಕಾಳಿಗೆ ಸಾಗಿಗೆ ನಕ್ಷೆ ಪ್ರಕಾರ ಮತ್ತು 1969 ವೇ ಕರ್ನಾಟಕ ಭೂಮಂಜೂರಾತಿ

76

Translated copy of

ANNEXURE-D

No.HRP(1)(D)41/08-09

Office of the
Special Land Acquisition Officer,
H.R.P. (Rehabilitation), Hassan.
Dated:29/10/2010.

Sub: - Darkhasth Grant of 4-00 Acres of land in Sy.No.53 of
Bettagalale Village, KonanoorHobli, ArkalagudTaluk- reg.

Ref: - Report of this office Special Revenue Inspector, Arakalgud
Taluk No.Vi.Ra.Ni.Pi.Ar.43/2010-11 dated 01-09-2010.

OFFICIAL MEMORANDUM

Under Rule 71 of the Karnataka Land Revenue Rules, the Deputy Commissioner, Hassan/Mandya has reserved 419-31 Acres of land in Sy.No.53 of Bettagalale Village, KonanoorHobli, ArkalagudTaluk, for granting land to the farmers who have lost their lands for Hemavathi/Yagachi Reservoir.

The following persons have filed application for grant of land in the above stated survey number and their lands as mentioned below have been submerged for Hemavathi/Yagachi Reservoir Project.

Sl. No.	Name and address of the Awardees / applicants	Submerged village	Sy.No	Area	Whether they are khatadars or cultivators or whether they have received money on the basis of partition
1	Puttegowda, S/o Rangegowda, Konapura Village, Hassan Taluk.	Konapura	18/4 18/7 23/6	0-03 0-03 0-16 Ors.	Khatadar

Upon making enquiry in this matter, the Special Revenue Inspector of this office has submitted report along with the application recommending that the land requested for grant is fit for cultivation of Coffee/Wet and that there is bagarhukum or no bagarhukum and that the land may be granted. The Special Land Acquisition Officer has conducted spot inspection in this place on 27-5-2010.

For the above reasons, the area of land shown against the names of the applicants has been granted for dry/wet/coffee cultivation in accordance with the sketch and

the Karnataka Land Grant Rules 1969, by levying an upset price of Rs.250-00 per acre. In case there are any tree-malki in the land granted, the Range Forest Officer shall have to fix their price. It is directed that the Tahsildar concerned shall issue Grant Certificate after collecting the price of the trees, the phodi fee, etc. from the tree owners. It is notified that in case the grantees cultivate coffee in the granted land, they shall pay the price of the coffee land to the government and cultivate the land. If coffee is cultivated by violating the rules, the grant will be cancelled on such violation. If it is found that the grantees have obtained the grant by furnishing wrong information, this grant will be cancelled. In case this grant is found to be ineligible, and the grantees do not follow the grant rules, this grant will be cancelled without giving any prior notice.

GRANT DETAILS

Village: Bettagalale		Hobli: Konanoor		Taluk: Arakalgudu			
Sl. No.	Name and address of the grantee	Sy. No.	Block/Sy.No as identified in the sketch	Area granted			
				Total	Kharab	Balance	Type
1	Shanthamma, W/o late Krishnegowda, Bettagalale Village, Arakalgud Taluk.	53	24	2-03		2-03	Dry

Sd/-

Special Land Acquisition Officer,
H.R.P.(Rehabilitation), Hassan.

1. True Copy sent to the Tahsildar, Arakalgudu Taluk, along with the survey sketch (Phodi Statement). It is requested to issue Grant Certificate to the grantees only after getting the price of the trees from the Forest Department and after getting the tree-malki fixed and after getting the malki price and Phodi fees paid to the government.
2. Copy sent to Sri/Smt. Shanthamma, S/W/o late Krishnegowda, Village: Bettagalale, for information.
3. The Deputy Commissioner, Hassan District, Hassan, for information.
4. Copy sent to the Deputy Conservator of Forests, Hassan Division, Hassan, for information and suitable action.

Sd/-

Special Land Acquisition Officer,
H.R.P.(Rehabilitation), Hassan.

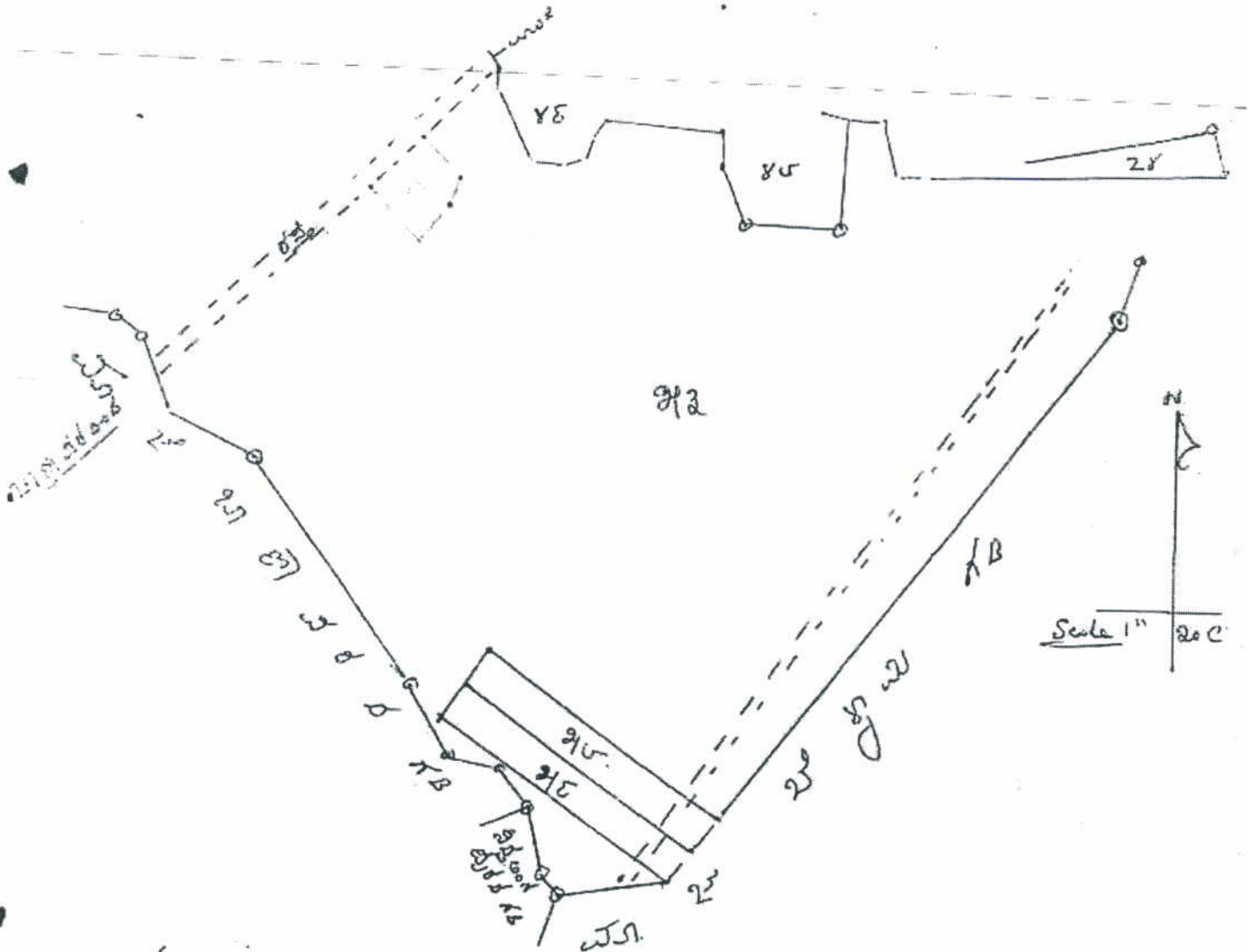
ಮಾಪ: 2500:1

ಪಂಚಾಂಗ: ಹೊಸನೂರು

ತಾಲ್ಲೂಕು: ಹೊಸನೂರು

ಶಿ. ಸರ್ವೇಸಂಖ್ಯೆ 530

ಜಿಲ್ಲೆ: ದಾವಣಗೆರೆ



ಶಿ. ಸರ್ವೇ ಸಂಖ್ಯೆ	ಖಾತೆ ಸಂಖ್ಯೆ	ಅ. ಸಂಖ್ಯೆ ವಿವರಣೆ	ಅನುಭವದಾರರ ಹೆಸರು	ಹ. ಸಂಖ್ಯೆ
530	100	100	ಶಿ. ಸರ್ವೇಸಂಖ್ಯೆ 530ರಲ್ಲಿ - ಈ ಪುಸ್ತಕ ಬಳಸಿ ಮಾಪ ಮಾಡಿ ಹೊಸನೂರು ಪುಸ್ತಕ ಪ್ರಾಯಶಃ ಉಪಯುಕ್ತವಾಗಿರುವ ವಿವರ ವಿವರಿಸಲಾಗಿದೆ.	0.03 ಎಕರೆ ಮತ್ತು 6000 ಚ. ಅಡಿ

ಶಾಂತ

ಪುಸ್ತಕದಾರ

ಶಿ. ಸರ್ವೇ

ಶಿ. ಸರ್ವೇ

ಪ್ರಾಧಿಕಾರ

ಪ್ರಾಧಿಕಾರ

ಪ್ರಾಧಿಕಾರ

ಪ್ರಾಧಿಕಾರ

ಪ್ರಾಧಿಕಾರ

TYPED COPY OF ANNEXURE - ' D Sketch '

ಮಾಜಿ: ಬೆಟ್ಟಗಳಲೆ ಸಂಖ್ಯೆ: ಕೊಣನೂರು ತಾಲ್ಲೂಕು: ಅರಕಲಗೂಡು

ರೀ ಸ.ನಂ. 53 ರ ಜಿಲ್ಲೆ: ಹಾಸನ

ಸ್ಥಳ

ರೀ.ಸ.ನಂ.	ಬ್ಲಾಕ್ ನಂಬರು	ಅಳತೆಯಂತೆ ವಿಸ್ತೀರ್ಣ	ಮಂಜೂರಿದಾರರ ಹೆಸರು	ಷರಾ
53ರ ಪೈಕಿ	4	2-03	ರೀ ಸರ್ವೆ ನಂಬರು 53ರ ಪೈಕಿ ಈ ಹಿಂದೆ ಬ್ಲಾಕ್ ನಂಬರು 24 ರಲ್ಲಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ W/O ಕೃಷ್ಣಗೌಡ ಅವರು ಅನುಭವದಲ್ಲಿರುತ್ತಾರೆ.	0-03 ವಾಸದ ಮನೆ ಕೊಟ್ಟಿಗೆ ಅಂಗಳದ ಬಾಬು ಖರಾಬು

ತಯಾರಿಸಿದವರು

ವಿಶೇಷ ಭೂಮಾವಕರು
ವಿಶೇಷ ಭೂ ಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳ ಕಛೇರಿ,
ಮನವಸತಿ ಹಾಸನ

This typed copy prepared as per copy furnished by the petitioner.

Advocate for petitioner

80

Translated Copy of
Annexure - D, 4

Sy.No.53 of the Village: Bettagalale; Sammata: Konanoor, Taluk: Arakalgudu;
District: Hassan.

Re.Sy. No.	Block No.	Area as per survey	Name of the cultivator	Remarks
53P	24	2-03	Smt. Shanthamma, W/o Krishnegowda has been in enjoyment of Block No.24 out of Re.Sy.No.53 which has been granted	0-03 kharab for residential house, cattle shed and front yard

Prepared by
Special Surveyor,
Office of the S.L.A.O.,
HRP (Rehabilitation), Hassan.

"CERTIFIED"

உயர்நீதி

ಆಧ್ಯಕ್ಷರು: ಶ್ರೀಮತಿ ಬಿ. ಸಿ. LND/481/10-ಎ ಸ: 26.3-11
ಶ್ರೀಮತಿ ಬಿ. ಸಿ. 11-4

2) பென்சைலிக், பீனாஸ்பிரூ பிரபலமானவை 11.4
* * * * *

[illegible]

6340.

20-5-11

မြို့ပေါ်သို့

ಮಲಯಾಳಂ ಭಾಷಾಭಿವೃದ್ಧಿ
ಅಧಿಕಾರಿಗಳು
ಅಧಿಕಾರಿಗಳು

ಚರಾಕ್ಷ್ಯ ದೃಢೀಕರಣ ಕಲಾ ಪ್ರತಿ

ಚರಾಕ್ಷ ದೃಢೀಕರಣ ಸಕಲು ಪ್ರತಿ

TYPED COPY OF ANNEXURE - 'D1'

ರವರಿಗೆ

ತಹಸೀಲ್ದಾರರು

ಅರಕಲಗೂಡು ತಾಲೂಕು

ಅರಕಲಗೂಡು

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಕೋಣನೂರು ಹೋ// ಬೆಟ್ಟಗಳಲೆ ಗ್ರಾಮದ ಸ.ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ 2-03 ಎಕರೆ ದರಖಾಸ್ತು ಮಂಜೂರಾತಿ ಜಮೀನಿಗೆ ಮರಮಾಲ್ಕಿ ನಿಗದಿಪಡಿಸುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ:- 1) ತಮ್ಮ ಪ.ಸಂ: LND/481/10-11 ದಿ: 26-3-11

2) ವನವಾಲಕ, ಕೋಣನೂರು ಇವರ ವರದಿ ದಿ: 11/4/11

ಮೇಲ್ಕಾಣಿಸಿದ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಈ ಮೂಲಕ ತಮ್ಮಲ್ಲಿ Smt.ಶಾಂತಮ್ಮ ಕೋಂ ಕೃಷ್ಣೇಗೌಡ, ಬೆಟ್ಟಗಳಲೆ ಇವರ ದರಖಾಸ್ತು ಮಂಜೂರಾದ ಜಮೀನು ಸ.ನಂ. 53 ಬ್ಲಾಕ್ 24 ರಲ್ಲಿ 2-03 ಎಕರೆ ಜಮೀನು ಮಂಜೂರಾಗಿದ್ದು ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮರಗಳಿದ್ದಲ್ಲಿ ಮರಮಾಲ್ಕಿ ನಿಗದಿಪಡಿಸಲು ಕೋರಿದಂತೆ ಉಲ್ಲೇಖ (2) ರಲ್ಲಿ ವನವಾಲಕ ಕೋಣನೂರು ಶಾಖೆ ಇವರು ಸ್ಥಳ ಪರಿಶೀಲಿಸಿದ್ದು ಯಾವುದೇ ಮರಗಳು ಕಂಡು ಬಂದಿಲ್ಲವೆಂದು ವರದಿ ಮಾಡಿದ್ದಾರೆ.

ಈ ಬಗ್ಗೆ ನಾನು ಸಹ ದಿ: 14-05-11 ರಂದು ಖುದ್ದಾಗಿ ಸ್ಥಳ ಪರಿಶೀಲಿಸಿದ್ದು, ಸದರಿ ಪ್ರದೇಶದಲ್ಲಿ ಯಾವುದೇ ಮರಗಳು ಇರುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ಮರಮಾಲ್ಕಿ ನಿಗದಿಪಡಿಸಬೇಕಾಗಿರುವುದಿಲ್ಲ ಎಂಬ ವಿಷಯವನ್ನು ತಮ್ಮ ಮಾಹಿತಿ ಹಾಗೂ ಮುಂದಿನ ಕ್ರಮ ಕುರಿತು ಕಳುಹಿಸಿದೆ.

ಲಗತ್ : (ವನವಾಲಕರ ಮಹಜರ ವರದಿ)

ಮೂಲಪ್ರತಿ

ತಮ್ಮ ವಿಶ್ವಾಸಿ
ವಲಯ ಅರಣ್ಯಾಧಿಕಾರಿಗಳು
ಅರಕಲಗೂಡು ವಲಯ
ಅರಕಲಗೂಡು 23/5/11

This typed copy prepared as per copy furnished by the petitioner.

Advocate for petitioner

83

Translated copy of

ANNEXURE-D1

To
The Tahsildar,
Arakalgudtaluk,
Arakalgud.

Sir,

Sub: - Fixing tree-malki in respect of granted land measuring 2-03 Acres in
Block 24 of Sy.No.53 of Bettagalale Village, KonanoorHobli - reg.

Ref: - 1) Your letter No.LND/481/10-11 dated 26-3-11.

2) Report of the Forest Guard, Konanoor dated 11-4-11.

With reference to the above subject, it is brought to your notice that Smt. Shanthamma, W/o Krishnegowda has been granted 2-03 Acres of land in Block No.24 of Sy.No.53 of Bettagalale Village, KonanoorHobli, and it was requested to fix the tree-malki, if there are any trees in the said land and accordingly, under Reference (2), the Forest Guard, Konanoor Section has conducted spot inspection and reported that no trees are found in the said land.

In this regard, on 14-5-2011 I have also visited the spot and found that there are no trees in the said area. Therefore, it is brought to your notice and further action that there is no necessity of fixing tree-malki.

Encl: (Mahazar Report of the Forest Guard)

Original Copy.

Yours faithfully,

Sd/- 23/5/11.

Range Forest Officer,

Arakalgud Range,

Arakalgud.



85

translated copy of
Annexure-D2

-: Spot Investigation Note :-

2-03 Acres of land in Sy No 53 of Bettagalale Village, Konanur Hobli has been granted to Mrs. Shantamma W/o Late Krishna Gowda vide Official memorandum He.Js.Yo (1) (D) 41/08-09 Date: 29-10-2010 by the Special Land Acquisition Officer Hassan. I have personally conducted the site investigation on date: 04-06-2011. The Grantee has grown Maize crop on the Land granted to her. There is no objection from anybody and there are no trees in the land, hence I have ordered to issue Saguvali Chit to her.

Tahsildar,
Talluk Office, Arkalgud

Xerox Certified
Copy

Sd/- 6-12-23

Arkalgud

(REV. FORM NO 51) ವಿಶೇಷ ಭರವಸೆಯನ್ನೊದ್ದುಕೊಳ್ಳುವ ಕಾಲದಲ್ಲಿ
 ಬಳಸಲು ಯೋಜನೆ (ಅ) ಹಾಗೂ ಸಬ್ ಅಧಿಕೃತ ಬ್ಲಾಕ್‌ನ ಸಂಖ್ಯೆ
 ಜಿ.ಪ.ಎ.ಎ. (1)(ಎ)41:08-09 ದಿನಾಂಕ 29-10-10 ರಂತೆ
 ಇದುವೇ ಮುಖ್ಯಮಂತ್ರಿಗಳ ಅಧಿಕಾರವ್ಯಾಪ್ತಿಯಲ್ಲಿ
 1992 ಸಂಖ್ಯೆ ಎ.ಆ.ಎ. 421/19 0 FORM - 1

ಈ ಸಂದರ್ಭದಲ್ಲಿ, ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಸಂಬಂಧಗಳು E ಪರಿಶಿಷ್ಟ

ಇದರಲ್ಲಿ, ಈ ಸಂದರ್ಭದಲ್ಲಿ, ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಸಂಬಂಧಗಳು E ಪರಿಶಿಷ್ಟ
 ಸಂಖ್ಯೆ 41:08-09 ದಿನಾಂಕ 29-10-10 ರಂತೆ
 ಜಿ.ಪ.ಎ.ಎ. (1)(ಎ)41:08-09 ದಿನಾಂಕ 29-10-10 ರಂತೆ
 ಇದುವೇ ಮುಖ್ಯಮಂತ್ರಿಗಳ ಅಧಿಕಾರವ್ಯಾಪ್ತಿಯಲ್ಲಿ
 1992 ಸಂಖ್ಯೆ ಎ.ಆ.ಎ. 421/19 0 FORM - 1

ಎಂ.ಕೆ ಸಿಎಸ್

ಎಂ.ಕೆ ಸಿಎಸ್ ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಸಂಬಂಧಗಳು E ಪರಿಶಿಷ್ಟ

ಇದರಲ್ಲಿ, ಈ ಸಂದರ್ಭದಲ್ಲಿ, ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಸಂಬಂಧಗಳು E ಪರಿಶಿಷ್ಟ
 ಸಂಖ್ಯೆ 41:08-09 ದಿನಾಂಕ 29-10-10 ರಂತೆ
 ಜಿ.ಪ.ಎ.ಎ. (1)(ಎ)41:08-09 ದಿನಾಂಕ 29-10-10 ರಂತೆ
 ಇದುವೇ ಮುಖ್ಯಮಂತ್ರಿಗಳ ಅಧಿಕಾರವ್ಯಾಪ್ತಿಯಲ್ಲಿ
 1992 ಸಂಖ್ಯೆ ಎ.ಆ.ಎ. 421/19 0 FORM - 1

TYPED COPY OF ANNEXURE - ' E '

(Rev. Form No.51)

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಹೇಮಾವತಿ ಜಿಲ್ಲಾಶಯ ಯೋಜನೆ(ಮ) ಹಾಸನ ರವರ ಅಧಿಕೃತ
ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಹೇ.ಜ.ಯೋ (1) (ದ) 41 : 08-09 ದಿನಾಂಕ: 29-10-10 ರಂತೆ ಜಮೀನು
ಮಂಜೂರಿಯಂತೆ ಸಾಗುವಳಿ

ಚೀಟಿ ಸಂಖ್ಯೆ ಎಲ್.ಎನ್.ಡಿ 48/10-11

ಕೆಮ್ಮತ್ತಿ ರೂ.

ಬಿಟ್ಟಿರೂ.

ಮೋಡಿ ರೂ.

ಕಂದಾಯ ರೂ.

ಒಟ್ಟು.....

ಪರಿಶಿಷ್ಟ ೧

Form 1

ಗ್ರಾಂಟು ಸರ್ಟಿಫಿಕೇಟ್ - ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ನಿಬಂಧನೆಗಳ E ಪರಿಶಿಷ್ಟ

ಹಿಡುವಳಿಯಲ್ಲಿಲ್ಲದ ಸರ್ಕಾರಿ ಜಮೀನನ್ನು ಸಾಗುವಳಿ ವಿರೇವಾರಿ ಮಾಡಿ ಹಿಡುವಳಿ ಹಕ್ಕನ್ನು ಕೊಡುವುದಕ್ಕೆ ಎಪ್ಪಟ್ಟು ನಿಬಂಧನೆಗಳ ಮೇರೆಗೆ ಈ ಕೆಳಗೆ ಬರೆಯಲ್ಪಟ್ಟಿರುವ ಷೆಡ್ಯೂಲಿನಲ್ಲಿ ವಿವರಿಸಲ್ಪಟ್ಟಿರುವ ಜಮೀನು ವಿಕ್ರಯಿಸಲ್ಪಟ್ಟು ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣೇಗೌಡ ಎಂಬುವರು ನಿಯಮಿತವಾದ ಸರ್ಕಾರಿ ಕೆಮ್ಮತ್ತಿಗೆ ಕೊಂಡುಕೊಂಡಿರುವುದರಿಂದಲೂ ಮತ್ತು ಕ್ರಮವಾಗಿ ಮಂಜೂರಾದಲ್ಪಟ್ಟಿರುವುದಲ್ಲದೆ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಎಂಬುವರು ಮತ್ತು ಸದರಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣೇಗೌಡ ಎಂಬುವರು ಚಲನ್ ನಂ 51, 25/6/11 ರೂ 586=00 ರೂಪಾಯಿಗಳ ಕ್ರಯದ ಮೊಬಲಗಿನ ಪೂರಾ ಹಣವನ್ನು ಸರ್ಕಾರಿ ಖಜಾನೆಗೆ ಪಾವತಿ ಮಾಡಿರುವುದರಿಂದಲೂ ಅರಕಲಗೂಡು ತಾಲ್ಲೂಕಿನ ಅಮಲ್ಗಾರರಾದ ಎಂ.ಕೆ. ಸವಿತ ಎಂಬ ನಾನು ಸದರಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಎಂಬವರಿಗೆ ಸದರಿ ಜಮೀನಿನ ಹಿಡುವಳಿಯನ್ನು ಹೊಂದಲು ಈ ಮೂಲಕ ಅವಕಾಶವನ್ನು ಕೊಟ್ಟಿರುತ್ತೇನೆ. ಅಲ್ಲದೆ ಆ ಜಮೀನನ್ನು ಸದರಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಎಂಬವರಿಗೂ ಅವರ ವಾರಸುದಾರರಿಗೂ ಅವರ ಪ್ರತಿನಿಧಿಗಳಿಗೂ ಮತ್ತು ಹವಾಲ್ತದಾರರಿಗೂ ಸರ್ವೆ ಖಾತರಿ (ಸರ್ವೆ ಗ್ಯಾರಂಟಿ) ನಿಬಂಧನೆಯ ಷರತ್ತುಗಳ ಮೇರೆಗೆ ಈ ಮೂಲಕ ಕೊಟ್ಟು ಖಾಯಂ ಮಾಡಿರುತ್ತೇನೆ. ಈ ರೀತಿಯಾಗಿ ಕೊಟ್ಟು ಖಾಯಂ ಮಾಡಿರುವುದು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ ನಿಯಮಗಳಿಗನುಸಾರವಾಗಿ ಬರುವ ಅಪೀಲಿನಲ್ಲಿ ಅಥವಾ ರಿವಿಜನ್ ತೀರ್ಮಾನದಲ್ಲಿ ರದ್ದಾಗಿರುವುದಕ್ಕೆ ಅಥವಾ ಬದಲಾಯಿಸುವುದಕ್ಕೆ ಒಳಪಟ್ಟಿರುತ್ತದೆ. ಮತ್ತು ಈ ಮುಂದೆ ನಮೂದಿಸಲ್ಪಡುವ ಷರತ್ತಿನ ನಿಯಮಗಳಿಗೂ ಆಯಾ ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ನಿಬಂಧನೆಗಳ ಮೇರೆಗೆ ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಹಾಕಲ್ಪಡುವ ಕಂದಾಯವನ್ನು ಆಯಾ ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಕಾನೂನಿನ ಮೇರೆಗೆ ಅದು ಪುನರ್ವಿಮರ್ಶೆಯಿಂದ ಬದಲಾಯಿಸಲ್ಪಡುವವರೆಗೆ ಕ್ರಮವಾಗಿ ಕೊಡುತ್ತಾ ಬರಬೇಕೆಂಬ ಷರತ್ತಿಗೂ ಒಳಪಟ್ಟು ಅದು ಮೇಲೆ ಹೇಳಿದಂತೆ ಅವರೆಲ್ಲರೂ ನಡೆದು ಬರತಕ್ಕದ್ದು.

...2/-

1. ಪರಂತು, ಈ ಕಂದಾಯವನ್ನು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ ನಿಯಮಗಳ ಮೇರೆಗೆ ಆಗಿಂದಾಗ್ಗೆ ಈ ಸಂಬಂಧದಲ್ಲಿ ವಿದಿಸಬಹುದಾದ ನಿಬಂಧನೆಗಳ ಪ್ರಕಾರ ಪ್ರತಿಯೊಂದು ರೆವಿನ್ಯೂ ಸಾಲಿಗೂ ಕೊಡುತ್ತಾ ಬರಬೇಕು. ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನಿಂದಲೂ ಮತ್ತು ಅದರ ಮೇರೆಗೆ ಏರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳಿಗೂ ವಿಧಾಯಕವಾಗಿರುವ ರೀತಿಯಲ್ಲಿ ಬಲಾತ್ಕಾರದ ನಡುವಳಿಕೆಗಳನ್ನು ಜರುಗಿಸಿ ವಸೂಲ್ಯಾಡಲಾಗುವುದು.
2. ಪರಂತು, ಸಾಮಾನ್ಯವಾದ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಅಥವಾ ಮುನ್ಸಿಪಾಲ್ ಅಥವಾ ಇತರೆ ಸ್ಥಳೀಯ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಕಾನೂನಿನಿಂದ ವಿಧಾಯಕವಾಗಿರುವ ಅಥವಾ ವಿಧಾಯಕ ಮಾಡಲ್ಪಡಬಹುದಾದ ಜಮೀನು ಕಂದಾಯವಲ್ಲದ ಇತರೆ ವರಿಗಳನ್ನು ತೆರಿಗೆಗಳನ್ನು ಮತ್ತು ಸೆಸ್ಸುಗಳನ್ನೂ ಈ ಜಮೀನಿನ ಮೇಲೆ ವಿಧಿಸುವುದಕ್ಕೆ ಈ ಮೂಲಿಕತೆಯ ದಸ್ತಾವೇಜಿನ ದೆಸೆಯಿಂದ ಯಾವ ಅಭ್ಯಂತರವೂ ಇರತಕ್ಕದ್ದಲ್ಲ.
3. ಪರಂತು, ಆ ಗ್ರಾಮದಲ್ಲಿ ಜೀರ್ಣೋದ್ಧಾರ ಮಾಡಲ್ಪಟ್ಟ ಯಾವ ಮೇಜರ್ ಮತ್ತು ಮೈನರ್ ಕೆರೆಗಳನ್ನು ಸರಿಯಾದ ದುರಸ್ತಿನಲ್ಲಿ ಇಡಬೇಕಾದ ಮಾಮೂಲ ಜವಾಬ್ದಾರಿಯೂ ಸದರಿ ಸರ್ವೆ ನಂಬರಿನ ಹಿಡುವಳಿದಾರರಾದ ಕಾರಣದಿಂದ ಅಥವಾ ಇತರೆ ನ್ಯಾಯ ಸಮ್ಮತವಾದ ಮಾಲೀಕರಾದ ಕಾರಣದಿಂದ ಸದರಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣೇಗೌಡ ಎಂಬುವರ ಮೇಲೆ ಹೋರಿಸಲ್ಪಡುತ್ತದೆಯೋ ಆ ಗ್ರಾಮದ ಅಂಥ ಕೆರೆಗಳನ್ನು ಮೇಲ್ಕಂಡ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣೇಗೌಡ ಎಂಬುವರ ಅಥವಾ ಆ ಜಮೀನಿನ ನ್ಯಾಯ ಸಮ್ಮತವಾದ ಇತರೆ ಮಾಲೀಕರು ಇನ್ನು ಮುಂದೆ ಎಲ್ಲಾ ಕಾಲಗಳಲ್ಲಿಯೂ ತಮ್ಮ ಸ್ವಂತ ವೆಚ್ಚದಿಂದ ಒಳ್ಳೆ ದುರಸ್ತಿನಲ್ಲಿಡತಕ್ಕದ್ದು ಮತ್ತು ಅವರು ಈ ಕೆಲಸಗಳನ್ನು ಮಾಡದೆ ತಪ್ಪಿದಲ್ಲಿ ಅವರಿಗೆ ಕ್ರಮವಾಗಿ ನೋಟೀಸನ್ನು ಕೊಟ್ಟು ತರುವಾಯ ಈ ವಿಚಾರದಲ್ಲಿ ಅವರ ಜವಾಬ್ದಾರಿಯೂ ಇರುವವರಮಟ್ಟಿಗೆ ಸದರಿ ಕೆರೆಗಳನ್ನು ದುರಸ್ತಿನಲ್ಲಿಟ್ಟುಕೊಳ್ಳತಕ್ಕ ಕೆಲಸಗಳಿಗೆ ತಗಲುವ ಖರ್ಚನ್ನು ಸದರಿ ಶ್ರೀಮತಿ ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣೇಗೌಡ ಎಂಬವರಿಂದ ಅಥವಾ ಆ ಜಮೀನಿನ ನ್ಯಾಯವಾದ ಮಾಲೀಕನಾದ ಇತರ ಮನುಷ್ಯನಿಂದ ಬಾಕಿಯಂತೆ ವಸೂಲ್ಯಾಡುವುದೂ ಸಹ ಕರ್ನಾಟಕ ಸರ್ಕಾರದವರಿಗೆ ನ್ಯಾಯ ಸಮ್ಮತವಾಗಿ ಇರತಕ್ಕದ್ದು.
4. ಪರಂತು, ಆ ಜಮೀನಿನ ಮೂಲಕ ಹಾಯ್ದು ಹೋಗುವ ಅಥವಾ ಆ ಜಮೀನಿನ ಸುತ್ತಲೂ ಇರುವ ಎಲ್ಲ ರಸ್ತೆಗಳ ಮತ್ತು ದಾರಿಗಳ ಮತ್ತು ನೀರಿನ ಝರಿಗಳ ವಿಷಯದಲ್ಲಿಯೂ ಸರ್ಕಾರದವರಿಗೆ ಅಥವಾ ಸದರಿ ಜಮೀನಿನ ಅಕ್ಕಪಕ್ಕದ ಅಥವಾ ಅದರ ಸಮೀಪದಲ್ಲಿರುವ ಜಮೀನುಗಳ ಮಾಲೀಕತೆಯ ಅಥವಾ ಗ್ರಾಮಸ್ಥರಿಗೆ ಹಾಲಿ ಇರತಕ್ಕ ಹಕ್ಕುಗಳಿಗೆ ಅಥವಾ ಮಾಮೂಲು ಮೇರೆಗೆ ನಡೆದು ಬಂದಿರುವ ಹಕ್ಕುಗಳಿಗೆ ಆಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನಲ್ಲಿರುವುದು ಯಾವುದೂ ಬಾಧಕವನ್ನುಂಟುಮಾಡತಕ್ಕದ್ದಲ್ಲ.

5. ಪರಂತು, ಸದರಿ ಶಾಂತಮ್ಮ ಎಂಬುವರಾಗಲಿ ಆತನ ವಾರಸುದಾರರಾಗಲಿ, ಪ್ರತಿನಿಧಿಗಳಿಗಾಗಲಿ ಅಥವಾ ಹವಾಲ್ತಿದಾರರಿಗಾಗಲಿ ಈ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಒಳಗಡೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಯಾವ ಭಾಗದಲ್ಲಾಗಲಿ ಈಗ ಇರುವ ಅಥವಾ ಮುಂದೆ ಯಾವ ಕಾಲದಲ್ಲಿಯೇ ಆಗಲಿ ಕಂಡುಹಿಡಿಯಲ್ಪಡಬಹುದಾದ ರತ್ನಗಳು, ಚಿನ್ನ ಅಥವಾ ಇತರೆ ಖನಿಜಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಇವುಗಳಿಗೆ ಅಥವಾ ಇವುಗಳನ್ನುಳ್ಳ ಅಥವಾ ಇವುಗಳಿವೆಯೆಂದು ಊಹಿಸ್ತಡುವ ಅಥವಾ ಬಂಡೆಯ ವಿಷಯದಲ್ಲಿ ಯಾವ ಹಕ್ಕಾಗಲಿ, ಸ್ವಾಮ್ಯವಾಗಲಿ, ಅಥವಾ ಪ್ರಯೋಜನಾಂತವಾಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನ ದೆಸೆಯಿಂದ ಉಂಟಾಗುವುದೆಂದು ಅಥವಾ ಇರುವಂತೆ ಭಾವಿಸಲ್ಪಡತಕ್ಕದ್ದಲ್ಲ. ಈ ಕೆಳಗೆ ಕಂಡ ಪರತ್ತುಗಳಿಗೊಳಪಟ್ಟ ಇವುಗಳೆಲ್ಲವೂ ಹಾಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಪರತ್ತುಗಳ ಮೇಲೆ ಅಥವಾ ಈ ವಿಚಾರದಲ್ಲಿ ಆಗಿಂದಾಗ್ಗೆ ವಿಧಿಸಲ್ಪಡಬಹುದಾದ ಪರತ್ತುಗಳ ಮೇಲೆ ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ಈ ಮೂಲಕ ಉಳಿಸಿಕೊಳ್ಳಲ್ಪಟ್ಟಿದೆ.

ಆದರೆ ಸದರಿ ಶಾಂತಮ್ಮ ಎಂಬುವರು, ಅವರ ವಾರಸುದಾರರು ಪ್ರತಿನಿಧಿಗಳು ಅಥವಾ ಹವಾಲ್ತಿದಾರರು ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಅದರೊಳಗೆ ದೊರೆಯಬಹುದಾದ ಲೋಹಗಳ ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಅಥವಾ ರತ್ನಗಳು ಇವುಗಳನ್ನು ಬಿಟ್ಟು ಇತರೆ ಖನಿಜಗಳನ್ನು ಎಂದರೆ ಮುಂಡಕ್ಕಲ್ಲು, ಸುಣ್ಣಕಲ್ಲು ಮತ್ತು ಇತರ ಸಾಧಾರಣ ಖನಿಜಗಳು ಇವುಗಳನ್ನು ವ್ಯಾಪಾರಕ್ಕಾಗಿ ತೆಗೆದುಕೊಳ್ಳದೆ ಸದರಿ ಶಾಂತಮ್ಮ ಎಂಬುವವರು ಅಥವಾ ಅವರ ವಾರಸುದಾರರ ಅಥವಾ ಅವರ ಪ್ರತಿನಿಧಿಗಳ ವಾಸ್ತವವಾದ ಸ್ವಂತ ಉಪಯೋಗಕ್ಕಾಗಿ ಉಚಿತವಾಗಿ ತೆಗೆದುಕೊಳ್ಳಲು ಅವರಿಗೆ ಅವಕಾಶವಿರತಕ್ಕದ್ದು.

6. ಪರಂತು ಸದರಿ ಜಮೀನಿನಲ್ಲಿರುವ ಗಂಧದ ಮರಗಳು ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ಸೇರಿದವುಗಳಾಗಿವೆ. ಅವುಗಳಿಗಾಗಿ ಬೋನಸ್ಸು ಮೊಬಲಗು ಕೊಡುವ ವಿಚಾರದಲ್ಲಿ ಹಾಲಿ ಇರುವ ಅಥವಾ ಏರ್ಪಡಿಸಲ್ಪಡುವ ನಿಬಂಧನೆಗಳಿಗೆ ಅವಕಾಶವಿರುವಷ್ಟರ ಮಟ್ಟಿಗೆ ಹೊರತು. ಸದರಿ ಗಂಧದ ಮರಗಳ ಮೇಲೆ ಸದರಿ ಶಾಂತಮ್ಮ ಎಂಬುವರಿಗೆ ಅಥವಾ ಅವರ ವಾರಸುದಾರರಿಗೆ ಪ್ರತಿನಿಧಿಗಳಿಗೆ ಅಥವಾ ಹವಾಲ್ತಿದಾರರಿಗೆ ಈ ಮಾಲೀಕತೆಯ ಪತ್ರದಿಂದ ಯಾವ ಹಕ್ಕು ಉಂಟಾಗದಂತೆಯೂ ಅಥವಾ ಇರುವಂತೆಯೂ ಭಾವಿಸಲ್ಪಡತಕ್ಕದ್ದಲ್ಲ.

7. ಪರಂತು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ ಮತ್ತು ಸದರಿ ಕೋಡಿನ ಮೇರೆಗೆ ಏರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳ ತತ್ಕಾಲದಲ್ಲಿ ಜಾತಿಯಲ್ಲಿರಬಹುದಾದ ಇತರ ಕಾನೂನಿನ ನಿಯಮಗಳಿಗೆ ಸಾಮಾನ್ಯವಾಗಿ ಒಳಪಟ್ಟು ಸಹ ಈ ಜಮೀನಿನ ಅನುಭವವನ್ನು ಕೊಡಲಾಗಿದೆ.

8. ಈ ಜಮೀನನ್ನು ಈ ಲಗಾಯ್ತು 15 ವರ್ಷಗಳ ಕಾಲ ಪರಭಾರೆ ಮಾಡಕೂಡದು..

9. ಈ ಜಮೀನನ್ನು 2 ವರ್ಷದಲ್ಲಿ ನಾಗಿಗೆ ತರತಕ್ಕದ್ದು ಮತ್ತು ಯಾವುದೇ ಕಾರಣದಿಂದಲೂ ವಾಳುಬಿಡತಕ್ಕದ್ದಲ್ಲ.
10. ಖರಾಬು ಖುಲ್ಲಾ ಬಿಡಬೇಕು, ಜಮೀನಿನಲ್ಲಿ ಮರದ ಸಸಿಗಳನ್ನು ನೆಡಸತಕ್ಕದ್ದು.

ಜಮೀನಿನ ವಿವರ:-

ದಿಕ್ಟಿಕ್	ತಾಲ್ಲೂಕು	ಗ್ರಾಮ	ಯೆಸರು ಯಾವುದಾದರೂ ಇದ್ದರೆ	ಚಕ್ಕುಬಂದಿ	ಸರ್ವೆ ನಂಬರ್ 53	ವಿಸೇರ್ಷ ಎಕರೆ ಗುಂಟೆ	ಆಕಾರ ರೂ. ಪೈ
ಪೂರ್ವ	ಅರಕಲಗೂಡು	ಕೋಣನೂರು // ಹೋ // ಬೆಟ್ಟಗಲೆ ಗ್ರಾಮ	ಶಾಂತಮ್ಮ ಕೋಂ ಲೇ// ಕೃಷ್ಣಗೌಡ	ನಕ್ಕೆಯಂತೆ	ಬ್ಲಾಕ್ 24 ಜುಮ್ಮಾ ಮೂಟು ಖರಾಬು ಖುಳ್ಳಿ ತರಿ ಬಾಗಾಯ್ತು ಒಟ್ಟು	2-03	8-00
						2-03	8-00

ಪೂರ್ವ ಖರಾಬನ್ನು ಬಿಟ್ಟಿರುವ ಕಾರ್ಡ್‌ನನ್ನು ಇಲ್ಲಿ ಸ್ಪಷ್ಟವಾಗಿ ನಮೂದಿಸಬೇಕು.

2011 ನೇ ಇಸವಿ ಜೂನ್ ತಿಂಗಳು 29 ನೆಯ ತಾರೀಖಾದ ಈ ದಿನ ಕೊಡಲ್ಪಟ್ಟಿತ್ತು.

ಸಹಿ/-29/6
ಪ್ರಮೋದ್
ತಾಲ್ಲೂಕು ಕಛೇರಿ, ಅರಕಲಗೂಡು

This typed copy prepared as per copy furnished by the petitioner.

Advocate for petitioner

Grant Certificate bearing No.L.N.D.481/10-11 issued as per the Official Memorandum No.HRP(1)(D)41/08-09 dated 29-10-10 passed by the Special Land Acquisition Officer, Hemavathi Reservoir Project (Rehabilitation), Hassan.

FORM-1

GRANT CERTIFICATE – LAND REVENUE CONDITIONS E-SCHEDULE

I, ...Smt. M.K.Savitha,.....Tahsildar of Arakalgud Taluk..., do hereby issue order that, since the land described in the below Schedule is sold and ...Smt. Shanthamma, W/o late Krishnegowda... has purchased the same, and since the same has been granted to ...Smt. Shanthamma..., and she has been declared and published as its purchaser, and since ...Smt. Shanthamma... has paid the fixed government upset price of ...Rs.586-00... to the government treasury under ...Challan No.51/25-6-11..., ...Smt. Shanthamma... is permitted to hold the said land. That apart, the said land is hereby given to ...Smt. Shanthamma... and her legal heirs, their representatives and others, and made permanent, and that the same is subject to the conditions of survey guarantee and also subject to the order of cancellation or alteration of the same in any suit or appeal by a court of law, and also subject to the below mentioned conditions and rules from time to time and also subject to the condition of paying the land revenue revisable from time to time and the same conditions shall continue to be applicable to all those persons.

1. Provided that, the land revenue shall be paid each revenue year in accordance with the provisions of the Land Revenue Code as may be made in this regard from time to time. In default, that amount shall be recovered by using force in accordance with the provisions of the Land Revenue Code and rules framed thereunder.
2. Provided further that, by virtue of this document, there shall not be any objection / obstacle for imposing any kind of tax or cess other than the land revenue on this land for general purposes or municipal or other local purposes.
3. Provided further that, where the major and minor tanks of the village are instaurated and the general responsibility of upkeeping of the same is saddled on ...Smt. Shanthamma, W/o late Krishnegowda..., on account of holding of the said land, ...Smt. Shanthamma, W/o late Krishnegowda..., or other legal owner of the said land, shall upkeep the same at their own costs

at all times and they shall properly protect the boundary marks around the said land. In case of their failure of doing so, the Government of Karnataka shall have the power to issue due notice and get the tanks upkept and the boundary marks repaired and the expenditure incurred in that behalf shall be recovered from ...Smt. Shanthamma, W/o late Krishnegowda..., or other legal owner of the said land as arrears of land revenue.

4. Provided further that, this document shall not cause any obstacle to the existing rights of the government, villagers or the owners of the nearby lands in the matter of all the roads, passages, pathways passing through or surrounding the land or to all the general existing customary rights.
5. Provided further that, it shall not be deemed by the said ...Smt. Shanthamma..., or her legal heirs or representatives or possessors, that a right, ownership or usage has accrued by virtue of this document, over the gems, gold and other oars or coal found, or predicted that such gems, gold and other oars or coal are there on the land, or under the land or in any rock in the land, either at present or at any time in future. All these things are hereby reserved to the Government of Karnataka subject to the conditions for the time being in force or such conditions as may be imposed from time to time in the matter, subject to the conditions set out below.

However, other than metals or coal or gems in the land, there shall be provision for the said ...Smt. Shanthamma..., her legal heirs, representatives or possessors, to take free of cost, other minerals, such as, boulders, limestone and other general minerals, for their genuine personal user but not for business purpose.

6. Provided further that, sandalwood trees in the said land belong to the Government of Karnataka. Except to the extent of payment of bonus amount, it shall not be deemed that by virtue of this title document, any right has accrued or accrues upon those sandalwood trees, to the said ...Shanthamma... or her legal heirs, representatives or possessors.
7. Provided further that, the occupancy of this land is conferred subject to the conditions of Land Revenue Code and the rules framed thereunder or other rules enacted at the time.
8. This land shall not be alienated for 15 years from today.

9. This land shall be brought to cultivation within two years and shall not be left barren for any reason.

10. Kharab land shall be left vacant and in such land trees shall be planted.

DETAILS OF LAND

District	Taluk	Village	Name, if any.	Boundaries	Sy.No.	Area A-G	LR Rs. Ps.
Hassan	Arakalgud	KonanoorHobli, Bettagalale Village	Shanthamma, W/o late Krishnegowda	As per sketch	53 Block-24 Foot Kharab Dry Wet Garden	2-03 - ✓ - -	8-00
Total						2-03	8-00

The purpose of leaving foot Kharab shall be mentioned clearly.

Issued on this the 29th day of June 2011.

Sd/-
Tahsildar,
Taluk Office,
Arakalgud.



11

12

13

14

15

16

17

18

19

20

21

22

23

Handwritten notes in the bottom left corner, including a list of numbers and some illegible text.

ಸಮೂಹ - ವರದಿ
ಮ್ಯುಟೇಶನ್ ರಿಜಿಸ್ಟರ್ ಪ್ರತಿ

95 -49- ANNEXURE - F
ಮ್ಯುಟೇಶನ್ ವಕೀಲು ಮುದ್ರಿಸಿದ ದಿನಾಂಕ: 28/10/2017

ಪುಟ ಸಂಖ್ಯೆ: 1

ಜಿಲ್ಲೆ : ಹಾಸನ
ತಾಲ್ಲೂಕು : ಅರಕಲಗೂಡು
ಹೋಬಳಿ : ಕೋಡನೂರು
ಗ್ರಾಮ : ಬಿಟ್ಟುಗಳಲೆ

ವಹಿವಾಟಿನ ವರ್ಷ : 2011-2012

M.R. ಸಂಖ್ಯೆ : 3/2011-2012

***** ಅಮಮೋದಿಸಿದೆ *****

ಮೂಲ : ಸರಕಾರಿ ಆದೇಶ

ಬದಲಾವಣೆ ರೀತಿ : ಸರ್ಕಾರಿ ಆದೇಶ

ಸ್ವಾಧೀನತೆ ರೀತಿ : ಮಂಜೂರು

ಆದೇಶ ಸಂಖ್ಯೆ : RRT-92/11-12

ಆದೇಶ ದಿನಾಂಕ : 17/08/2011

(ವಿಸ್ತೀರ್ಣ ಎಕರೆ ಮತ್ತು ಗುಂಟೆಗಳಲ್ಲಿ)

ಭಾಧಿಕಾರದ ಸರ್ವೆ ಮತ್ತು ಕಿಟ್ಟಾ ಸಂ.	ಹಕ್ಕು ಬದಲಾವಣೆ ಮಾಡಿದವರು	ವಿಸ್ತೀರ್ಣ	ಹಕ್ಕು ಬದಲಾವಣೆ ಪಡೆದವರು	ವಿಸ್ತೀರ್ಣ	ತಪಾಸಣೆ ಅಧಿಕಾರಿ ರುಮ/ವರಾ
53 / * / *	ಗೋಮಾಳ	2.03.00.00	ಶಾಂತಮ್ಮ ಕೋಲಂ ಲೇಔ ಕೃಷ್ಣಗೌಡ (15 ವರ್ಷ ವರಬಾರೆ ನಿಷೇಧಿಸಿದೆ ಸರಕಾರಿ ನಿಬಂಧನೆ ಇದೆ : ಹೌದು ನಿಬಂಧನೆ ರೀತಿ : PTCL ಸ್ವಾಧೀನದಾರ ರೀತಿ : -- ನಿಬಂಧನೆ ದಿನಾಂಕ : 29/06/2011	2.03.00.00	

ಮ್ಯುಟೇಶನ್ ಆದೇಶದ ವಿವರ : ಗ್ರಾ.ಲೆ.ವರದಿಯಂತೆ ಹಾಗೂ ಹಾಸನ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಕಾರಿಗಳು ಇವರ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ (ಪು) 41/08-09 ದಿನಾಂಕ 29

-10-2010 ರಂತೆ ಶಾಂತಮ್ಮ ಕೋಲಂ ಕೃಷ್ಣಗೌಡರಿಗೆ ಸ.ಸಂ.53 ಬ್ಲಾಕ್ ಸಂ 54 24 ರಲ್ಲಿ 2-03 ಗುಂಟೆ ಖಾತೆ ಅಂಗೀಕರಿಸಿದೆ.

ಮೊಪ್ಪಾಂ : ಅರಕಲಗೂಡು
ಮ್ಯುಟೇಶನ್ ಆದೇಶದ ದಿನಾಂಕ : 12/09/2011

ಸಹಿ/-
ರಾಜಸ್ಥಾನ ನಿರೀಕ್ಷಕರು
ಹೋಬಳಿ ಕೋಡನೂರು

ಧೃಢೀಕೃತ ಪ್ರತಿ

(ರಶೀದಿ ಸಂಖ್ಯೆ: 1 ದಿನಾಂಕ: 28/10/2017 ಮೊತ್ತ: 15.00)

ಗ್ರಾಮ ಲಿಕ್ಕಿಗರು

ಗಮನಿಸಿ: ಸ್ವಾಧೀನತೆ ಬದಲಾಗುವ ಎಲ್ಲಾ ವಹಿವಾಟಿಗಳಿಗೆ ವಕ್ಷಿ ಅತ್ಯವಶ್ಯಕ

96

Translated copy of
Annexure-FMutation Xerox printed date 28/10/2017
Form-Report

Mutation Register copy

District:	Hassan	Transaction year	2011-12	Original Type of Change	Govt. Order
Talluk:	Arkalgud			Order No.	Govt. Order
Hobli:	Konanur	MR No.	3/2011-12	Order Date	Grant
Village:	Bettagalale				RRT-92/11-12
*****Approved*****					
					Extent Acre & Gunta

Affected Survey No & Hissa No	title changed by whom	Extent	Who has been get title	Extent		
53/*/*	Gomal	2.03.00.00	Shanthamma W/o Late. Krishnegowda (Transfer restricted for 15 years): Govt. Restriction is there : Holder Type: Restriction Date:	2.03.00.00	Yes	Yes
			29/06/2011			

Type of Mutation Order: As per the report from Village Accountant and Official Memorandum No. (pu) 41/08-09 date: 29-10-2010 The Special Land Acquisition Officer, Hassan, khata approved for the extent 2-03 Guntas to Shanthamma W/o Krishnegowda in Sy No. 54 Block no. 24.

Mokkam: Arkalgud

sd/-

Mutation Order Date: 12/09/2011

Revenue Inspector

Hobli: Konanur

Certified copy

Receipt No. 1 Date: 28/10/2017 Amount: 15.00 Village Accountant

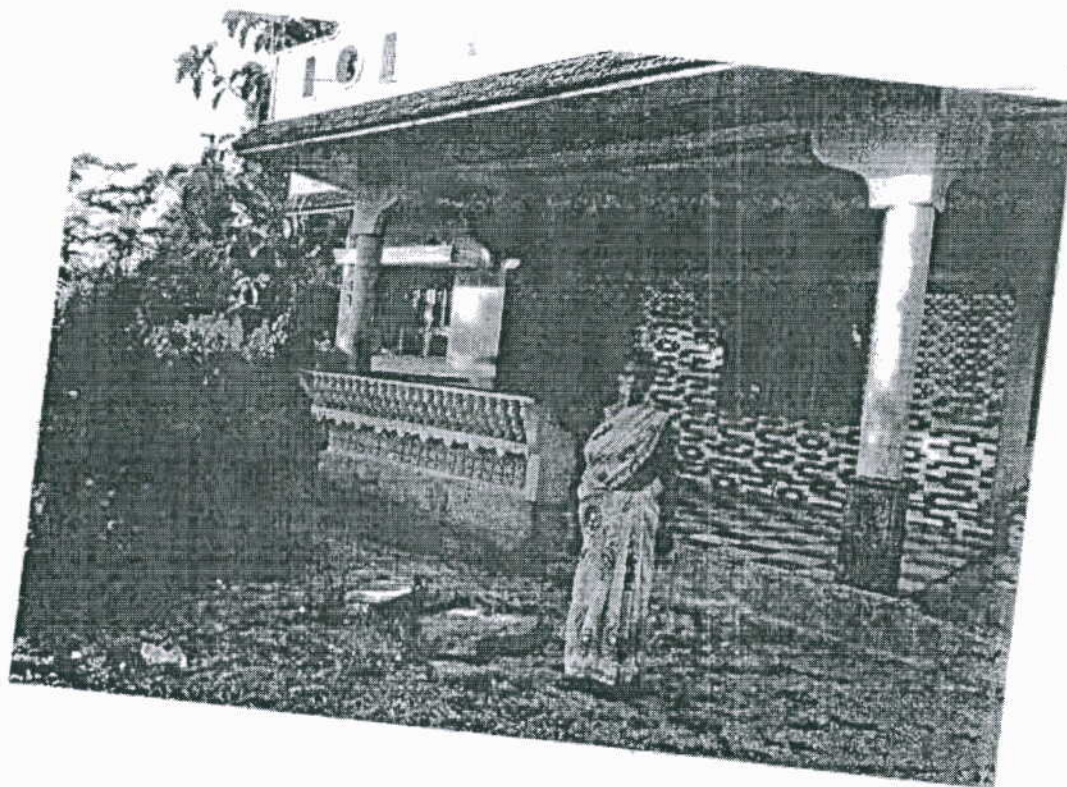
Note: A map is essential for all transactions where ownership changes.

[illegible]

11. Other rights and Liabilities															
Right															Liabilities
4/2014-2015 PACCS Bannur bank transfer is ban up to 15 years Transfer is ban up to 15 years Transfer is ban up to 15 years															

99

- 81 -
ANNEXURE - 9



100

S2 ANNEX
ANNEXURE - 91





ಭಾರತ ಸರ್ಕಾರ
Unique Identification Authority of India
Government of India
ನೋಂದಾವಣೆ ಕ್ರಮ ಸಂಖ್ಯೆ / Enrollment No.: 1208/78002/02596

To
ಶಾಂತಮ್ಮ
Shanthamma
W/O: Krishnappa
Bettagalale
Bellame (Mariyanagara)
Bellame
Arkalgud Hassan
Karnataka 573130
8105502603
MN897257159FT



ನಿಮ್ಮ ಆಧಾರ್ ಸಂಖ್ಯೆ / Your Aadhaar No. :

8922 1306 0205

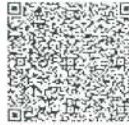
ಆಧಾರ್ - ಶ್ರೀಸಾಮಾನ್ಯನ ಅಧಿಕಾರ



ಭಾರತ ಸರ್ಕಾರ
Government of India



ಶಾಂತಮ್ಮ
Shanthamma
ಜನ್ಮ ದಿನಾಂಕ / DOB : 01/01/1953
ಸ್ತ್ರೀ / Female



8922 1306 0205

ಆಧಾರ್ - ಶ್ರೀಸಾಮಾನ್ಯನ ಅಧಿಕಾರ

ಮಾಹಿತಿ

Anumle-H

- ಆಧಾರ್ ಗುರುತಿನ ಪುರಾವೆಯೇ ಹೊರತು ಪೌರತ್ವದಲ್ಲ.
- ನಿಮ್ಮ ಗುರುತನ್ನು ಸಾಬೀತುಪಡಿಸಲು, ಆನ್ ಲೈನ್ ಮೂಲಕ ದೃಢೀಕರಿಸಿ.

INFORMATION

- Aadhaar is proof of identity, not of citizenship.
- To establish identity, authenticate online.

- ಆಧಾರ್ ದೇಶದಾದ್ಯಂತ ಮಾನ್ಯತೆಯನ್ನು ಪಡೆದಿದೆ.
- ಭವಿಷ್ಯದಲ್ಲಿ, ಸರ್ಕಾರಿ ಹಾಗೂ ಸರ್ಕಾರೇತರ ಸೇವೆಗಳನ್ನು ಪಡೆಯಲು ಆಧಾರ್ ನಿಮಗೆ ಸಹಾಯಕವಾಗಲಿದೆ.
- Aadhaar is valid throughout the country.
- Aadhaar will be helpful in availing Government and Non-Government services in future.



ಭಾರತ ಸರ್ಕಾರ
Unique Identification Authority of India

ವಿಳಾಸ:
W/O: ಕೃಷ್ಣಪ್ಪ, ಬೆಟ್ಟಗಲೇ, ಬೆಲ್ಲಮೆ
ಮರಿಯಾನಗರ, ಬೆಲ್ಲಮೆ, ಹಾಸನ,
ಕರ್ನಾಟಕ, 573130

Address:
W/O: Krishnappa, Bettagalale,
Bellame (Mariyanagara), Bellame,
Hassan, Karnataka, 573130

8922 1306 0205

1947
1000 300 1947

help@uidai.gov.in

www.uidai.gov.in

IN THE HIGH COURT OF KARNATAKA AT BENGALURU**Writ Appeal No.** 1146 /2025**In****WRIT PETITION NO.2090/2024(KLR-LG)****BETWEEN :**State of Karnataka *e, others* ...Appellants**AND**

Smt. Shanthamma ...Respondents

MEMO REGARDING NON-FILING OF STATEMENT OF OBJECTIONS

The Appellant/s respectfully submits that, in Writ Petition No:2090/2024(KLR-LG) Respondent Nos: 1 ^{to} & 8 have not filed statement of objections.

Place: Bengaluru
Dated:04.07.2025

Government Advocate &
Advocate for Appellants-State

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A. 1146 OF 20 25

IN

W.P. No. 2090 /2024

BETWEEN :

The State of Karnataka

And others

:: APPELLANTS

AND :

Smt. Shanthamma.

:: RESPONDENT/S

To,

The Registrar General
High Court of Karnataka
Bengaluru- 560001

MEMO OF APPEARANCE

I have been instructed by the Head Legal Cell and Ex-Officio Deputy Secretary to Government
M.S. Building, Bengaluru-1, vide G.O. No.
Dated To appear for Appellant Nos. 1 to 8 in
the above matter. This Hon'ble Court may therefore be pleased to enter my
appearance for the said Appellant/s.

BENGALURU

Dated 05/07/2025

ADDL. GOVT. ADVOCATE,
AND
ADVOCATE FOR APPELLANTS.

Address for Service
Government Advocate
Advocate General's office
High Court Building
Bengaluru-1.



PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA

Sub: Authorizing to the Government Advocate, Hon'ble High Court of Karnataka, Bengaluru for preferring **Writ Appeal** before the Hon'ble High Court of Karnataka, Bengaluru against the **Order dated: 01.04.2024** passed in **Writ Petition No. 2090/2024 (KLR-LG)** by the Hon'ble High Court of Karnataka, Bengaluru in the matter of **Smt. Shanthamma, Hassan District -Vs- The State of Karnataka**, represented by its Principal Secretary to Government, Department of Revenue, M.S. Building, Bengaluru and others.

Read: File No. RD/45/LGW/2025 of Revenue Department (Land Grants-2), Karnataka Government Secretariat (E-File, Computer No. 1715097).

GOVERNMENT ORDER No. RD/45/LGW/2025, BENGALURU, DATED:
29.03.2025

Sanction is accorded to the Government Advocate, Hon'ble High Court of Karnataka, Bengaluru to prefer the **Writ Appeal** and appear before the Hon'ble High Court of Karnataka, Bengaluru against the **order dated: 01.04.2024** passed in **Writ Petition No. 2090/2024 (KLR-LG)** on behalf of the State of Karnataka represented by:

1. The State of Karnataka, represented by its Principal Secretary to Government, Department of Revenue, M.S. Building, Bengaluru.
2. The Deputy Commissioner, Hassan District, Hassan.
3. The Special Land Acquisition Officer, Hemavathi Reservoir Project, DC Office Building, Hassan District.
4. The Assistant Commissioner, Sakaleshpura Sub-Division, Sakaleshpura, Hassan District.
5. The Tahsildar, Arkalagud Taluk, Arkalagud, Hassan District.
6. The Assistant Director of Land Records, Arkalgud Taluk, Hassan District.
7. The Deputy Conservator of Forest, Hassan Division, Hassan.
8. The Inspector of Police, Cen Crime Police, DCRB Division, Hassan.

The Special Land Acquisition Officer, Hemavathi Reservoir Project, DC Office Building, Hassan District (Mobile No. 9449343588, e-mail Id: slaohrp2@gmail.com) shall be the Litigation-Conducting Officer and Swearing Officer and he shall sign the concerned petition and swear affidavit etc., which may be required to be filed in this connection.

The Special Land Acquisition Officer, Hemavathi Reservoir Project, DC Office Building, Hassan District (Mobile No. 9449343588, e-mail Id: slaohrp2@gmail.com) is directed to furnish all particulars, parawise remarks and records required in this behalf to the Government Advocate, Bengaluru for preparing draft statement of objections, under intimation to the **Under Secretary to Government, Revenue Department (Land Grants-2), M.S. Building, Bengaluru.**

**BY ORDER AND IN THE NAME OF
THE GOVERNOR OF KARNATAKA**


(SHANTALA RAMESH DODWAD)
Head of Legal Cell & Ex-officio
Deputy Secretary to Government,
Department of Revenue.

To:

1. The Government Advocate, Hon'ble High Court of Karnataka, Bengaluru.

2. P.S. to the Principal Secretary to Government, Revenue Department, M.S. Building, Bengaluru.
3. The Deputy Commissioner, Hassan District, Hassan.
4. The Special Land Acquisition Officer, Hemavathi Reservoir Project, DC Office Building, Hassan District.
5. The Assistant Commissioner, Sakaleshpura Sub-Division, Sakaleshpura, Hassan District.
6. ~~The Assistant Director of Land Records, Arkalgud Taluk, Hassan District.~~
7. The Deputy Conservator of Forest, Hassan Division, Hassan.
8. The Inspector of Police, Cen Crime Police, DCRB Division, Hassan.
9. The Tahsildar, Arkalagud Taluk, Arkalagud, Hassan District.
10. The Under Secretary to Government, Revenue Department (Land Grants-2), M.S. Building, Bengaluru.
11. SGF

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WA.

1146

Of 20.05.....

BETWEEN: *State of Karnataka & others*

PETITIONERS/APPELLANT ✓

AND

smt. Shanthamma.

RESPONDENT

INDEX

Sl. No.	Particulars	Page Nos.
(1)	<i>IA for CD</i>	<i>105-106</i>
(2)	<i>Affidavit</i>	<i>107-112</i>
(3)		
(4)		
(5)		
(6)		
(7)		
(8)		
(9)		
(10)		

Bengaluru

Dated : *05/07/2025*

[Signature]
Addl. Government Advocate
And
Advocate for Complainant/s
Accused/s

IN THE HIGH COURT OF KARNATAKA BANGALORE

I.A. No. of 2025

(for condonation of delay)

in

WRIT APPEAL No. 1146 of 2025

In

Writ Petition No. 2090 of 2024 (S)

RANK IN THE PARTIESWRIT
PETITIONWRIT
APPEAL

BETWEEN:

- | | | |
|--|----------------------|---------------------|
| 1. State of Karnataka,
Represented by its Prl. Secretary,
Department of Revenue,
M.S. Building,
Bengaluru-560 001. | ..RESPONDENT
No.1 | ..APPELLANT
No.1 |
| 2. The Deputy Commissioner,
Hassan District,
Hassan- 573 201. | ..RESPONDENT
No.2 | ..APPELLANT
No.2 |
| 3. The Special Land Acquisition
Officer,
Hemavathi Reservoir Project,
D.C. Office Building,
Hassan - 573 201. | ..RESPONDENT
No.3 | ..APPELLANT
No.3 |
| 4. The Asst. Commissioner,
Sakaleshpura Sub-Division,
Sakaleshpura- 573 134 | ..RESPONDENT
No.4 | ..APPELLANT
No.4 |

- | | | |
|---|----------------------|---------------------|
| 5. The Tahsildar,
Arkalagud Taluk,
Hassan District- 573 102. | ..RESPONDENT
No.5 | ..APPELLANT
No.5 |
| 6. The Asst. Director of Land Records,
Arkalagud Taluk,
Hassan District- 573 102. | ..RESPONDENT
No.6 | ..APPELLANT
No.6 |
| 7. The Deputy Conservator of Forest,
Hassan Division,
Hassan - 573 201. | ..RESPONDENT
No.7 | ..APPELLANT
No.7 |
| 8. The Inspector of Police,
CEN Crime Police,
DCRB Division,
Hassan District- 573 201. | ..RESPONDENT
No.8 | ..APPELLANT
No.8 |

AND:

Smt. Shanthamma,
W/o late Krishne Gowda,
D/o Late Putte Gowda,
Aged about 70 years,
Resident of Bettagalale Village,
Konanooru Hobli,
Arkalagud Taluk,
Hassan District- 573 130. ..PETITIONER .. RESPONDENT

APPLICATION UNDER SECTION 5 OF LIMITATION ACT

For the reasons stated in the accompanying affidavit, the Appellants humbly pray that this Hon'ble Court may be pleased to condone the delay of 432 days in filing the Writ Appeal in the interest of justice and equity.

BANGALORE
DATE: 05.07.2025

(V SHIVAREDDY)
ADDL. GOVT ADVOCATE &
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE

WRIT APPEAL No. of 2024

In

Writ Petition No. 2090 of 2024 (S)

BETWEEN:

State of Karnataka & others. ... APPELLANTS

AND:

Smt. Shanthamma ... RESPONDENT

AFFIDAVIT

I, Dr. Manjunatha V, S/o Late Veeranna, aged about 58 years, working as Special Land Acquisition Officer, Hemavathi Reservoir Project, D.C. Office Building, Hassan do hereby solemnly affirm and state on oath as follows: TODAY AT BENGALURU

1. I am appellant No.3 in the above appeal and I am fully aware of the facts of the case. I have filed the above appeal on behalf of the State of Karnataka represented by its Principal Secretary, Revenue Department, the Deputy Commissioner, Hassan District and other Revenue Officers, Officer of Forest Department and the Police Department, against the order dated 01-04-2024 passed by the learned Single Judge of this Hon'ble Court, in Writ Petition No.2090 of 2024 (KLR-LG). I am swearing to this affidavit on behalf of the other appellants also. The averments made in the appeal memorandum filed may be



read as part of this affidavit in order to avoid repetition of the facts.

2. I submit that the learned Single Judge passed an order on 01.04.2024, the learned Addl. Government Advocate has given opinion on 10.07.2024, there the concerned Spl. Land Acquisition Officer requested the legal opinion from the legal advisor to the Deputy Commissions, Hassan. The Legal Advisor has given opinion on 05.03.2025 has opined that need to prefer Revision Appeal. Thereafter the Spl. Land Acquisition Officer sought again opinion from the Advocate General's Office, the Addl. Government Advocate opined that it is a FIT CASE to prefer Appeal against the order passed by the Learned Single Judge on 06.03.2025. The Spl. Land Acquisition Officer has sent a proposal to Deputy Commissioner for preferring appeal on 05.03.2025 in turn the Deputy Commissioner has sent the proposed to Prl. Secretary to Govt., Dept., of Revenue on 13.03.2025. Thereafter, the Government has issued Government order on 29.03.2025. The same was sent to Advocate General's office to prefer the Appeal immediately preferred the Appeal. I submit that it is bonafied not intentional due to Administrative reasons there is some delay.

3. I further submit that the learned Single Judge has passed the order dated 01-04-2024 in Writ Petition No.2090 of 2024, allowing the writ petition in part and set aside the reasoned order passed by the Special Land Acquisition Officer and remanded the matter back to the Special Land Acquisition Officer and directed the authorities to calculate the amount in

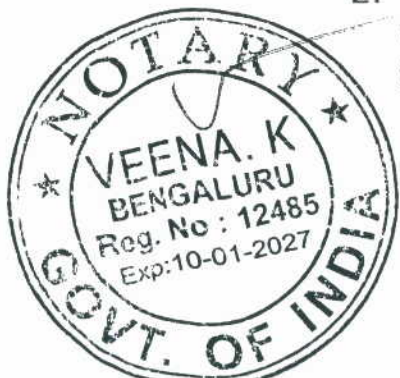


A handwritten signature in black ink, consisting of several loops and a long horizontal stroke at the end.

respect of the trees whether it is paid or not and consequently restore the grant in favour of the respondent and also to restore the revenue entries in the RTC, even though the respondent is not entitled for the grant itself.

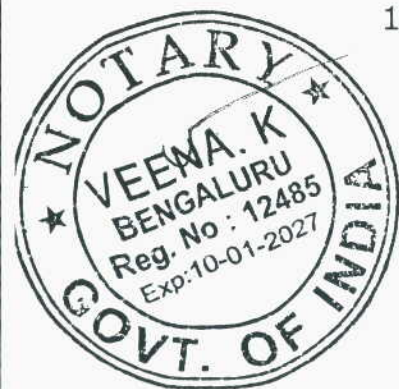
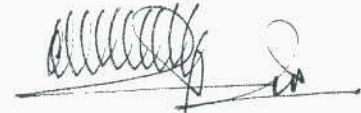
4. In this connection, I humbly submit that in view of the fact that there were large number of complaints alleging that several officers / employees of Revenue Department have committed misconduct and dereliction of duty, by illegally creating bogus documents for granting thousands of acres of land meant for the Project Displaced Persons, on account of the construction of Hemavathi / Yagachi / Watehole Reservoir by misusing the officers and position, and in some cases, more than two persons have taken the advantage of one award and one payment voucher, etc. Thus, the lands reserved for rehabilitation of the true land losers / displaced persons of the said project were illegally granted to those who were not true land losers. Thereupon, the Hon'ble Government passed an order for investigation into the aforesaid misdeeds / scam and submit report. Thereupon, an Investigating Officer was appointed who conducted a detailed investigation and submitted his report and requested to cancel unauthorised grants. He has also listed out as many as 10 points on which such grants are liable to be cancelled, which are as under:-

1. Lands have been granted by directly receiving the official memorandum in taluk offices, and 414 cases of such grants are to be cancelled.
2. Two persons have been granted lands by using one Award copy and one payment voucher and 41 cases of such grants are to be cancelled.



A handwritten signature in black ink, consisting of a series of loops and a long horizontal stroke at the end.

3. By using the documents pertaining to the displaced persons from 1970 to 2015, lands have been again granted for the second time and 62 cases of such grants are to be cancelled.
4. In 14 cases lands have been granted, Saguvali chits have been issued and phodi has also been made without getting the tree-malki determined and such 14 grants are to be cancelled.
5. Totally 837 Saguvali chits issued under official memorandum issued without getting the tree-malki determined shall be cancelled (Sakaleshpura-526, Belur-211, Alur-52, Hassan-23, Arkalgud-25) and saguvali chits shall be issued after determining the tree-malki.
6. The OMs issued by Sri Cap. Srinivasgowda, Special Land Acquisition Officer from 01-02-2018 to 24-10-2019 in respect of 591 and 57 totally 648 cases, on the basis of bogus documents and created Gazette notification shall be cancelled.
7. OMs issued by Sri B.A.Jagadish, Special Land Acquisition Officer in totally 40 cases, granting lands to 40 persons as the displaced persons and the Saguvali chits issued by the Tahsildar, Sakaleshpura shall be cancelled.
8. Granting lands to 32 persons who were not the true project displaced persons by considering them as the Project Displaced Persons on the basis of bogus Submergence Certificate shall be cancelled.
9. 226 cases of granting lands in possession of the Forest Department and Government Gomala land even though in the Pahani it is noted as the government gomala land, to Hemavathi Reservoir Project Displaced persons shall be cancelled.
10. Granting lands only on the basis of the OMs without obtaining all the required documents in 56 cases shall be cancelled.



I further submit that for investigation purpose, the IO had secured and seized all the relevant records from this office and in that process, the documents pertaining to this case was also seized and taken by the IO. The petitioner had also not produced the necessary documents. During investigation of the above scam, the IO has traced hundreds of cases of mischief, misdeeds, forging of documents, etc. The files containing the documents were also misplaced. Hence, there is delay in preferring the present appeal. The delay in filing the above appeal is bonafide and not intentional. In case the delay is not condoned, the State Government will be put to great loss and an undeserved person will get the benefit out of the State funds and the person who is not entitled for the grant itself will be benefitted. On the other hand, no harm will be caused to the respondent, if the delay is condoned.

5. I state that the delay in filing this Appeal is neither intentional nor deliberate, but the same is due to bonafide reasons stated above which are beyond personal control and purely on account of administrative reasons. The movement of files from one office to another office has also consumed some time which is unavoidable.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to allow the accompanying application in the interest of justice and equity.



DEPONENT

A handwritten signature in black ink, consisting of a series of loops and a long horizontal stroke at the end.

VERIFICATION

I, the abovenamed Deponent, do hereby verify that all the facts stated in the affidavit are true to my knowledge and that no part thereof is false and nothing material is concealed there-from.

04 JUL 2025

Verified at Bengaluru, on this day of JUNE, 2025.


DEPONENT

IDENTIFIED BY:

Assistant,
Advocate General's Office,
High Court Building,
Bangalore.560 001.

NO. OF CORRECTIONS:

VSR:181224:MM:191224:DRAFT:
D-DRIVE:VSR(F):DRAFTIN(F):WP 2090/24(D)

Sworn /Solemnly affirmed and signed before
on this 4 day of 7, 201 25 at Bengaluru
No. of Corrections 1 N.R.No. 2917 /20 25
VEENA. K, Advocate & Notary, Bengaluru



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WA

1146

Of 20.05.....

BETWEEN: State of Karnataka & others

PETITIONERS/APPELLANT

AND

Smt. Shanthamma.

RESPONDENT

INDEX

Sl. No.	Particulars	Page Nos.
(1)	IA for stay	113
(2)	Affidavit.	114-118
(3)		
(4)		
(5)		
(6)		
(7)		
(8)		
(9)		
(10)		

Bengaluru

Dated : 05/07/2025

Addl. Government Advocate
And
Advocate for Complainant/s
Accused/s

IN THE HIGH COURT OF KARNATAKA BANGALORE
I.A. No. of 2024

(for stay)
In

WRIT APPEAL No. 1146 of 2024
In

Writ Petition No.2090 of 2024 (S)

BETWEEN:

State of Karnataka & others. ... APPELLANTS

AND:

Smt. Shanthamma ... RESPONDENT

APPLICATION FOR STAY UNDER ORDER 41 RULE 5 R/W
SECTION 151 OF THE CIVIL PROCEDURE CODE

For the reasons stated in the accompanying affidavit, the Appellants humbly pray that this Hon'ble Court may be pleased to stay the operation of the impugned order in W.P No. 2090 of 2024 (S) in the interest of justice and equity.

BANGALORE
DATE: 05.07.2025

(V SHIVAREDDY)
ADDL. GOVT ADVOCATE &
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE

WRIT APPEAL No. 1146 of 2024

In

Writ Petition No. 2090 of 2024 (S)

BETWEEN:

State of Karnataka & others.

... APPELLANTS

AND:

Smt. Shanthamma

... RESPONDENT

AFFIDAVIT

I, Dr. Manjunatha V, S/o Late Veeranna, aged about 58 years, working as Special Land Acquisition Officer, Hemavathi Reservoir Project, D.C. Office Building, Hassan do hereby solemnly affirm and state on oath as follows:

TODAY AT BENGALURU

1. I am appellant No.3 in the above appeal and I am fully aware of the facts of the case. I have filed the above appeal on behalf of the State of Karnataka represented by its Principal Secretary, Revenue Department, the Deputy Commissioner, Hassan District and other Revenue Officers, Officer of Forest Department and the Police Department, against the order dated 01-04-2024 passed by the learned Single Judge of this Hon'ble Court, in Writ Petition No.2090 of 2024 (KLR0LG). I am swearing to this affidavit on behalf of appellant Nos.1 to 8 also. The averments made in the appeal memorandum filed may be



read as part of this affidavit in order to avoid repetition of the facts.

2. I further submit that the learned Single Judge has passed the order dated 01-04-2024 in Writ Petition No.2090 of 2024, allowing the writ petition in part and set aside the reasoned order passed by the Special Land Acquisition Officer and remanded back to the Special Land Acquisition Officer and directed the authorities to calculate the amount in respect of the trees whether it is paid or not and consequently restore the grant in favour of the respondent and the revenue entries shall also be restored in the RTC, even though the respondent is not entitled for the grant itself and as such the question of calculating the amount under the Land Grant Rules does not arise.

3. In this connection, I humbly submit that in view of the fact that there were large number of complaints alleging that several officers / employees of Revenue Department have committed misconduct and dereliction of duty, by illegally creating bogus documents for granting thousands of acres of land meant for the Project Displaced Persons, on account of the construction of Hemavathi / Yagachi / Watehole Reservoir by misusing the officers and position, and in some cases, more than two persons have taken the advantage of one award and one payment voucher, etc. Thus, the lands reserved for rehabilitation of the true land losers / displaced persons of the said project were illegally granted to those who were not true land losers. Thereupon, the Hon'ble Government passed an



A handwritten signature in black ink, consisting of a series of loops and a final flourish.

order for investigation into the aforesaid misdeeds / scam and submit report. Thereupon, an Investigating Officer was appointed who conducted a detailed investigation and submitted his report and requested to cancel unauthorised grants. He has also listed out as many as 10 points on which such grants are liable to be cancelled, which are as under:-

1. Lands have been granted by directly receiving the official memorandum in taluk offices, and 414 cases of such grants are to be cancelled.
2. Two persons have been granted lands by using one Award copy and one payment voucher and 41 cases of such grants are to be cancelled.
3. By using the documents pertaining to the displaced persons from 1970 to 2015, lands have been again granted for the second time and 62 cases of such grants are to be cancelled.
4. In 14 cases lands have been granted, Saguvali chits have been issued and phodi has also been made without getting the tree-malki determined and such 14 grants are to be cancelled.
5. Totally 837 Saguvali chits issued under official memorandum issued without getting the tree-malki determined shall be cancelled (Sakaleshpura-526, Belur-211, Alur-52, Hassan-23, Arkalgud-25) and saguvali chits shall be issued after determining the tree-malki.
6. The OMs issued by Sri Cap. Srinivasgowda, Special Land Acquisition Officer from 01-02-2018 to 24-10-2019 in respect of 591 and 57 totally 648 cases, on the basis of bogus documents and created Gazette notification shall be cancelled.



A handwritten signature in black ink, consisting of a series of loops and a final horizontal stroke.

7. OMs issued by Sri B.A.Jagadish, Special Land Acquisition Officer in totally 40 cases, granting lands to 40 persons as the displaced persons and the Saguvali chits issued by the Tahsildar, Sakaleshpura shall be cancelled.
8. Granting lands to 32 persons who were not the true project displaced persons by considering them as the Project Displaced Persons on the basis of bogus Submergence Certificate shall be cancelled.
9. 226 cases of granting lands in possession of the Forest Department and Government Gomala land even though in the Pahani it is noted as the government gomala land, to Hemavathi Reservoir Project Displaced persons shall be cancelled.
10. Granting lands only on the basis of the OMs without obtaining all the required documents in 56 cases shall be cancelled.

I further submit that for investigation purpose, the IO had secured and seized all the relevant records from this office and in that process, the documents pertaining to this case was also seized and taken by the IO. The petitioner had also not produced the necessary documents. During investigation of the above scam, the IO has traced hundreds of cases of mischief, misdeeds, forging of documents, etc. The files containing the documents were also misplaced. Hence, it is just and necessary that the order impugned in this appeal is to be stayed pending disposal of the above appeal. Since there is direction of the learned Single Judge to calculate the amount in respect of trees whether it is paid or not and consequently restore the grant in favour of the respondent and also to restore the revenue entries in the RTC, etc., in case the impugned order is not stayed



pending disposal of this appeal, the respondent is likely to file a petition for contempt of Court orders and it will lead to unnecessary litigations and the disposal of the present appeal will also be protracted. On the other hand, no harm will be caused to the respondent, if the impugned order is stayed pending disposal of this appeal.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to allow the accompanying application in the interest of justice and equity.


DEPONENT

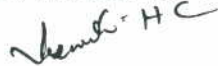
VERIFICATION

I, the abovenamed Deponent, do hereby verify that all the facts stated in the affidavit are true to my knowledge and that no part thereof is false and nothing material is concealed there-from.

04 JUL 2025

Verified at Bengaluru, on this day of JUNE, 2025.

IDENTIFIED BY:



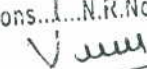
ASSISTANT,
ADVOCATE GENERAL'S OFFICE
HIGH COURT BUILDING,
BENGALURU-560 001.




DEPONENT

NO. OF CORRECTIONS: 1

VSR:181224:MM:191224:DRAFT:fair
D-DRIVE:VSR(F):DRAFTIN(F):WP 2090/24(D)

Sworn /Solemnly affirmed and signed before
on this 4 day of 7 201 25 at Bengaluru
No. of Corrections 1 N.R.No. 2917/20 20

VEENA. K, Advocate & Notary, Bengaluru